

The Coal Mines Provident Fund Scheme

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Union of India - Act

The Coal Mines Provident Fund Scheme

UNION OF INDIA

India

The Coal Mines Provident Fund Scheme

Rule THE-COAL-MINES-PROVIDENT-FUND-SCHEME of 1948

Published on 11 December 1948

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The Coal Mines Provident Fund Scheme

Published vide Notification No. P.F.15(5)/48 dated 11.12.1948

Government of India

Ministry of Labour

No. P.F.15(5)/48. - In exercise of the powers conferred by Section 3 of the Coal Mines Provident Fund and Miscellaneous Provisions Act, 1948 (XLVI of 1948), the Central Government is pleased to frame the following Coal Mines Provident Fund Scheme, namely :-

1.

Short Title and Application

- (i) This Scheme may be called the Coal Mines Provident Fund Scheme.

(ii)

[It shall apply to all coal mines in West Bengal, Bihar, [Maharashtra]

[This sub-paragraph with the exception of the words 'West Bengal' in sub-para (ii) was substituted for the original one under Government of India, Ministry of Labour Notification No. PF 15(9) 50 dated the 9th January, 1950.]

, the Central Provinces and Berar, [Nagaland]

[The words 'Nagaland' added vide G.S.R. 690 dated 25.4.1964.]

and Orissa including those in partially excluded areas in the Provinces of [West Bengal]

[The words 'West Bengal' were inserted by the Government of India, Ministry of Labour Notification No. PF 15(9) 50, dated the 23rd February, 1950.]

, Bihar, Central Provinces and Berar and Orissa to which the Coal Mines Provident Fund and Miscellaneous Provisions Act, 1948, has been applied under Sub-section (1) of Section 92 of the Government of India Act, 1935].

(iii)

[The provisions of this Scheme shall be deemed to have come into force

(a)

On the 12th of May, 1947, in respect of coal mines in West Bengal and Bihar including those situated in the partially excluded areas of the province of Bihar;

(b)

On the 10th of October, 1947 in respect of the coal mines in the Central Provinces and Berar and Orissa including those situated in the partially excluded areas in those provinces ;

(c)

On the 1st of January, 1957 in respect of all coal mines (except Sasti Coal Mine) situated in the [(territories which as from 1st May, 1960 are comprised in the State of Maharashtra)] ;

(d)

[On the 1st of December, 1963 in respect of all coal mines situated in the State of Nagaland.]

[Sub-clause (d) added vide GSR 690 dated 25.4.1964]

(iv)

[The provisions of this Scheme shall come into force on the 1st of December, 1957 in respect of the Sasti Coal Mine]

[Clause (iv) inserted vide S.R.O. 3566 dated 31.10.57.]

[For extension to Assam see para 1 of Appendix I,

For extension to Talcher see para 1 of Appendix II,

For extension to the States of Rewa and Korea see para 1 of Appendix III,

For extension to J&K see para 1 of Appendix IV]

2.

Definitions

- In this Scheme, unless there is anything repugnant in the subject or context -

(a)

"Act" means the Coal Mines Provident Fund and Miscellaneous Provisions Act, 1948 (XLVI of 1948) ;

(b)

"Basic Wages" means the total cash emoluments, whether earned while on duty or while on leave with pay, but excluding all payments for food concession, dearness, house rent and other similar allowances, overtime, bonus, commission, presents, or donations ;

(c)

"Board" means the Board of Trustees constituted under [Section 3-A of the Act]

[The words and figures 'paragraph 3 of this Scheme' substituted vide G.S.R. 492 dated 1.4.66.]

.

(cc)

["Chief Inspector of Mines" has the meaning assigned to it in Sub-section (1) of Section 5 of the Mines Act, 1952 (35 of 1952

);]

[Inserted vide S.O. 2620 dated 26.11.61.]

(d)

"Children" means legitimate children and includes adopted children if the [(commissioner)]

[Inserted by S.R.O. 1360 dated 1.6.56.]

is satisfied that under the personal law of the member adoption of a child is legally recognised ;

(e)

"Commissioner" means the Coal Mines Provident Fund Commissioner appointed under [sub-section (1) of section 3-C of the Act]

[The words and figures 'paragraph 23 of this scheme' substituted vide G.S.R. 492 dated 1.4.66.]

*

** Omitted by S.R.O. 1360 dated 1.6.56.

* The words and figures 'paragraph 23 of this scheme" substituted vide G.S.R. 492 dated 1.4.66.

(g)

["Excluded Employee" means an employee -]

[Clause (g) reconstituted vide S.O. 2620 dated 26.11.61.]

(i)

[who, having been a member of the Fund once, withdraw the amount of his accumulation in the Fund either in whole or in part on permanent retirement after attainment of the age of 50 years or on retirement on account of total incapacity due to bodily or mental infirmity acquired after attaining the age of 50 years, or,]

[Sub-clause (i) substituted vide G.S.R. 509 dated 5.4.72.]

(ii)

[who is employed in a coal mine belonging to or under the control of the National Coal Development Corporation Ltd., on pay and under conditions of service which for the time being are similar to those obtaining in Railway establishments, or under conditions of service which entitle him to pension under the Civil Rules or under conditions of service drawn up by the said Corporation]

[Proviso to para 2(g) (ii) omitted vide G.S.R. 531 of 21.3.70.]

.

(iii)

who is employed as labourer of a contractor for building, brick making or tile making ;

(h)

"Family" means -

[in the case of a male member, his wife, his children, whether married or unmarried, his dependent parents and his deceased son's widow and children.]

[The words 'in the case of a male member, the wife, children and dependent parents of the member, and the widow and children of a deceased son of the member substituted vide G .S.R. 863 dated 27.5.67.]

Provided that if a member proves that his wife has ceased under the personal law governing him or the customary law of the community to which the spouse belongs to be entitled to maintenance she shall no longer be deemed to be a part of the member's family in matters to which this scheme relates, unless the member subsequently intimates by express notice in writing to the commissioner that she shall continue to be so regarded ; and

[in the case of a female member, her husband, her children whether married or unmarried, her dependent parents, her husband's dependent parents and her deceased son's widow and children.]

[The words 'in the case of female member, the husband and children of the member, the dependent parents of the husband, and the widow and children of a deceased son of the member SUBstituted vide G.S.R. 863 dated 27.5.67.]

Provided that if a member by notice in writing to the commissioner expresses her desire to exclude her husband from the family, the husband shall no longer be deemed to be a part of the member's family in matters to which this scheme relates unless the member subsequently cancels in writing any such notice.

Explanation - In either of the above two cases, if the child of a member [or, as the case may be, the child of a deceased son of a member]

[Inserted vide G.S.R. 863 dated 27.5.67.]

has been adopted by another person and if, under the personal law of the adopter adoption is legally recognised such a child shall be considered as excluded from the family of the member;

(i)

"Inspector" means a person appointed as such under section 10 of the Act ;

(j)

"Member" shall have the meaning assigned in the Act and shall include initial member ;

(k)

["Period of Membership" means in respect of a member the period beginning with the day on which he was employed in the coal mine wherefrom he qualifies for the membership of the fund and [(ending with the date on which the amount standing to his credit in the Fund and refundable under paragraph 63 is tendered for payment)]

[Clause (k) reconstituted vide S.R.O. 2564, dated 31.7.57.]

.

[Provided that in the case of a member whose accumulations in the past provident fund are transferred to the Fund under sub-section(1) or sub-section(3) of section 3D of the Act, his period of membership of the Fund shall be deemed to have commenced from the date of his employment in the coal mine or establishment, as the case may be, wherein he became a subscriber of the provident fund from which his accumulations are transferred to the Fund.]

[The proviso inserted vide G.S.R. 492, dated 1.4.66.]

Provided [further]

[The word 'further' inserted vide G.S.R. 492 dated 1.4.66.]

that in any case where the date on which a member was employed cannot be ascertained, the first day of the period or quarter in which he qualified for membership of the Fund shall be deemed to be the date on which he was employed in the Coal Mine.

(l)

"Quarter" means a period of three calendar months commencing on the first of January, the first of April, the first of July and the first of October of each year:

(ll)

["Temporary Disablement" means a condition resulting from a personal injury to an employee caused by accident or an occupational disease arising out of and in the course of his employment in a coal mine, which requires medical treatment and renders the employee temporarily incapable of work and which entitles such employee to compensation under the Workmen's Compensation Act, 1923 (

8 of 1923

);]

[Clause (ll) inserted vide S.O. 2620 dated 26.11.61.]

(m)

["Total Emoluments" means the total cash emoluments inclusive of all allowances, overtime, compensation for guaranteed wage, additional payments for difficult and arduous work, remuneration for paid holidays, whether earned while on duty or on any kind of leave with pay, but does not include -

[Clause [m] inserted vide Notification No. PF 1/2(114) 56-1 dated 10.1.58.]

(i)

bonus under the Coal Mines Bonus Scheme ;

(ii)

any travelling allowance or the value of any travelling concession;

(iii)

any sum paid to the person employed to defray special expenses entailed on him by the nature of his employment;

(iv)

any gratuity payable on discharge;

(v)

any retrenchment compensation;

(vi)

any commission ; and

(vii)

any ex-gratia payment]

(n)

["Wages" has the meaning assigned to it in clause (vi) of Section of the Payment of Wages Act, 1936 (IV of 1936) ;

[Re-lettered vide Notification No. PF 1/2(114)56-1 dated 10.1.58.]

[For Assam, see para 2 of Appendix-I,

For Talcher, see para 2 of Appendix-II,

For Rewa and Korea, see para 2 of Appendix-III,

For J&K see para 2 of Appendix-IV].

3.

[]

[Paragraph 3 omitted vide G.S.R. 492 dated 1.4.66.]

4.

[Terms of Office.

[Sub-paragraph (1) of para 4 substituted vide G.S.R. 1013 dated 20.7.79.]

(1)

Save as otherwise expressly provided in this Scheme the term of office of the trustees other than those referred to in clauses (a), (b), (c) & (d) of sub-section (1) of section 3A of the Act shall be two years or such other period not exceeding five years as the Central Government may specify by notification in the Official Gazette, commencing on the date on which their appointment is notified in the Official Gazette.

Provided that a trustee shall notwithstanding the expiry of the period specified in sub-paragraph (1), continue to hold office until the appointment of his successor is notified in the Official Gazette.]

[Reconstituted by S.R.O. 3566 dated 31.10.57.]

(2)

The trustee referred to in [clause (a), (c) and (d) of sub-section (1) of section 3 A of the Act]

[The words, brackets, figures and letters 'clauses (a) and (b) of sub-paragraph (1) of paragraph 3' substituted vide G.S.R. 492, dated 1.4.66.]

shall hold office during the pleasure of the Central Government.

(2A)

[Where the Central Government directs that a trustee appointed under clause (d) of sub-section (1) of section 3-A of the Act to represent any state Government shall cease to be a trustee, the State Government concerned shall be consulted ;]

[The new sub-paragraph (2A) added by G.S.R. 492 dated 1.4.66.]

(3)

[An outgoing trustee shall be eligible for [(reappointment.)]

[Original sub-paragraphs (3) and (4) omitted and sub-para(5) renumbered as (3) by S.R.O. 1360 dated 1.6.56.]

]

*** The words "or member of the Committee" "or re-election as the case may be" "or member" "or the Committee" "or membership as the case may be" were omitted by S.R.O. 1360 dated 1.6.56.

5.

[Resignation.

[Paragraph 5 reconstituted vide Notification No. PF 2(120)/56, dated 12.2.57.]

- A trustee [(other than that referred to in clause (b) of sub-section (1) of section 3-A of the Act)] may resign his office by notice in writing to the Central Government and his office shall fall vacant from the date on which his resignation is accepted or on the expiry of 30 days from the date of receipt of the letter of resignation whichever is earlier]

6.

[Ceasation and restoration of Trusteeship]

[The word 'cessation of membership' substituted vide Notification No. 1,11015(21)/70 PF 1 dated 1.12.71.]

- [(A trustee [?]

[The words 'A trustee shall cease to be such' substituted vide Notification No. 1,11015(21)/70 P.F. 1 dated 1. 12.71.] shall cease to be such)] trustee, [?]

[The words 'or member of the Committee' 'or re-election as the case may be' 'or member' 'or the Committee' 'or membership, as the case may be' were omitted by S.R.O. 1360, dated 1.6.56.]

if he fails to attend three consecutive meetings of the Board [?]

[The words 'or member of the Committee' 'or re-election as the case may be' 'or member' 'or the Committee' 'or membership, as the case may be' were omitted by S.R.O. 1360, dated 1.6.56.]

without obtaining leave of absence from the Chairman of the Board ;

Provided that the Central Government may restore him to trusteeship [?]

[The words 'or member of the Committee' 'or re-election as the case may be' 'or member' 'or the Committee' 'or membership, as the case may be' were omitted by S.R.O. 1360, dated 1.6.56.]

if it is satisfied that there were reasonable grounds for the absence.

6A.

[Disqualification for trusteeship.

[Para '6A' added vide Notification No. 1, 11015(21)/70, PF L dated 1.12.71.]

(1)

A person shall be disqualified for being appointed as and for being a Trustee -

(i)

If he is declared to be of unsound mind by a competent court; or

(ii)

If he is an undischarged insolvent; or

(iii)

If before or after commencement of the Act, he has been convicted of an offence involving moral turpitude; or

(iv)

If he, as an employer in relation to a coal mine to which the Scheme applies has defaulted in the payment of any dues to the Board or the Fund recoverable from him under the Act or the Scheme, as the case may be.]

7.

Removal from [Trusteeship]

[The word 'membership' substituted vide Notification No. 1, 11015(21)/70, PF I, dated 1.12.71.]

- The Central Government may remove from office any trustee if it is satisfied that the trustee has ceased to represent the interest on whose behalf he was nominated [or that his continuance is otherwise undesirable]

[Please see on next page]

7A.

[Removal from Trusteeship for default in payment of any dues of the Fund.

[Para '7A' added vide Notification No. 1,11015(21)/70 PF 1 dated 1.12.71.]

- The Central Government may remove from office any trustee if in its opinion the trustee, as an employer in relation to a coal mine to which the Scheme applies, has defaulted in the payment of any dues to the Board or the Fund recoverable from him under the Act or the Scheme, as the case may be :

Provided that no such trustee shall be removed from office unless a reasonable opportunity is given to such trustee of making any representation against the proposed action.]

8.

Absence from India.

(1)

Before a non-official trustee leaves India-

(a)

he shall intimate to [Chairman of the Board]

[The words 'and if he is also a member of the Committee the Chairman of the Committee' omitted by S.R.O. 1360 dated 1.6.56.]

of the date of his departure from and expected return to India, or

(b)

if he intends to absent himself for a longer period than six months, he shall tender his resignation.

(2)

[If any trustee leaves India for a period of six months or more without intimation to the Chairman of the Board he shall cease to be a trustee ;]

[Sub-para (2) substituted vide Notification No. 1,11013(13)/71 PF 1 dated 18.11.72.]

Provided that the Central Government may restore him to trusteeship, if it is satisfied that there were reasonable grounds for his leaving India without intimation to the Chairman.

8A.

[Nomination of a substitute during absence of a Trustee.

[Paragraph 8A added vide G.S.R. 1245 dated 17.7.63.]

(1)

If a Trustee is unable to attend any meeting of the Board, he may by a written instrument, signed by him, addressed to the Chairman of the Board and explaining the reasons for his inability to attend the meeting, appoint any representative of the organisation which he represents on the Board as his substitute for attending that meeting of the Board in his place and stead :

Provided that no such appointment shall be valid unless -

(i)

such appointment has been approved by the Chairman of the Board, and

(ii)

the instrument making such appointment has been received by the Chairman of the Board atleast [seven days] before the date fixed for the meeting.

(2)

A substitute validly appointed under sub-paragraph (1) shall have all the rights and powers of a Trustee in relation to the meeting of the Board in respect of which he is appointed and shall receive fees and allowances enjoy immunities and be under obligations as if he were a Trustee appointed [under section 3-A of the Act.]

[The words and figure 'under paragraph 3' substituted vide G.S.R. 492 dated 1.4.66.]

(3)

A Trustee appointing a substitute for attending any meeting of the Board shall notwithstanding anything contained in this paragraph, continue to be liable for the misappropriation or misapplication of the Fund and shall also be liable for any act of misfeasance or non-feasance committed in relation to the Fund by the substitute appointed by him].

9.

[Filling of Vacancies.

[Paragraph 9 substituted vide G.S.R. 492 dated 1.4.66.]

(1)

A casual vacancy in the office of a trustee shall be filled up by the Central Government by notification in the Official Gazette, as soon after the occurrence of the vacancy as possible, after consultation with the State Government or the organisations of employers or employees, as the case may be, which was being represented by the trustee whose office is to be filled up.

(2)

A trustee appointed to fill a casual vacancy shall hold office for the unexpired portion of the term of his predecessor].

10.

Vacation of office.

- A person shall be disqualified for being a trustee -

(a)

if he is declared to be of unsound mind by a competent court; or

(b)

if he is an undischarged insolvent; or

(c)

if he has been convicted of any offence which in the opinion of the Central Government involved moral turpitude.

10A.

[Constitution of Committees.

[The new paragraph 10A inserted vide G.S.R. 492 dated 1.4.66.]

(1)

The Board may constitute committees consisting of such number of trustees as the Board may consider necessary in each case, to assist it in the discharge of its functions and shall lay down the terms of reference of such committees, the quorum thereof and the venue where such committees should meet.

(2)

The provisions of paragraph 21 shall mutatis mutandis apply for the payment of fees and allowances to the members of the committees constituted under sub-paragraph (1) for attending meeting thereof.]

11.

Authentication of Orders, Decisions etc.

(1)

All orders and decisions of the [Board]

[The word 'or the Committees' omitted by S.R.O. 1360 dated 1.6.56.]

shall be authenticated by the signature of its Chairman or by some other officer or member of the Board [@]

[The words 'or Committee as the case may be' omitted by S.R.O. 1360 dated 1.6.56.]

authorised by it in this behalf.

[All orders and decisions of any committee set up by the Board under paragraph 10A shall be authenticated by the Commissioner.]

[The existing paragraph 11 renumbered as the sub-paragraph (1) there and the new sub-paragraph (2) added vide G.S.R. 492 dated 1.4.66.]

12.

[Delegation of Powers.

[Original paragraph omitted and the paragraph inserted by S.R.O. 1363 dated 1.6.56 and later substituted by G.S.R. 492 dated 1.4.66.]

- The Commissioner may delegate, from time to time, the powers vested in him under this Scheme to any officer under his control to the extent considered suitable by him for the administration of the Scheme.]

13.

Disposal of Business

(1)

Every question which is to be considered by the Board shall be considered either at its meeting or, if the Chairman so directs, by sending the necessary papers to all the trustees for their opinion ;

Provided that the paper need not be sent to a trustee who is absent from India at that time.

(2)

[When a question is referred under sub-paragraph (1) for opinion, any trustee may request that the question be considered at a meeting of the Board and thereupon the Chairman, may, and if the request is made by not less than three trustees, shall direct that it be so considered.]

[Sub-paragraph (3) omitted by S.R.O. 1360 dated 1.6.56.]

14.

Meetings of Board of Trustees.

[?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

- The Board [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

shall meet at such place and time as may be appointed by the Chairman of the Board. [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

15.

Notice of Meeting and List of Business.

(1)

Notice of not less than fifteen days from the date of posting shall be given of the time and place fixed for each ordinary meeting of the Board [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

to every trustee [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

present in India and to such notice shall be attached a list of business to be discussed at the meeting;

Provided that when the Chairman calls a meeting for considering any matter which in his opinion is urgent, a notice giving such reasonable time as he may consider necessary, shall be deemed sufficient.

(2)

No business which is not on the list shall be considered at the meeting except with the permission of the Chairmen.

16.

Presiding at Meeting.

- The Chairman of the Board, [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

shall, []

[The words, brackets and figures save as provided in sub-paragraph (2) and (3) of paragraph 3 omitted vide G.S.R. 492 dated 1.4.66.]

preside at every meeting of the Board [?]

[The words 'and Executive Committee' 'and the Committee' 'or the committee as the case may be' 'or of the committee as the case may be to every member of the committee' 'or of the committee as the case may be' deleted by S.R.O. 1360 dated 1.6.56.]

at which he is present. If the Chairman is absent at any time, the [trustees]

[The words, 'or the members of the committees' omitted by S.R.O. 1360 dated 1.6.56.]

present shall elect one of their members to preside over the meeting and the [trustees]

[The words, 'or the members of the committees' omitted by S.R.O. 1360 dated 1.6.56.]

so elected shall at that meeting exercise all the powers of the Chairman.

17.

[(1) No business shall be transacted at a meeting of the Board, whether ordinary or emergent, unless at least four Trustees are present of whom at least one each shall be a trustee appointed under clause (e) and under clause (f) respectively of sub-section (1) of section 3A of the Act.]

[Sub-paragraph [1] of paragraph 17 substituted vide notification No. R-110/1/1/76-PFI, dated 10.9.76]

(2)

[If at any meeting the number of [trustees]

[Sub-paragraph (2) omitted and sub-paragraph (3) renumbered as sub-paragraph (2) by S.R.O. 1360 dated 1.6.56.]

is less than the required quorum, the Chairman shall adjourn the meeting to a date not less than seven days later informing the trustees [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

present and also the other trustees [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

of the date, time and place of the adjourned meeting and it shall thereupon be lawful to dispose of the business at such adjourned meeting whether the quorum is secured or not.]

18.

Recommendation by Majority.

(1)

Every question at a meeting of the Board [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

shall be decided by a majority of votes of the Trustee [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]
present and voting, but the minority may require their dissent to be noted.

(2)

Every question referred to the trustees for opinion shall, unless the Chairman in pursuance of sub-paragraph (2) of paragraph 13 reserves it for consideration at a meeting, be decided in accordance with the opinions received within the time limit allowed.

(3)

In the, case of equality of votes or opinions, the Chairman shall exercise an additional vote or opinion.

19.

Minutes of Meetings.

(1)

The proceedings of a meeting of the Board [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

shall be circulated to all trustees present in India and thereafter they shall be recorded in a minute book to be kept as a permanent record.

(2)

The record of the proceedings of each meeting shall be signed by the Chairman after confirmation at the next meeting.

20.

Acts of the Board etc. not invalid by reason of defect in constitution.

- No act of the Board [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

shall be deemed to be invalid by reason of any defect in the constitution of the Board [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

or on the ground that any trustee [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be' 'or the committee' 'or member' 'or election' 'and/or the committee' omitted by S.R.O. 1360 dated 1.6.56.]

thereof was not entitled to hold or continue in office by reason of any disqualification or of any irregularity in the [appointment]

[The word 'nomination' substituted vide G.S.R. No. 492 dated 1.4.66.]

[@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be', 'or the committee', 'or member' 'or election' 'and/or the committee' omitted by S. R.O. 1360 dated 1.6.56.]

or by reason of such act having been done during the period of any vacancy in the Board [@]

[The words 'or the committee' 'or members of the committee' 'or of the committee,' 'or members as the case may be', 'or the committee', 'or member' 'or election' 'and/or the committee' omitted by S. R.O. 1360 dated 1.6.56.]

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21.

Fees and allowances.

(1)

The travelling allowance of an official trustee shall be governed by the rules applicable to him for journey performed on official duty and shall be paid by the authority paying his salary.

(2)

[Subject to the provisions of sub-paragraphs (3), (4) and (5), every non-official trustee shall be paid travelling allowance for attending the meetings of the Board at such rates as are admissible to grade-I officers of the Central Government and daily allowance calculated at the maximum rates admissible to Grade-I Officers of the Central Government in the respective localities

Provided that, where such trustee -

(i)
arrives at the place of the meeting at 12 noon or in the afternoon of the day immediately preceding the day of the meeting or leaves the place of the meeting in the forenoon of the day immediately succeeding the day of meeting, he shall be entitled to one half of the daily allowance for such days of arrival and departure:

(ii)
arrives at the place of the meeting in the forenoon of the day immediately preceding the day of the meeting or leaves the place of the meeting at 12 noon or in the afternoon of the day immediately succeeding the day of the meeting, he shall be entitled to full daily allowance for such days of arrival and departure.]

(iii)
[arrives at and departs from the place of the meeting on the same day, he shall be entitled to full daily allowance for the day of meeting.]

[Clause (iii) sub-para (2) added vide G.S.R. 1772 dated 6.11.63.]

(3)
Where such trustee, being a member of a State Legislature attends a meeting of the Board, he shall be entitled -

(i)
when the State Legislature is not in session, to such travelling and daily allowance as are admissible to grade-I officers of the State Government; and

(ii)
when the State Legislature is in session, to such travelling and daily allowance as are admissible to the members of the Legislature for attending meeting of the Legislature.

(4)
Where such trustee, being a member of either House of Parliament, attends meeting of the Board, he shall be entitled to such travelling allowance and daily allowance' as may be admissible to him under the rules laid down by the Central Government' on the subject from time to time.

(5)
Where such trustee is neither a member of the State Legislature nor of either House of Parliament and he resides at the place where the meeting of the Board' is held and he attends such meeting. he shall be entitled only to the actual amount of conveyance hired subject to a maximum of Rs. 10/- . per day.

(6)
[In matters regarding grant of travelling and daily allowance to the non'-official members of the Board not covered in this paragraph orders issued by the Central Government from time to time shall apply]

[Sub-para (6) added vide O.S.R. 1772 dated 6.11.63.]

Note:- (1) No daily or travelling allowance in respect of any day or journey, as the case may be, shall be claimed from the Fund by a trustee if he has drawn or will draw allowance for the same from his employer or as a member of the Legislature or of any Committee or Conference of Government and no travelling allowance shall be claimed if he uses a means of locomotion provided at the expense of Government or his employer.

Note:- (2) Where the journey is performed by road between places connected by railway road mileage shall be paid only if the trustee concerned certifies that the journey was undertaken by road to avoid loss of time which the journey by railway would have entailed and the distance travelled does not exceed 75 miles in a single journey.

22.

[]

[Paragraph 22 omitted by O.S.R. 492 dated 1.4.66.]

23.

Coal Mines Provident Fund Commissioner.

- []

[Sub-paragraph (1) and (4) omitted by O.S.R. 492 dated 1.4.66.]

(2)

The Commissioner shall be a whole time officer of the Fund and shall not undertake any work not connected with his office without the sanction of the Central Government.

[]

[Sub-paragraph (3) omitted by O.S.R. 1121, dated 13.8.62.]

[]

[Sub-paragraph (1) and (4) omitted by O.S.R. 492 dated 1.4.66.]

(5)

A person shall be disqualified from being the Commissioner if he is subject to any of the disqualifications specified in Paragraph 10.

(6)

[Coal Mines Provident Fund Commissioner appointed under [sub-section (1) of section 3-C of the Act]

[Sub-paragraph (6) substituted vide O.S.R. 1121 dated 12.8.62.]

may at any time, for reasons to be recorded in writing and after he is given reasonable opportunity of showing cause against the action proposed to be taken in the manner prescribed for Central Government officers of similar status, be removed by the Central Government.]

[Sub-paragraph (2) reconstituted and new sub-paragraph 3, 4, & 5 added vide S.O. No. 2778 dated 17th Nov. 1961.]

24.

[Opening of Regional and Other Offices.

[Paragraph 24 substituted vide G.S.R. 492 dated 1.4.66.]

- The Board may, with the approval of the Central Government, open such regional and local offices as it may consider necessary for the proper implementation of the Scheme framed under section 3 of the Act. It may also define and vary from time to time the functions, duties and jurisdiction of the regional and local offices.]

25.

Class of Employees Required to Join the Fund [in respect of any quarter prior to the 1st January, 1962]

[Heading substituted vide S.O. 2620 dated 26.11.61.]

.

(1)

Every employee in a coal mine to which this scheme applies, other than an excluded employee shall be required to join the Fund and become a member immediately after the end of the quarter following any quarter after the thirtieth of September, 1948 [but before the first of January, 1962]

[Added vide S.O. 2620 dated 26.11.61.]

in which he qualified for a bonus under sub-paragraph (b) of paragraph 4 or sub-paragraph (c) of paragraph 5 of the Coal Mines Bonus Scheme.

(2)

Every employee in a coal mine to which this scheme applies, other than an excluded employee, shall be required to become a member of the Fund (hereinafter called the "initial member") from the beginning of the first period or quarter before the first of October, 1948, in respect of which he qualifies for a bonus under paragraph 4 or paragraph 5 of the Coal Mines Bonus Scheme :

Provided that an initial member, who has received before the first October 1948, from his employer the full amount of his as well as the employer's contribution on his leaving employment in the coal mining industry, shall cease to be an initial member.

(3)

[Every employee in a coal mine to which this scheme applies, except an excluded employee, and an employee employed in a managerial or supervisory capacity in a coal mine belonging to or under the control of the National Coal Development Corporation (Private) Ltd., who, by virtue of exception (a) under paragraph 3 of the Coal Mines Bonus Scheme cannot entitle himself for the membership of the Fund in accordance with sub-paragraph (1) and (2) above, by qualifying for Bonus, shall be required to become a member and join the fund immediately after the end of the quarter following any quarter after the thirtieth June, 1956 in which he puts in seventy five days' attendance in any coal mine to which this Scheme applies]

[Sub-paragraph (3) of paragraph 25 added vide S.R.O. 128 dated 2.1.1957.]

.

[Explanation - An employee whose basic wages exceed three hundred rupees per month subsequent to his qualifying for the membership of the Fund under subparagraph (1) and (2) shall be required to continue his membership and contribution shall be payable as under :-

(a)

at the rates prescribed in Table 1 of paragraph 27 till the 31st December, 1957 ;

(b)

at the rates prescribed in Table IV of paragraph 27 during the period from the 1st January, 1958 to the 30th September, 1962 ;

(c)

at the rates prescribed in Table V of paragraph 27 from the 1st October, 1962 onwards.]

[For Assam, see paragraph 3 and 4 of Appendix-I.

For Talcher, see paragraph 3 of Appendix-II.

For Rewa and Korea, see paragraph 3 of Appendix-III].

25A.

[

[Paragraph 25 & 25 B added vide S.O. 2620 dated 28.10.61.]

- Class of employees required to join the Fund after the 31st December,

(1)

[Every employee in a coal mine to which this Scheme applies other than an excluded employee shall be required to join the Fund and become a member immediately after the end of the month following any month [(or quarter as the case may be)] in which he completes the days of attendance -

(i)

in the period beginning with [(December, 1961)]

['December 1962' for Assam, Talcher and Rewa & Korea vide G.S.R. 161, 162 & 163 and 49 respectively dated 19.1.68.]

and ending with December, 1967, for not less than 105 days, if he is an underground employee and 130 days, if he is a surface employee, and

(ii)

after December, 1967, [(but before January, 1970)]

[() added vide S.O. 54 dated 2.1.70.]

for not less than 95 days, if he is an underground employee and 120 days, if he is a surface employee in a coal mine during a period of six months;

(iii)

[after December, 1969, for not less than 48 days, if he is an underground employee and 60 days, if he is a surface employee in a quarter ;]

[Clause (iii) added vide S.O. 54 dated 2.1.70.]

(iv)

[after December, 1978, for not less than 48 days, if he is an underground employee and 60 days, if he is a surface employee from the date he is employed in a coal mine]

[Clause (iv) of paragraph 25A inserted vide G.S.R. 463 dated 24.3.79.]

;

(v)

[after March, 1989, for not less than 30 days from the date he is employed in a coal mine.]

[Clause (v) of paragraph 25A inserted vide G.S.R. No. 258 dated 8.4.89.]

(2)

Any dispute as to whether an employee is an underground or a surface employee shall be referred to the Coal Mines Provident Fund Commissioner, whose decision thereon shall be final.

(3)

The period of six months in which the qualifying attendance is required to be put in under sub-paragraph (1) shall be reckoned from the beginning of [August 1961]

['August 1962' for Assam, Talcher and Rewa & Korea vide G.S.R. 48, 50 and 49 respectively dated 28.12.62.]

or from the beginning of the month in which an employee is appointed in the Coal Mine concerned, whichever is later. Where an employee fails to qualify for membership of the Fund in the first spell of six months, subsequent spells shall be worked out by eliminating the first month of the previous spell and adding up there to another month at the end ;

Provided that in the case of an employee other than a monthly paid employee, the attendance put in a week which

spreads over two calendar months shall be deemed to relate to the calendar month in which the week ends.]

[Explanation substituted vide G.S.R. 1173 dated 1.9.62.]

25B.

Allowance for leave etc.

(1)

For the purpose of paragraph 25A, any kind of leave, other than maternity leave, granted by the employer to an aggregate of 21 days in a calendar year or, where an employee has availed himself of earned leave (including accumulations), the actual number of days of such leave plus five days, days of layoff as defined in clause (kkk) of Section 2 of the Industrial Disputes Act, 1947, days of idleness caused by any lock out which is illegal under Section 24 of the Industrial Disputes Act, 1947 and days of absence from work on account of compulsory attendance in a court of law shall count as days of attendance. (For J&K see paragraph 3 of Appendix-IV).

(2)

If on any working day in any qualifying period of six months an employee is on maternity leave or is unable to attend work owing to temporary disablement, the number of days for which such employee must put in attendance to qualify for the membership of the Fund under paragraph 25A shall be reduced by seventy percent of such working days if such employee is an underground employee and by eighty five percent of such working days if such employee is a surface employee.

Explanation. - In calculating the said percentage of such working days a fraction less than half shall be disregarded and not less than half shall be counted as one.

(3)

[If in any qualifying period of six months, any day, other than the weekly holiday is observed as a paid holiday in any coal mine, the number of days for which the employees must put in attendance in such period to qualify for the membership of the Fund under paragraph 25A shall be reduced by the number of such paid holidays falling in such period. In the event of a dispute as to whether a day is a paid holiday or not, the decision of the Chief Inspector of Mines shall be final.]

[sub-paragraph (3) of para 25B substituted by G.S.R. 45 dated 28.12.62.]

(4)

If any question arises whether an employee is required to become or continue as a member of the Fund or as regards the date from which he is required to become a member, the decision thereon of the Coal Mines Provident Fund Commissioner shall be final.

25C.

[Continuance of membership of the Fund in case of Employees of the National Coal Development Corporation.

[Paragraph 25C inserted vide G.S.R. 531 dated 21.3.70.]

- In the event of a member becoming an excluded employee under sub-clause (ii) of clause (g) of paragraph 2, he shall be required to continue his membership of the Fund till the date on which the order of his permanent absorption by the National Coal Development Corporation Limited in a cadre to which this Scheme does not apply, is issued.

Provided that where any member on becoming an excluded employee as mentioned above, before the commencement of the Coal Mines Provident Fund (Amendment) Scheme 1970, has been made a member of any Provident Fund other than the Coal Mines Provident Fund, such member shall be required to contribute to the later Fund from such date as the Commissioner may specify in each case.]

26.

Election for Continuance of Membership of Certain Other Provident Funds

(1)

Notwithstanding anything to the contrary contained in paragraph 25 a subscriber to a Provident Fund recognised under the Indian Income Tax Act 1922 (XI of 1922), or to which the Provident Funds Act 1925 (XIX of 1925), applies, may elect to continue as a subscriber thereto and if he does so, he shall not be required to or be entitled to become a member of the Fund.

(2)

The election referred to sub-paragraph (1) shall be made in Form C annexed hereto as soon as possible after he qualifies for membership of the Fund and shall be sent by the employer by registered post to the commissioner so as to reach him within six months of the date on which the Scheme is notified or within six weeks of the end of the period or

quarter in which he qualifies for membership of the Fund under paragraph 25, whichever is later.

[For Assam, see paragraph 5 of Appendix-I.

For Talcher, see paragraph 4 of Appendix-II.

For Rewa and Korea, see paragraph 4 of Appendix-III.

For J&K, see paragraph 4 of Appendix-IV],

(3)

[Where a subscriber to a recognised Provident Fund having elected to continue to subscribe to that Fund under sub-paragraph (1) and (2) makes an application to the Commissioner [@]

[Inserted vide S.R.O. 1472 dated 2nd July, 1955.]

for becoming a member of the Provident Fund established under this Scheme, the Commissioner may, if he is so satisfied, permit the subscriber to make a fresh election and where the subscriber is so permitted, the employer shall require the subscriber to make a fresh election in Form C and if he elects to join the Fund, he shall be deemed to have become a member of the Fund and shall be entitled to contribute to it from the date of such re-election. The election certificate together with a return, in duplicate, in Form H and the declaration of the subscriber in Form 'A' shall be forwarded to the Commissioner by the employer within a fortnight of the date of the said certificate. The said return in Form shall be marked 'Special' and shall be deemed to relate to the quarter in which the certificate in Form C is signed irrespective of whether the subscriber qualifies or does not qualify for bonus in that quarter.]

27.

Rates of Contributions

(1)

Contributions shall be payable under this Scheme in respect of every member, whether an initial member or not, employed directly or indirectly in any coal mine to which this scheme applies in respect of each month or week, as the case may be, for the whole or part of which he is so employed after the 31st of December, 1948 and shall comprise contribution by the member and contribution by the employer at the rates specified in the following table:

[Provided that in respect of every member who may qualify for membership of the Fund under sub-paragraph (3) of paragraph 25, contribution shall be payable under this scheme in respect of every month for whole or part of which he is so employed after the 31st December, 1956, and shall comprise contribution by the member and the employer at the rates specified in-]

[New proviso added vide S.R.O. 128 of 2nd January, 1957.]

(a)

[Table-I below till the 31st December, 1957.

[Substituted vide G.S.R. 1173 dated 1.9.62.]

(b)

Table-IV below during period from the 1st January, 1958 to the 30th September, 1962 ;

(c)

Table-V below from the 1st October, 1962 onwards.]

[Provided further that nothing contained in this paragraph shall be deemed to require contribution in respect of any member for any period before the commencement of the Coal Mines Provident Fund (Amendment) Scheme, 1961, during which he was a non-contributory member and contributions in respect of a member who, immediately before the commencement of the said Scheme, was non-contributory member, shall be payable in respect of each month or week, as the case may be, for the whole or part of which he is employed after such commencement.]

[Second proviso to para 27 (1) re-constituted vide S.O. 2620 dated 26.11.61.]

[For Assam, see paragraph 6 of Appendix-I.

For Talcher, see paragraph 5 of Appendix-II.

For Rewa and Korea, see paragraph 5 of Appendix-III].

Table I

[Rate of contribution for the period from 18th July 1955 to the 31st December 1957 in respect of monthly rated employees whose rates of basic wages exceed rupees thirty per month]

[The heading modified by Notification No. P.F. 2 (10)/52 dated 2nd July 1955 was reconstituted under Notification No. PF 1/2 (114)/56-1 dated 10th January 1958.]

The Coal Mines Provident Fund Scheme

**Total of monthly basic wages, dearness allowance and cash equivalent to concessional rations at the rate of fifteen rupees per month

Member's contribution

Employer's contribution

Total monthly contribution

Rs.

As.

Rs.

As.

Rs.

As.

Upto Rs. 10

0

10

0

10

1

4

Over Rs. 10 and upto Rs. 16

1

0

1

0

2

0

Over Rs. 16 and upto Rs. 24

1

8

1

8

3

0

Over Rs. 24 and upto Rs. 36

2

0

2

0

4

0

Over Rs. 36 and upto Rs. 54

3

0

3

0

6

0

Over Rs. 54 and upto Rs. 72

4

0

4

0
8
0
Over Rs. 72 and upto Rs. 88
5
0
5
0
10
0
Over Rs. 88 and upto Rs. 104
6
0
6
0
12
0
Over Rs. 104 and upto Rs. 120
7
0
7
0
14
0
Over Rs. 120 and upto Rs. 136
8
0
8
0
16
0
Over Rs. 136 and upto Rs. 150
9
0
9
0
18
0
Over Rs. 150 and upto Rs. 175
10
0
10
0
20
0
Over Rs. 175 and upto Rs. 200
12
0
12
0
24

0

[Over Rs. 200 and upto Rs. 240]

[These words and figures were inserted under the Ministry of Labour Notification No. P.F. 2(2) 51 dated 23rd April 1951.]

15

0

15

0

30

0

[Over Rs. 240]

[These words and figures were inserted under the Ministry of Labour Notification No. P.F. 2(2) 51 dated 23rd April 1951.]

@1/16th of the total of monthly basic wages,

dearness allowances and cash equivalent of concessional ration

at the rate of fifteen rupees per month

@1/16th of the total of monthly , basic wages,

dearness allowances and cash equivalent of concessional rations

at the rate of fifteen rupees per month

@2/16th of the total of monthly , basic wages,

dearness allowances and cash equivalent of concessional rations

at the rate of fifteen rupees per month rounded off to the

nearest rupees.

** These words and figures were inserted under the Ministry of Labour Notification No. P.F. 2(2) 51 dated 23rd April, 1951.

@ The words and figures "1/16th of basic wages" and "2/16th of basic wages rounded off to the nearest rupee" which were inserted vide notification no. PF 2(2)/51 dated 23.4.1951 were later substituted by S.R.O. 1472 dated 2.7.55.

Table II

[Employees Other than Monthly Rated]

[The words 'other employees' substituted by S.R.O. 1472 dated 2nd July 1955.]

Basic wages for **any week ending on or before the 17th July,

1955

Member's contribution

Employer's contribution

Total weekly contribution

Annas

Annas

Annas

Upto Re. 1

Nil

Nil

Nil

Over Re. 1 and upto Rs. 2

2

2

4

Over Rs. 2 and upto Rs. 3

3

3

6

Over Rs. 3 and upto Rs. 5

4

4

8

Over Rs. 5 and upto Rs. 7

6

6

12

Over Rs. 7 and upto Rs. 9

8

8

16

Over Rs. 9 and upto Rs. 11

10

10

20

Over Rs. 11

12

12

24

**The words 'the week' substituted by S.R.O. 1472 dated 2.7.55.

[Table III]

[Table III inserted by S.R.O. 1472 dated 2.7.1955.]

Rates of Contribution for any Wage Period Ending on or [between the 18th July, 1955 and the 26th January, 1958]

[These have been substituted for the words 'after the 18th July 1955' vide Notification No. P.F. 1/2(14)/56-1 dated 10.1.1958.]

Category of Employees

Rate of Provident Fund Contribution

Member's contribution per rupee of basic wage for the week

Employer's contribution per rupee of basic wage for the week

Annas

Annas

(a) Weekly paid employees-

(i) In the

states of Bihar & West Bengal

3

3

(ii) In all

other States

2 ½

2 ½

Members contribution per rupee of basic wage for the month

Employer's contribution per rupee of basic wage for the month

Annas

Annas

(b) Monthly paid employees whose basic rate of pay does not exceed Rs. 30 per mensem:

(i) In the

states of Bihar and West Bengal

3

3

(ii) In all
other States

2 ½

2 ½

[Table IV]

[Table IV inserted vide Notification No. P.F. 1/2 (114)/56-1 dated 10.1.1958.]

Rates of contribution for all members for any wage period ending on or [(between the 27th January, 1958 & the 30th September, 1962)]

[Substituted vide G.S.R. 1173 dated 1.9.1962.]

.

RATE OF PROVIDENT FUND CONTRIBUTION

MEMBER'S CONTRIBUTION

EMPLOYER'S CONTRIBUTION

6¼ % of total emoluments rounded off to the nearest naya
paisa.

6¼ % of total emoluments rounded off to the nearest naya
paisa..

[Table V]

[Table V inserted vide G.S.R. 1173 dated 1.9.1962.]

(Rate of contribution for all members for any wage period ending on or after the 1st October, 1962.)

Rate Of Provident Fund Contribution

RATE OF PROVIDENT FUND CONTRIBUTION

MEMBER'S CONTRIBUTION

EMPLOYER'S CONTRIBUTION

8 % of total emoluments

8 % of total emoluments

(2)

If any dispute arises as to whether a particular item of emoluments is a part of basic wages or not, the dispute shall be referred to the Chief Labour Commissioner (Central), whose decision shall be final.

(2A)

[If any doubt arises to whether a particular payment is a part of total emoluments or not, the matter shall be decided by the commissioner whose decision shall be final]

[Sub-para (2A) inserted vide Notification No. PF 1/2(114)/56-1 dated 10.1.1958.]

.

(3)

[For the purpose of ascertaining the amounts of a member's contribution or an employer's contribution payable in terms of Table-III, any fraction of a rupee in the member's basic wages for the wage period for which contribution is so payable shall, in the first instance, be rounded off to a rupee, even though the fraction is less than eight annas. Fractions of an anna both in the member's and the employer's contributions shall be ignored.

(4)

In calculating the total emoluments for the purpose of ascertaining the amount of a member's contribution or an employer's contribution in terms of Table-I the cash equivalent of concessional rations for the entire month shall be reduced by eight annas for each day of absence without pay irrespective of whether rations at concessional rates are drawn by the member or his dependents during such absence or not. Where a member leaves service in a coal mine before the end of a month or is appointed in a coal mine after the first day of month, reduction at the rate of eight annas per day shall be made from the cash equivalent of concessional rations at the rate of fifteen rupees per month in respect of the days of that month following or preceding such termination or joining service.]

[Sub-para (3) and (4) inserted vide S.R.O. 1472 dated 2.7.1955.]

(5)

[For the purpose of ascertaining the amount of a member's contribution or an employer's contribution payable in terms

of Table IV, [or Table V]

[Sub-para (5) of para 27 added vide Notification No. PF/lj2(114)j56-1 dated 10.1.1958.]

, total emoluments shall, in the first instance, be rounded off, to the nearest rupee by treating 50 naye paise or more as a rupee and ignoring sums less than 50 naye paise.]

27A.

[Voluntary contribution by members.

[Para 27A added vide G.S.R. 1063 dated 6.6.1963.]

(1)

A member may, if he so desires, contribute in excess of the compulsory contribution prescribed in Table-V under sub-paragraph (1) of paragraph 27, [at a rate not exceeding 12 % of total emoluments] rounded off to the nearest rupee.

(2)

A member desirous of making voluntary contribution under sub-paragraph (1) shall apply to the commissioner [or to any other officer subordinate to him and authorised by him in this behalf]

[Added vide G.S.R. 1063 dated 20.1.1964.]

in such form and manner as may be prescribed by [the Commissioner]

[The word 'him' substituted vide G.S.R. 121.]

.

(3)

The rate of voluntary contribution may be varied by a member at his own discretion within the maximum prescribed in sub-paragraph (1) not more than once in a currency year.

Provided that an intimation of the variation in the rate of voluntary contribution shall be sent by the member to the Commissioner [or to any other officer subordinate to him and authorised by him in this behalf]

[The word 'him' substituted vide G.S.R. 121 dated 20.1.1964.]

in such form and manner as may be prescribed by [the Commissioner.]

[The word 'him' substituted vide G.S.R. 121 dated 20.1.1964.]

(3A)

[The Commissioner or any other Officer so authorised by him may, on receipt of an application in such form as he may prescribe, permit a member to discontinue his voluntary contribution at any time.

(3B)

Where cessation of voluntary contribution is permitted under sub-paragraph (3A) within six months from the date of commencement of the Coal Mines Provident Fund (Amendment) Scheme, 1964, the Commissioner or any other Officer subordinate to him and duly authorised by him may, if the member so desires, allow the member to withdraw his voluntary contribution to the Fund made till the date from which cessation of voluntary contribution is permitted, together with such interest as may be admissible under paragraph 61.]

[Sub-paras (3A) and (3B) added vide G.S.R. 128 dated 20.1.1964.]

(4)

[The voluntary contribution applied for under sub-paragraph (2) or the variation thereof under sub-paragraph (3) or cessation thereof under sub-paragraph (3A), as the case may be shall take effect from the beginning of a prospective wage period, as may be directed in each case by the Commissioner or when so authorised by the Commissioner, by any officer subordinate to him.]

[Sub-para (4) re-constituted vide G.S.R. 128 dated 20.1.1964.]

(5)

The employer shall not be required to add any matching contribution on the voluntary contribution prescribed in sub-paragraph (1) by members in excess of their compulsory contribution prescribed in Table-V under sub-paragraph (1) of paragraph 27].

27B.

[Rounding off to the nearest rupee.

[Paragraph 27B inserted vide G.S.R. No. 1312 dated 29.12.84.]

- Each contribution under paragraphs 27 and 27-A shall be rounded off to the nearest rupee treating fifty paise or more as the next higher rupee and ignoring fractions of a rupee less than fifty paise.]

28.

[Payment of Contribution

[Paragraph 28, 29 and 30 substituted vide G.S.R. 492 dated 1.4.1966.]

- The employer shall, in the first instance, pay both the contributions payable by himself (in this Scheme referred to as the employer's contribution) and also on behalf of the members employed by him directly or by through a contractor the contribution payable by such members (in this scheme referred to as the member's contribution) irrespective of whether he or the contractor has recovered the member's contribution from their wages or whether the contractor has made the payment to the employer under paragraph 30 or not.

29.

Recovery of Member's Contribution

(1)

The employer, while paying any wages to a member employed by him directly and a contractor while paying any wages to a member employed by or through him, shall recover therefrom, the member's contribution for the period to which the wages relate.

(2)

Any sum deducted under sub-paragraph (1) by an employer or by a contractor from the wages of a member shall be deemed to have been entrusted to him for the purpose of paying the contribution in respect of which it was deducted.

(3)

Where an employer or a contractor proves to the satisfaction of the Commissioner that he, for reasons beyond his control or because of any bona fide error on the part of employees in charge of making recovery from the members, could not recover the member's contribution from the concerned member's wages for the period to which the contribution relates, the Commissioner may, at his discretion, permit recovery of arrears of such contributions from subsequent wages of the members concerned, in such number of instalments as he may deem proper.

30.

Duties of Contractors

(1)

Any sum recovered or due to be recovered by a contractor under sub-paragraph (1) of paragraph 29 alongwith the employer's contribution thereon and the charges payable under sub-paragraph (2) of paragraph 33A for meeting the cost of administration of the Fund shall be paid by him to the employer within three days from the date on which the wages to which such contributions and charges relate, become due for disbursement to the members under Section 5 of the Payment of Wages Act, 1936.

(2)

The contractor required to make any recovery under sub-paragraph (1) of paragraph 29 shall record all recoveries to be made under that sub-paragraph and also the employer's contribution payable thereon, in the appropriate columns of the register of wages in Form III appended to the Payment of Wages (Mines) Rules, 1956 framed under Payment of Wages Act, 1936 relating to the wage period to which such recoveries and contributions relate and shall furnish a copy of the said Form III to the employer within three days from the date on which disbursement of wages for that wage period becomes due under Section 5 of the Payment of Wages Act, 1936. He shall also furnish to the employer such other documents and information as the employer may require of him for the purpose of submitting returns under this Scheme or generally for the purpose of implementing this Scheme.]

31.

Payment of contribution in respect of Initial members.

(1)

In respect of all initial members of the Fund employed by an employer in West Bengal and Bihar during the period from the twelfth of May, 1947 to the thirtieth of September, 1948 and by an employer in Central Provinces and Berar and Orissa during the period from the tenth of January, 1948 to the thirtieth of September, 1948 the employer shall be required to pay for the credit as member's contribution to the Fund the amounts deducted by him under sub-paragraph (3) of paragraph 7 of the Coal Mines Bonus Scheme from the bonus payable, together with an equal amount in account of the employer's contribution and also an administrative charge equal to 5 per cent of the total amount of the employer's and member's contributions.

(2)

The payment referred to in sub-paragraph (1) shall be made by deposit in such Government treasury or branch of the

Imperial Bank of India and under such head of account and at such time as the Central Government may direct. The original treasury or bank challan shall be sent to the Commissioner with a statement in Form 'B' annexed hereto within one week of the date of the deposit.

Note: 1. - The employer's as well as member's contribution shall be payable in respect of all initial members irrespective of whether or not the initial member is in the services of the employer at the time when the payment falls due.

Note: 2. - If the total amount of the member's as well as his employer's contribution has been refunded by the employer to any member at the time of his leaving the coal mining industry before the 1st October, 1948 no contribution shall be payable to the Fund by the employer in respect of such member. In all other cases employer's as well as the member's contribution shall be payable to Fund.

Note: 3. - For the sake of removal of doubt, it is hereby stated that no contribution under paragraph 27 or under this paragraph, shall be payable in respect of the period from the first of October, 1948 to the thirty first of December, [Paragraph 31 omitted for Assam, Talcher, Rewa and Korea and J&K see paras 7, 6, 7 and 5 of Appendix J, II, III & IV respectively.]

[For Talcher also see paragraph 9 of Appendix-H.]

31A.

[Transfer of accumulation from other Provident Funds of coal mines.

[The new paragraph 31A, 31B and 31C inserted by G.S.R. 492 dated 1.4.66.]

(1)

Where an employee who is a subscriber to any provident fund of the coal mine in which he is employed becomes a member of the Fund he shall, if he has not withdrawn his accumulations in that Provident Fund before 1st April, 1966, apply in form and in such manner as the Commissioner may specify, for transfer of his accumulations in the Provident Fund of the coal mine standing to his credit to the Fund.

(2)

The Commissioner or, where so authorised by him, any officer subordinate to him shall, on receipt of an application under sub-paragraph (1), call upon the employer or the authority administering the Provident Fund of the coal mine, as the case may be, to transfer to the Fund the accumulations of the member under sub-section(1) of Section 3-D of the Act.

(3)

The employer or the authority called upon to transfer a member's accumulations under sub-paragraph(2) shall, within 3 months from being called upon, transfer to the Fund all contributions of the member and of the employer on his behalf paid or payable till the date of the member's joining the Fund or, till the date of his leaving service of the coal mine to which that Provident Fund relates whichever is earlier, together with all accretions and interest upto the end of the month preceding the month in which the accumulations are transferred to the Fund.

(4)

Any amount required to be transferred to the Fund under sub-paragraph (3) shall be paid to the Fund by means of account-payee cheque or bank drafts drawn in favour of the Coal Mines Provident Fund Account No. 1 or, as the case may be, by transferring to the Board any Central Government securities in which accumulation of Provident Fund may have been invested.

(5)

Where any payment under sub-paragraph (4) is made by an outstation cheque the Bank collection charges thereon shall be paid by the Fund out of its Reserve Account referred to in sub-paragraph (4) of paragraph 63.

(6)

Where any payment under sub-paragraph (4) is made by transferring Central Government securities, such securities shall be acceptable by the Fund at their cost price, provided the cost price does not exceed the face value thereof and where the cost price exceeds the face value, the securities shall be accepted at their face value.

(7)

The employer or the authority making any payment under sub-paragraph (3) shall, within 15 days of the payment, submit a statement in such form and in such manner as the Commissioner may specify showing the amount of member's contribution, employer's contribution and interest transferred to the Fund for each member alongwith written acceptance of the concerned members confirming that the amount transferred has been accepted by them as correct.

(8)

A receipt granted by the commissioner, or where so authorised by him, by any officer subordinate to him for the accumulations transferred to the Fund shall be a sufficient discharge of the liability of the employer or the authority making the transfer under sub-paragraph (3) to the extent of the amount transferred and the members whose accumulations are transferred shall not be required to give any letter of discharge or receipt for such amounts.

(9)

Any amount transferred to the Fund under sub-paragraph (3) for a member shall be credited to his accounts in the Fund and shall thereafter be treated as his accumulations in the Fund for all purpose of this Scheme.

(10)

Any accumulations transferred under sub-paragraph (3) for a member shall be deemed to be his contributions for the currency period in which the amount is received in the Fund and such contributions shall, notwithstanding the provisions contained in paragraph 61, earn interest in the Fund from the beginning of the month immediately following the month in which the amount is received in the Fund.

31B.

Transfer of accumulations from Provident Funds of establishments other than coal mines.

(1)

Where an employee who is subscriber to any Provident Fund of an establishment, not being a coal mine to which this Scheme applies leaves his employment in that establishment and obtains re-employment in a coal mine and becomes a member of the Fund, he may, if he so desires, apply in such form and in such manner as the Commissioner may specify, for the transfer of his accumulations in the Provident Fund of the establishment to the Fund.

(2)

On receipt of an application under sub-paragraph (1) the Commissioner or, where so authorised by him any other officer subordinate to him shall ascertain from the authority administering the Provident Fund to which the member was subscribing prior to his joining the Fund whether the rules of that Provident Fund permit the desired transfer.

(3)

Where rules of the Provident Fund to which the member was subscribing before joining the Fund permit the desired transfer, the Commissioner or where so authorised by him, any other officer subordinate to him shall call upon the authority administering that Provident Fund to transfer to the Fund the member's accumulations in that Provident Fund. Where an authority administering a Provident Fund has been called upon to transfer a member's accumulations under this sub-paragraph, the provisions contained in sub-paragraphs (3) to (10) of paragraph 31A shall apply in the same manner as if the Provident Fund from which accumulations are to be transferred, was that of a coal mine.

31C.

Transfer of Accumulations from the Fund to Other Provident Funds.

(1)

Where a member of the Fund leaves his employment in a coal mine and obtains re-employment in any other establishment not being a coal mine, to which this Scheme applies, and becomes a subscriber to any Provident Fund of that establishment he may, if he so desires, apply in such form and manner as the Commissioner may specify for the transfer of his accumulations in the Fund to the Provident Fund of the establishment in which he is re-employed (hereinafter referred to as the new establishment).

(2)

On receipt of an application under sub-paragraph (1) the Commissioner or, where so authorised by him, any officer subordinate to him shall ascertain from the authority administering the Provident Fund of the new establishment whether the rules of the Provident Fund of the new establishment permit acceptance of accumulations transferred from other Provident Funds.

(3)

Where the rules of the Provident Fund of the new establishment permit acceptance of the transferred accumulations, the Commissioner or where so authorised by him, any officer subordinate to him shall transfer the amount standing to the credit of the member in the Fund together with interest upto the end of the month preceding the month in which the transfer is effected and shall send to the authority administering the Provident Fund of the new establishment a statement in such form as the Commissioner may specify showing the amount of member's contribution, employer's contribution and interest transferred.

(4)

The transfer of accumulation under sub-paragraph (3) shall be made by means of an account payee cheque in favour of the authority administering the Provident Fund to which the amount is transferred and in the event of any Bank collection charges being demanded by the authority administering the Provident Fund of the new establishment the same shall be paid out of the Reserve Account of the Fund referred to in sub-paragraph (4) of paragraph 63.

(5)

The receipt granted by the authority administering the Provident Fund to which any amount is transferred under this paragraph shall be a sufficient discharge of the liability of the Fund to the member whose accumulations are transferred to the extent of the amount transferred.]

32.

Lumpsum Contribution.

(1)

Every employer shall be required to pay for credit to the "Reserve Account" of the Fund a consolidated contribution in respect of the period from the twelfth of May, 1947 in the case of coal mines in West Bengal and Bihar and from the tenth of October, 1947 in the case of coal mines in the Central Provinces and Berar and Orissa upto thirty first of December, 1948 at such rate per ton of coal raised in the coal mine during the period concerned as the Central Government may specify in this behalf:

Provided that any sum deposited under paragraph 31 as the employer's contribution and the administrative charge shall be allowed as a deduction from the amount which would otherwise be required to be paid under this paragraph.

(2)

The payment referred to in sub-paragraph (1) shall be made by deposit in such Government treasury or branch of the Imperial Bank of India and under such head of account and at such time, as the Central Government may direct. The original treasury or bank challan shall be sent to the Commissioner, with a statement in such Form as he may specify, within one week of the date of the deposit.

[For Assam, see paragraph 8 of Appendix-I.

For Talcher, see paragraph 7 of Appendix-II

For Rewa and Korea, see paragraphs 7 and 7A of Appendix-III.

For J&K, see paragraph 5 of Appendix-IV].

33.

Mode of Payment of Contribution [in respect of any period of currency commencing prior to the 1st of April, 1953]

[Inserted vide S.R.O. 3306 dated 22.10.1954.]

- Affixing of Stamps.

(1)

Every contribution payable under this Scheme [in respect of any period of currency commencing prior to the 1st of April, 1953]

[Inserted vide S.R.O. 3306 dated 22.10.1954.]

shall, except as otherwise provided herein, be paid by affixing stamp in the space provided therefor in the Contribution Card maintained for each member in Form 'D' or 'E' annexed hereto.

(2)

An employer who is liable to pay contribution in respect of [such period of currency for]

[Inserted vide S.R.O. 3306 dated the 22.10.1954.]

any member employed by him, shall pay the contributions in the following manner ;-

The employer shall before paying the member the wages in respect of any part of the period for which contributions are payable, affix to the card of the member a stamp or stamps in payment of the contributions due in respect of that period ;

Provided that it shall be the duty of the employer in any case-

(a)

before the termination of the employment, except where the employment is terminated by the member without any notice or intimation to the employer in which case the employer shall pay contributions within fourteen days of the termination of the employment,

(b)

within six days after the expiration of the period of currency of the card,

(c)

if the wages have become due but have not been paid, within forty eight hours after receiving a request in that behalf from the member, to affix to the card of the member a stamp or stamps in respect of the period, ending at the date of such termination, expiration or request.

(3)

In respect of [any currency period commencing before the 1st April, 1953 or part thereof]

[The words 'the period' substituted by S.R.O. 3306 dated 22.10.1954.]

during which the contribution card of the member has not been received by an employer from the last employer or the Commissioner, the employer shall prepare an emergency card in Form F annexed hereto and shall pay any contribution payable in respect of the member by affixing a stamp or stamps to such a card.

[Provided that the Commissioner may direct that any payment under this paragraph shall be made in one or the other modes specified in clauses (i) to (iv) of sub-paragraph (3) of paragraph 33A of this Scheme.]

[Proviso inserted vide S.R.O. 1398 dated 6.6.1956.]

For J&K see Paragraph 5 of Appendix-IV.

33A.

[Mode of Payment of contribution for any period of currency commencing on or after the 1st April, 1953 - Payment in cash.

[Inserted vide S.R.O. No. 3306 dated the 22nd October 1954.]

(1)

Every contribution payable under this Scheme during a period of currency commencing at any time on or after the 1st April, 1953, shall be paid monthly in respect of each colliery separately on or before the date specified in sub-paragraph

(2). The contributions shall be calculated.]

[as provided in this Scheme]

[The words 'on the basis of wages payable' substituted by S.R.O. 1472 dated 2nd July 1955.]

for all wage periods ending in a month.

(2)

The employer shall pay to the Fund both the employer's contribution as well as the member's contribution together with an amount [calculated at the rates mentioned in paragraph 33B of this Scheme]

[Inserted vide S.R.O. 1852 dated 20th August 1955 in substitution of the words 'equivalent to five per centum of the total amount of contribution'.]

to defray the cost of administration of the Fund on or before [the last day]

[The words and figure, 'The 15th day' substituted vide O.S.R. 1726 dated 11.9.68.]

of every month following the month to which the contributions relate.

(3)

[Every payment under sub-paragraph (2) shall be made in one or the other of the methods specified below :-

(i)

By means of crossed account-payee cheque drawn in favour of the Coal Mines Provident Fund Account No. I.

Provided that where payment is made by means of a cheque of a Bank situated in a place, other than Dhanbad, Bank collection charges shall be added to the amount of the cheque or remitted separately when so directed by the Commissioner;

(ii)

By means of crossed account-payee bank drafts on the State Bank of India, Dhanbad, drawn in favour of the Coal Mines Provident Fund Account No. 1.

(iii)

By deposit of the amount in cash either in the State Bank of India, Dhanbad, or in the office of the Commissioner at Dhanbad for being credited to the Coal Mines Provident Fund Account No. I.]

(4)

[For all payments made by an employer under sub-paragraph (3) upto and for the month of May, 1963 a monthly abstract in Form 'P' annexed hereto and in Form 'P' (Revised) annexed hereto in respect of all payments made thereafter shall be sent by an employer in duplicate separately in respect of each colliery to the Commissioner by registered post or by a messenger on or before [the last day]

[Sub-para (4) of para 33A reconstituted vide G.S.R. 1063 dated 6.6.1963.]

of each month following the month to which such payments relate togetherwith the appropriate cheques, draft, receipted pay-in-slip or [cash receipts]

[The words 'original receipted challans' substituted vide G.S.R. 1716 dated 11.9.68.]

in taken of the employer having made such payment.]

[Sub-para (3) substituted vide G.S.R. 1726 dated 11.9.68.]

For J&K, See Paragraph 6 of Appendix-IV.

["Provided that all payments made by employer under sub-paragraph (3) of this paragraph and under paragraph 7(2) of the Coal Mines Family Pension Scheme shall be sent in a Form 'PP' in respect of all payments made after the month of March, 1988 by the employer, in triplicate, separately in respect of each colliery to the Commissioner or such other officer as may be authorised by the Commissioner, by registered post, or by a messenger on or before the last day of each month to which such payments relate together with the appropriate cheques, drafts, receipted pay-in-slip, or cash receipt in token of employer having made such payment, as the case may be"]

[Inserted vide G.S.R. 97 dated 13.2.88.]

.

33B.

[Rate of administrative charge.

[Inserted vide S.R.O. 858 dated 20.8.1955.]

(1)

The amount for defraying the cost of administration of the Fund payable under sub-paragraph (2) of paragraph 33A of this Scheme shall be calculated at the following rates :-]

Contribution

Rate of administrative charge

(i)

Provident Fund contribution payable for any period

upto the 17th July 1955.

Five per centum of the total amount of member's and employer's contributions.

(ii)

Provident Fund contribution payable for any period[between the 18th July, 1955 and the 30th Sept., 1962]

[Substituted and inserted vide G.S.R. 1173 dated 1.9.1962.]

.

Three per centum of the total amount of member's and employer's contributions.

(iii)

Provident Fund contribution payable for any period[between the 1st October, 1962 and 31st January, 1963]

[The words 'after the 30th September, 1962' substituted vide G.S.R. 1428 dated 26.8.1963.]

Two and half per centum of the total amount of member's and employer's contributions.

(iv) [

[Clause (iv) inserted vide G.S.R. 147 dated 18.1.1963.]

Provident Fund contribution[not including the voluntary contribution by members in excess of their compulsory contribution prescribed in Table - V under sub-paragraph(1) of paragraph 27]

[Added vide G.S.R. 1063 dated 6.6.1963.]

payable for any period after the 31st January, 1963[but before the 1st June, 1973]

[Inserted vide Notification No. R-11013(2)/73-PF I(i) dated 8.5.73.]

.

Two and point four (2.4) per centum of the total amount of member's and employer's contributions].

(v) [

[Inserted vide Notification No. R-11013(2)/73-PF I(i) dated 8.5.73.]

Provident Fund contribution not including the voluntary contribution by members in excess of their compulsory contribution prescribed in Table-V under sub-paragraph (1) of paragraph 27 payable for any period after the 1st June, 1973,[but before the 31st March, 1980]
[Inserted vide G.S.R. 136 dated 7.2.1981.]

Three and point five (3.5) per centum of the total amount of member's and employer's compulsory contributions.]

(vi) [

[Inserted vide Notification No. R-11013(2)/73-PF I(i) dated 8.5.73.]

Provident Fund contribution not including the voluntary contributions by members in excess of their compulsory contribution prescribed in Table-V under sub-paragraph (1) of paragraph 27 payable for any period after the 31st March, 1981.

Three (3) per centum of the total amount of member's and employer's compulsory contributions].

(2)

The rate mentioned in clause [(vi) of sub-paragraph (1) may]

[Inserted vide G.S.R. 136 dated 7.2.1981.]

, from time to time, be reviewed by the Central Government in consultation with the Board.

34.

Stamps to be affixed by employer only and stamps which have previously been affixed or are cancelled or defaced not be affixed.

- No persons other than an employer shall affix to the card any stamp relating to this Scheme and no person shall affix to a card any stamp which has been cancelled or defaced or which has been previously affixed to a card to which stamps are required or authorised to be affixed for the purpose of this Scheme.

35.

Cancellation of Stamps.

- Save as otherwise expressly provided in this Scheme, an employer shall immediately after affixing any contribution stamp to a card cancel the stamp by stamping with a metallic die with black indelible ink across the face of the stamp the date upon which it is affixed and the employer's registered number.

For J & K, see Paragraph 7 of Appendix-IV.

36.

Writing on Contribution Cards and Stamps.

(1)

An employer may, if he thinks fit, inscribe upon the card of any member employed by him, but only in such manner as may easily be erased or removed, the number of that member upon the pay list or in the books of the employer.

(2)

Save as otherwise expressly provided in this Scheme or as specially authorised by the Central Government, no writing or other mark shall be made at any time upon the card or stamps until after the surrender of the card to the Commissioner.

(3)

[Subject to the provisions of this paragraph, no overwriting or erasure mark shall be allowed to be made in any entry in the contribution cards of a member relating to the [basic wages]

[Inserted vide S.R.O. 3306 dated 22.10.54.]

or the total of monthly basic wages, dearness allowance and cash equivalent of concessional rations at the rate of fifteen rupees per month [or total emoluments as the case may be]

[Inserted vide notification no. PF 12 (114)/56-1, dated 10.1.58.]

of such member and the contributions paid in respect of him :]

Provided that where any alteration or amendment of such entry becomes necessary in the opinion of the Manager,

accountant or the head clerk of a coal mine, such alteration or amendment shall be made in the contributions card by scoring through the incorrect entry and substituting therefor a correct entry, which will be duly initialled by the manager, accountant or the head clerk, as the case may be :

Provided further that where any adjustment on account of any excess or short payment becomes necessary a plus or minus entry, as the case may be, shall be recorded in the appropriate column of Contribution Card.

37.

Declarations by Employees and Preparation of Contribution Card.

- Every person who is required to be a member or an initial member of the Fund shall be asked forthwith by employer to furnish and shall on such demand furnish to him, for communication to the Commissioner, particulars concerning himself and his nominees in Form 'A' annexed hereto. The particulars shall be entered in his own hand writing or if he is unable to write, shall be ascertained from him by the employer and entered in Form A. The employer shall obtain the signature and/or the thumb impression of the person and sign the certificate on the form at the place provided for the purpose and shall immediately thereafter prepare in respect of the person a contribution card**:-

** (a) in respect of a period of currency commencing before the 1st April, 1953, but before the 1st July, 1964, in Form E [].

(b)

[in respect of any period of currency commencing on or after the 1st April, 1953 but before the 1st July, 1964, in Form D (revised) or in Form E (revised) annexed hereto as the case may be.]

[Clause (b) of para 37 substituted and clause (c) added vide G.S.R. 1203 dated 20.8.1964]

[Provided that in the case of a member permitted to make voluntary contribution under paragraph 27 A, during any such currency period, the contribution card shall be opened in Form D(V) or E(V) annexed hereto as the case may be, with effect from the date of commencement of voluntary contribution]

[Proviso to clause (b) originally inserted vide G.S.R. 1063 dated 6.6.1963 and then substituted vide G.S.R. 1203 dated 20.8.64.]

.

(c)

[in respect of any period of currency commencing on or after the 1st July, 1964 [but before the 1st April, 1968]

[The words 'and record in the appropriate columns of the contribution card entries showing the amount of wages earned by such employee in every month or week' substituted vide Notification No. PF 1/2 (114)56 I dated 10.1.1958.] in Form T or in Form U annexed hereto as the case may be.]

(d)

[in respect of period of currency commencing on or after the 1st April, 1968 in Form T (Revised) or Form U (Revised) annexed hereto as the case may be.]

[Clause (d) inserted vide G.S.R. 2491 dated 21.10.69.]

** The words 'in Form D and E as may be appropriate' substituted by S.R.O. 3306 dated 22.10.1954.

[For Assam, see paragraph 9 of Appendix-I.

For Talcher, see paragraph 8 of the Appendix-II.

For Rewa & Korea, see paragraph 8 of Appendix-III].

37A.

[Method of opening of Contribution Cards for periods of currency commencing on or after the 1st of April, 1953 [but before the 1st July, 1964]

[Para 37A inserted vide S.R.O. 3306 dated 22.10.1954.]

.

- Every employer shall in respect of every member in a coal mine to which this Scheme applies other than an excluded employee shall on or before the commencement of any period of currency beginning on or after the 1st of April, 1953, open a new Contribution Card in Form D (Revised) or E (Revised) [or D(V) or E(V) annexed hereto, as the case may be [and record in the contribution card in the columns bearing "wages earned" and 'contributions' entries showing the amount of wages in respect of wage periods ending on or before the 26th January, 1958 or total emoluments in respect of wage periods ending on or after the 27th January, 1958, as the case may be, earned by such employees in every month or week]

[The words 'and record in the appropriate columns of the contribution card entries showing the amount of wages earned

by such employee in every month or week' substituted vide Notification No. PF 1/2 (114)56 I dated 10.1.1958.]
and the total amount of the member's contribution and the employer's contribution payable in respect of each month or week for such employee.]

[Provided that in the case of monthly rated employees whose basic rate of pay exceeds Rs. 30/- per month, the total of monthly basic wages, dearness allowance and cash equivalent of concessional rations at the rate of fifteen rupees per month calculated according to sub-paragraph 4 of paragraph 27 shall be recorded in the contribution card in Form E (Revised) in the column bearing the heading "wages earned" [against contribution for any wage-period ending on or between the 18th July, 1955 and the 26th January, 1958. The words "Basic rate above rupees thirty" shall be endorsed at the top of such contribution cards relating currency period beginning before the [1st January, 1958]

[Inserted vide S.R.O. 1472 dated 2nd July, 1955.]

[Provided further that in the case of a member permitted to make voluntary contribution under paragraph 27 A the member's contribution and his employer's contribution shall be recorded separately by the employer in the member's contribution card in Form D(V) or E(V) as the case may be.]

[2nd proviso to para 37A added vide G.S.R. 1063 dated 6.6.1963.]

For J&K see Paragraph 7 of Appendix-IV.

37B.

[Method of opening contribution cards for periods of currency commencing on or after the 1st of July, 1964.

[Para 37B first added vide G.S.R. 1203 dated 20.8.1964 and then substituted vide G.S.R 2491 dated 21.10.69.]

(1)

Every employer shall, in respect of every member in coal mine to which this Scheme applies on or before the commencement of the quarter of period of currency, as the case may be, open :-

(i)

Contribution cards in Form 'T' or Form 'U' annexed hereto as the case may be, in respect of any period of Currency commencing on or after the 1st July, 1964 but before the 31st March, 1968 for the first quarter of such currency period.

(ii)

[Contribution cards in Form 'T' (Revised) or Form 'U' (Revised) annexed hereto, as the case may be, in respect of any period of currency commencing on or after the 1st April, 1968, where the member is not eligible to join the Coal Mines Family Pension Scheme under paragraph 3 of the Coal Mines Family Pension Scheme, 1971 (hereafter referred to as the Pension Scheme):

(iii)

Contribution cards in Form 'X' or Form 'Y' annexed hereto, as the case may be, in respect of any period of currency commencing on or after 1st April, 1972, where the member is eligible to join the Coal Mines Family Pension Scheme under paragraph 3 of the Pension Scheme].

(iv)

[Ledger, in duplicate, in respect of each member for currency period commencing from the 1st April, 1988 onwards in Form 'YY'.]

[Inserted vide G.S.R. No. 97 dated 13.2.88.]

(2)

[Every employer shall record every week in the contribution card in Form 'YY'

(i)

the total emoluments earned by the member:

(ii)

member's own contributions:

(iii)

employer's contribution payable to the member

(iv)

refund of advances, if any;

in respect of the wage periods within the quarter or currency period,

Provided that for the purpose of posting member's own contribution and employer's contribution in the contribution cards in Form 'YY', each such contribution shall be split up into contribution towards the Pension Scheme at the rate of 1.1/6%

of total emoluments and the balance of contribution towards the Coal Mines Provident Fund in case of persons who are members of the Coal Mines Family Pension Scheme and each such contribution shall be posted in the contribution cards in Form 'YY' in the space already provided for the purpose.]

[Substituted vide GSR No. 97 dated 13.2.88.]

38.

Submission of return of qualified employees.

- [(1) Every employer shall send by registered post or through a messenger to Commissioner a return in (triplicate)-

(i)

in Form 'H' annexed hereto within six weeks from the end of every quarter commencing on or before the [1st October, 1961] but not before the [1st October, 1948]

[1st July 1949' for Assam and Talcher vide G.S.R. 48 and 50 respectively dated 28.12.62 1st January 1950 for Rewa & Korea vide G.S.R. 49 dated 28.12.62.]

(and also of every quarter commencing on or after the 1st January, 1970) intimating the particulars of employees who qualified for the membership of the Fund during the quarter to which the return relates;

(ii)

in Form 'H' (Revised) annexed hereto within fifteen days from the commencement of every month from [February, 1962]

[Clause (i) substituted vide Notification No. 11011 (1)72-PF I (i) dated 8.8.72.]

[to December, 1969]

[The word 'on words' omitted vide S.O. 54 dated 2.1.70.]

[()]

[() added vide S.O. 54 dated 2.1.70.]

intimating the particulars of employees who qualified for membership of the Fund under paragraph 25A during the preceding month;

(iii)

[in Form 'HH' within fifteen days of the completion of calender quarter following quarter ending March, 1988 showing the particulars of employees, who qualified for membership of the Fund under para 25A during the preceding month and also the details of person whose services ceased on account of superannuation, resignation, death, medical unfitness or for another reason.]

[Inserted vide G.S.R. 97 dated 13.2.88.]

(2)

[Declaration in Form 'N' furnished in duplicate by persons qualifying for the membership of the Fund shall accompany the returns in Form 'H' or Form 'R' (Revised) as the case may be. One copy of declaration in Form 'A' shall be retained in the Regional Office and the duplicate copy duly authenticated by the Regional Commissioner shall be returned to the employer who shall make over the same to the member or if he is a minor, to his guardian, as the case may be, for his record.]

[Sub-paragraph 2 of para 38 substituted vide G.S.R. 463 dated 24.3.79.]

38A.

[Maintenance of abstract attendance register for the purpose of deciding eligibility of employees to become members of the Fund.

[Para 38A inserted vide S.O. 2620 dated 26.11.61.]

- Every employer shall [till the 31st December 1969]

[Para 38 reconstituted vide S.O. 2620 dated 26.11.1961]

maintain in respect of every person employed by him who is not a member of the Fund on the day the [Coal Mines Provident Fund (Amendment) Scheme, 1951]

[Coal Mines Provident Fund (Assam) Second Amendment Scheme, 1962 'for Assam vide G.S.R. 48 dated 28.12.62, Coal Mines Provident Fund (Talcher) Second Amendment Scheme, 1962' 'for Talcher vide G.S.R. No. 50 dated 28.12.62 'Coal Mines Provident Fund (Rewa & Korea) Second Amendment Scheme, 1962' 'for Rewa & Korea vide G.S.R. 48 dated 28.12.62.]

comes into force and also in respect of every person employed by him after such day who gives a negative declaration in Form 'Q' in terms of paragraph 45, an abstract attendance register in Form 'S' annexed hereto and shall make entries therein every month from [August, 1961]

[‘August 1961’ for Assam Talcher and Rewa & Korea vide G.S.R. 48, 50 & 49 respectively dated 28.12.62.]
or the month in which the employee is appointed, whichever is later, until the employee qualifies for membership of the Fund or ceases to be employed in the Coal Mine as the case may be ;
Provided that register in Form ‘S’ for an employee shall be preserved by the employer till the expiry of at least one year from the month in which his name is included in the return in Form ‘R’ (Revised) or he leaves service, as the case may be.]

[For J&K see paragraph 7 of Appendix-iv]

39.

Allotment of Account Number.

- On receipt of the return required under paragraph 38 the Commissioner shall promptly allot an Account Number to each person who has qualified to become a member and shall communicate the Account Number to the employer []

[The words ‘He shall also arrange to have the person so qualified photographed as soon as possible and prepare Identity Cards for them in Form G annexed hereto two copies of the photographic prints shall be taken from the same negative and shall be affixed on the Identity Cards and Declaration Forms. The Identity Card shall hereafter be sent to the employer, who shall sign and the member shall sign or affix his thumb impression across the edge of the photograph so as to prevent its subsequent replacement. Omitted vide Govt. of India, Ministry of Labour, Notification No. PF 2(6)/52 dated the 24th November, 1952.]

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40.

Currency of Contribution Cards.

- The Contribution Cards issued under this Scheme shall have the period of currency of one year ;
Provided that this period of one year may commence and terminate at such different times for coal mines in different areas as may be decided by the Board from time to time ;

[Provided further that for the cards issued-

(i)

in respect of the first contribution period or

(ii)

in respect of any other contribution period as the Board may direct.

(the period of currency may be longer or shorter than the period of one year).]

[Second proviso substituted vide G.S.R. 2491 dated 21.10.1969.]

[Provided also that each currency period commencing on or after the 1st of July, 1964 [but before the 1st April, 1968]

[Third proviso to para 40 added vide G.S.R. 1203 dated 20.8.1964.]

shall be divided into four quarters of three consecutive months each and for every member there shall be a separate Contribution Card in Form T or U, as the case may be, for each quarter.]

41.

[Renewal of Contribution Cards.

[The proviso to first inserted vide S.R.O. 3306 dated 22.10.54 and then amended vide G.S.R. 1063 dated 6.6.63. Thereafter the whole para 41 inclusive of the proviso thereto substituted vide G.S.R. 1203 dated 20.8.1964.]

- Every employer shall on or before the expiration of the period of currency and in the case of currency periods commencing on or after the 1st of July, 1964 [but before the 1st April, 1968], on or before the expiration of each quarter in the currency period prepare in respect of each member employed by him a contribution card [or the ledger in Form ‘YY’ in such form as may be appropriate under paragraph 37]

[Inserted vide G.S.R. 97 dated 13.2.88.]

[or paragraph 37B as the case may be]

[Added vide Notification No. 11011(1)/73-PF I(1) dated 8.8.79.]

for the next currency period or quarter as the case may be].

42.

[Submission of Contribution Cards to the Commissioner.

[Para 42 first amended vide S.R.O. 3206 dated 22.10.54 and sub-para (2) added thereto vide G.S.R. 1063 dated 6.6.63. Thereafter whole para 42 reconstituted vide G.S.R. 1203 dated 20.8.64.]

(1)

Every employer shall submit to the Commissioner or to such other Officer subordinate to him as may be authorised by him in this behalf, contribution cards-

(i)

in Form D or E, together with emergency cards, if any, in respect of currency periods commencing before the 1st April, 1953 within six weeks from the date of expiration of the currency period alongwith a statement in duplicate in Form I annexed hereto;

(ii)

in Form D (Revised) or E (Revised) in respect of currency periods commencing on or after the 1st April 1953 but before the 1st July, 1964, within six weeks from the date of expiration of the currency period together with a statement in duplicate in Form I (Revised) annexed hereto;

(iii)

in Form D(V) or E(V), for members making voluntary contribution under paragraph 27 A in respect of currency period commencing before the 1st of July, 1964, within six weeks from the date of expiration of the currency period together with a statement in duplicate in Form I (V) annexed hereto;

(iv)

in Form T or U in respect of each quarter in currency periods commencing on or after the 1st July, 1964 [but before the 1st April, 1968] within a month from the date of expiration of the quarter to which the contribution cards relate together with a statement in duplicate in Form V annexed hereto.

(v)

[in Form 'T' (Revised) or in Form 'V' (Revised) in respect of each currency period commencing on or after the 1st April, 1968, within six weeks from the date of expiration of the currency period together with a statement in duplicate in Form 'V' annexed hereto.]

[Clause (V) inserted vide G.S.R. 2491 dated 21.10.69.]

(vi)

[in Form X or in Form Y in respect of each currency period commencing on or after the 1st April, 1972 in the case of members who have joined the pension scheme, within six weeks from' the date of expiration of the currency period together with a statement in triplicate in Form V (Revised) annexed hereto.]

[Sub-clause (vi) to para 42(1) inserted vide Notification No. 11011(1)/72 PF I (i) dated 8.8.72.]

(2)

In the case of a member who starts making voluntary contribution at any time of a currency period commencing before the 1st of July, 1964, his contribution card in Form O (Revised) or E (Revised) as the case may be, relating to that part of the currency period in which the member had not made any voluntary contribution and his contribution card in Form O(V) or E(V) as the case may be, for that part of the currency, period in which the member had made the voluntary contribution, shall be linked together by carrying forward the contribution in the former to the latter. Such linked-up cards shall be regarded as contribution cards in Forms D (V) or B(V), as the case may be, for submission under sub-paragraph (1).

(3)

All contribution cards and the statements in Forms I, I(Revised), I(V) [V or V (Revised)]

[[substituted vide Notification No. 11011(1)/72 PF I (i) dated 8.8.72]

shall be sent to the Commissioner or to such other officer subordinate to him as may be authorised by him in this behalf, either by registered post or through a messenger.]

(4)

[Before submission of any contribution card in Form 'T' (Revised), Form U (Revised), Form X or Form Y under sub-paragraph (1) for any currency period ending on or after the 31st March, 1973, every employer shall fill in the counterfoil of the contribution card and make over the same to the concerned member who shall retain the same for his own reference.]

[Sub-para (4) to para 42 added vide Notification No. 11011(1) 72-PF I (i) 8.8.72.]

["(5) Every employer shall submit statement of contribution in Form 'VV' for currency period commencing from the 1st April, 1988 onwards calculated on the basis of ledger in Form 'YY' together with reconciliation of the statement appended thereto."]

[Inserted vide G.S.R. 97 dated 13.2.88.]

[43. Omitted.]

[Paragraph 43 omitted vide Government of India, Ministry of Labour Notification No. PF 2 (16) 52 dated the 8th July, 1952.]

44.

[Contribution Cards of Absentee Members-Submission to the Commissioner.

[Paragraph 44 reconstituted vide Government of India, Ministry of Labour Notification No. PF 2(16) 52 dated the 8th July, 1952.]

(1)

where an employee leaves service in a coal mine [at any time during any period of currency commencing before the 1st April, 1956] without any notice to employer, the employer shall keep with himself his contribution card until the end of the calendar month following that in which the employee left such service and if during such period the employee is not re-employed in the coal mine the employer after making the necessary entries therein shall send the card by registered post or through a messenger to the Commissioner accompanied by a statement in duplicate in Form J annexed hereto. Provided that if during any such period the employee is employed in another coal mine and the employer receives a request from the employer in the other coal mine for the card of the member, the first mentioned employer shall, within 10 days of the receipt of the request, send to the other employer by registered post the said card duly completed together with a copy of a statement in Form 'J' in duplicate, a copy of such statement being sent simultaneously also to the commissioner.

(2)

[Where an employee leaves service in a coal mine or is transferred to any other coal mine or when his service is terminated by the employer at any time during any period of currency commencing on or after the 1st April 1953, the Contribution Card of such employee shall be retained by the employer for submission to the Commissioner on the expiry of the period of the currency to which the contribution card relates or at any time before the expiry of such period, if so directed by the Commissioner.]

[Inserted vide S.R.O. No. 3306 dated 22.10.1954.]

44A.

[Return of Member Ceasing to be Employed.

[Para 44A added vide G.S.R. 1203 dated 20.8.64.]

- [(1) Every employer shall, [within fifteen days of the close of each month during the period commencing from July 1964 and ending with December, 1969] send to the Commissioner or to such other Officer subordinate to him as may be authorised by him in this behalf a return, in duplicate, in Form 'W' annexed hereto, in respect of members ceasing to be employed during the preceding month.]

(2)

[Every employer shall within one month of the close of each quarter commencing on or after the 1st January, 1970 send to the Commissioner or to such other officer subordinate to him as may be authorised by him in this behalf, a return, in duplicate, in Form 'W' (Revised) annexed hereto showing the particulars of members ceasing to be employed during the preceding quarter, either by death or otherwise.]

[Sub-Paragraph 2 and 3 added vide G.S.R. 2483 dated 21.10.1969.]

["(2A) From quarter ending June, 1988 onwards, a return of the members ceasing to be employed and persons going to retire in the next 6 months shall be sent to respective Regional Commissioner in Form 'HH' instead of Form 'W'."]

[Inserted vide G.S.R. 97 dated 13.2.88]

(3)

On receipt of a return in Form "W" (Revised), the Commissioner or any other officer subordinate to him as may be authorised by him in this behalf, shall advise in writing every outgoing member or the nominee of every deceased member listed in such return either to claim refund of Provident Fund or to intimate the details of his re-employment in any other coal mine and such advice shall be accompanied by a blank form for applying for refund.]

45.

Declaration Form - Procedure to be followed by the Employer.

- When a person presents himself for work at a coal mine, the employer shall ask him to state whether or not he is a member of the Fund and if he is, ask for his []

[The words 'Identity Card appearing in the original scheme were omitted vide omitted Government of India, Ministry of Labour Notification No. PF 2(16)52 dated 8th July 1952.]

Account number and the name and the particulars of last employer and get his Cards from the Commissioner or from the last employer. When the new employer receives the Contribution cards, Emergency Cards, if any []

[The words 'and Identity Card, if any' appearing in the original scheme omitted vide Government of India, Ministry of Labour Notification No. PF 2(16)52 dated 8th July 1952]

in respect of the members of the Fund who have joined him, from the last employer or the commissioner, he shall sign and return one copy of the statement in Form J or K annexed hereto in token of receipt to the last employer or the Commissioner, as the case may be.

[Provided that in respect of any person who presents himself for work at a coal mine at any time during a period of currency commencing on or after the first of April, 1953, the employer shall require the person to furnish a written declaration in Form 'Q' annexed hereto or if the person is unable to read and write in English, the employer shall obtain the necessary information from the person and complete the Form and obtain thereon the person's signature or thumb impression. Such person on being so required to do shall complete the form or furnish the information as the case may be. The declaration in form 'Q' from any such person containing a negative statement shall be affixed to the declaration of such person in Form A and forwarded to the Commissioner alongwith returns in Form 'H' as and when such person qualifies for membership of the Fund. Where the declaration in Form 'Q' is affirmative, it shall be preserved by the employer until such time as the contents thereof are verified from the previous employer:

Provided further that where any such person makes a declaration in Form 'Q' to the effect that he was a member of the Fund, the employer shall open for him a new contribution card in Form 'D' (Revised) or 'E' (Revised) [or 'T' or 'U']

[1st, 2nd and 3rd provisos to para 45 added vide S.R.O. 3306 dated 22.10.1964.]

[or 'T' (Revised) or 'U' (Revised)]

[Inserted vide G.S.R. 1203 dated 20.8.1964.]

[or 'X' or 'Y']

[Inserted vide Notification No. 1101(1)/72 PF J(i) dated 8.8.72.]

as the case may be, and [in the case of a member who declares in Form 'Q' that he was making voluntary contribution at the colliery where previously employed, under paragraph 27A]

[Inserted vide G.S.R. 1063 dated 6.6.1963.]

, in Form 'D(V)' or 'E(V)', as the case may be [for currency periods commencing before the 1st July, 1964]

[Added vide G.S.R. 1063 dated 6.6.1963.]

and [in form T or U, as the case may be, for currency periods commencing on or after the said date, but before the 31st March, 1968 and in Form 'T' (Revised) or in Form 'U' (Revised), as the case may be, for currency periods commencing on or after the 1st April, 1968]

[Substituted vide G.S.R. 2491 dated 21.10.1969.]

[and in Form 'X' or Form 'Y' as the case may be for currency period commencing on or after the 1st April, 1972 in the case of members who have joined the Pension Scheme.]

[Inserted vide Notification No. 1101(1)/72 PF J(i) dated 8.8.72.]

The employer shall then enter therein the basic wages [or]

[Inserted vide S.R.O. 1472 dated 2.7.1955.]

the total monthly basic wages, dearness allowance and the cash equivalent of concessional rations at the rate of fifteen rupees per month calculated according to sub-paragraph(4) of paragraph 27 [or total emoluments]

[Inserted vide Notification No. PF 1/2(114)/56-1 dated 10.1.58.]

, [as the case may be] and [the member's contribution and employer's contribution, either separately, or jointly, as the case may be]

[The words 'the total of the member's and employer's contributions' substituted vide G.S.R. 1063 dated 6.6.1963.]

to be paid by the new employer during the remaining period of currency during which such person has worked under the new employer. The employer shall at the same time take steps to verify the truth or otherwise of the statement from his former employer, who shall be bound to furnish the required information.

Provided also that where such person makes a false declaration in Form 'Q' suppressing the fact of his previous membership of the Fund, [or his voluntary contribution]

[Added vide G.S.R. 1063 dated 6.6.1963.]

the arrears on account of the member's share of the contribution may, notwithstanding the proviso to sub-paragraph(1) of paragraph 29, be realised from his wages which he may earn subsequently in such number of instalments as may be considered to be suitable by the Commissioner who shall be furnished with a complete report of the case, supported by the declaration in Form 'Q' within a period of fifteen days from the date on which the falsity of the declaration of such person comes to the notice of the new employer.]

["Provided also that though no declaration in Form 'Q' shall be obtained from the 1st April, 1988 onwards and instead information regarding persons being transferred to and from the unit shall be furnished in Form 'HH'."]

[Inserted vide G.S.R. No. 97 dated 13.2.88.]

46.

Supply of Cards and Forms to Employers.

- The Commissioner shall supply to employers free of charge on demand Declaration Forms, [+]

[The words 'Identity Cards' omitted vide Government of India, Ministry of Labour, Notification No. PF 2 (16)/52 dated 8.7.52.]

Contribution Cards, Emergency Cards and other forms referred to in this Scheme :

Provided that if any employer desires to obtain any card or form in excess of what the Commissioner considers to be the requirement of the employer, the Commissioner may if he thinks fit, supply such excess cards or forms and make such change therefor as he considers necessary.

47.

Custody of [Contribution Cards]

[The words 'Identity and' omitted vide Government of India, Ministry of Labour, Notification No. PF 2(16)/52 dated 8.7.52.]

.

- The employer shall, [retain]

[The words 'subject to paragraph 43' omitted by Government of India, Ministry of Labour, Notification No. PF 2(16)/52 dated 24.11.1962.]

the [Contribution Cards]

[The words 'Identity and' omitted vide Government of India, Ministry of Labour, Notification No. PF 2(16)/52 dated 8.7.52.]

in respect of each member in his custody and shall take every possible 'precaution to guard them against loss or damage.

48.

Inspection [of Cards and Pass Books]

[] Substituted vide Notification No. 1101 (1)/72 PF I(i) dated 8.8.72.]

by Members.

- Any member who makes a request in this behalf to the employer shall be permitted [to inspect his card and pass book]

[] Substituted vide Notification No. 1101 (1)/72 PF I(i) dated 8.8.72.]

within a period of 72 hours of making such request provided that no member may make such a request more than once in any calendar month.

49.

Production of Cards for Inspection by the Commissioner or Inspector.

(1)

Every employer shall, whenever the Commissioner or any other officer authorised by him in this behalf or an Inspector so requests either in person or by notice, produce to the Commissioner, Officer or Inspector the Cards of any member employed by him and any card then in his possession and if so required by the Commissioner, Officer or Inspector shall deliver such card to the Commissioner, Officer or Inspector who may, if he thinks fit, retain the card.

(2)

The Commissioner, Officer or Inspector shall grant a receipt for every card retained by him.

50.

Procedure for the Purchase of Contribution Stamps by Employers - Rate of Administrative Charge.

- The contribution stamps to be affixed to the Contribution cards of the members under this Scheme shall be obtained by the employer from one of the Government treasuries [and post offices]

[Inserted vide Government of India, Ministry of Labour Notification NO.PF 21(23)/11 dated 23rd June, 1952.]
specified in Schedule 'A' on indent in Form 'N' annexed hereto and the nominal value of the stamps indented for, together with an administrative charge of 5 per cent of the nominal value of the stamps shall be paid into the treasury [and post office]

[Inserted vide Government of India, Ministry of Labour Notification NO. PF 21(23)/11 dated 23rd June, 1952.]

under the Head of account to be specified by the Central Government in this behalf ;

Provided that the rate of administrative charge shall be reviewed by the Central Government in consultation with the Board, before the expiry of three years from the date of publication of this Scheme.

[For J&K See paragraph 7 of Appendix iv]

50A.

[Remittance of Coal Mines Provident Fund Money.

[Inserted vide Government of India, Ministry of Labour Notification No. PF 21(23)/11 dated 23rd June 1952.]

(1)

All amount deposited into Government Treasuries under paragraph 31(2), 32(2), [a] and 50 shall be remitted to the Current Account No. I of the Coal Mines Provident Fund with the Imperial Bank of India, Dhanbad, [by the third day of the week following the week of deposit]

[The words 'in the first week of the month following the month of deposit' substituted vide S.R.O. 2226 dated 5.10.55.]

, under advice to the Government of India in the [Ministry of Labour, Employment and Rehabilitation (Department of Labour and Employment)]

[The words 'Department of Social Security' substituted vide G.S.R. 1221 dated 28.7.1966.]

and the Coal Mines Provident Fund Commissioner. The remittance shall be made by the Treasury Officers by means of Reserve Bank Drafts at par marked "Intra-Provincial" favouring Imperial Bank of India, Dhanbad, for credit to the Current Account No.1 of the Fund. The account shall be operated on by such officers as may be specified by the Board of Trustees of the Coal Mines Provident Fund from time to time.

(2)

The Coal Mines Provident Fund Commissioner shall submit demand statements to the Accountant General/Comptroller by the 15th of the month in respect of the deposits made into the Government Treasuries during the month preceding the last month. Any difference between the amount remitted by the Treasury Officers and that actually due to the Fund shall be adjusted by the Accountant General/Comptroller concerned in a subsequent month.

(3)

The amount of administrative charges collected by Post Offices shall be remitted by the Post Masters concerned in the first week of the month following the month of sale of stamps in cash or by means of Reserve Bank Drafts at par marked 'Intra-Provincial' favouring Imperial Bank of India, Dhanbad for credit to the current Account No. 1 of the Fund. The Coal Mines Provident Fund Commissioner shall forward to the Deputy Accountant General, Posts and Telegraphs concerned a monthly statement by the 15th of each month showing the amounts realised by Post Offices within their circle of audit, on account of administrative charges on the sale of Coal Mines Provident Fund contribution stamps during the month preceding the last month, any difference between the amount already remitted by the Post Masters into the Current Account No.1 of the Fund with the Imperial Bank of India, Dhanbad and that due to the Fund being adjusted by the Post Masters concerned in due course on advice from the Deputy Accountant General Posts & Telegraphs concerned.]

For J&K See Paragraph 8 of Appendix iv

51.

Stamps Suspense Account and Administration Account.

(1)

Out of the total amount realised under paragraph 50 an amount equal to the nominal value of the stamps sold shall be credited to an account to be named as the "Stamps Suspense Account" and the amount realised as the administrative charge shall be credited to an account to be called "Administration Account".

For J&K See Paragraph 9 of Appendix IV.

(2)

[Of the sum realised under paragraph 33A, an amount equal to the contributions to the Fund shall be credited to an account to be named "Suspense General Account" and the amount received for defraying the cost of administration to an account to be called "Administration Account."]

[Inserted vide S.R.O. 3306 dated 22nd October 1954.]

52.

Provident Fund Account.

(1)

When the Contribution Cards of members [for any period of currency commencing before the 1st April, 1953]

[Inserted vide S.R.O. 3306 dated 22nd October 1954.]

are received after the expiration of their period of currency from the employers, the aggregate amount for which stamps have been affixed on the Contribution Cards shall be credited to an account to be called the ".Provident Fund Account" by contra debit to the "Stamps Suspense Account."

(2)

[On receipt of the [@]

[Inserted vide S.R.O. 3306 dated 22nd October 1954.]

(Form 'VV') relating to any period of currency commencing on or after the 1st April, 1953 and after verification of the deposits received from the coal mines concerned, the total amount of contribution [to the Coal Mines Provident Fund]

[[] Inserted vide Notification No. 11011(1) 72-PF I (i) dated 8.8.72.]

entered in the [Form-VV]

[Inserted vide S.R.O. 3306 dated 22nd October 1954.]

shall be credited to an account to be called "The Provident Fund Account" by contra debit to the "Suspense General Account."]

53.

[Interest Suspense Account.

[Para 53 reconstituted vide Notification No. PF 1/5(101)/57 dated 3.12.1957.]

- All interests, rents and other such amounts realised and net profits or losses, if any, arising out of the sale or conversion of investments, or the encashment of matured investments, not including therein the transactions of the "Administration Account", shall be credited, or as the case may be, debited to an account called the "Interest Suspense Account." Brokerage and Commission on the purchase and sale of securities and other investments shall be adjusted against the purchase or sale price as the case may be and not separately charged to "Interest Suspense Account."

Provided that, in the case of an investment the purchase price of which, inclusive of brokerage and commission, exceeds its face value, the loss involved in the purchase representing the difference between the book value and the nominal value of the investment shall be charged to the "Interest Suspense Account".]

54.

Investment of Monies belonging to Coal Mines Provident Fund.

(1)

All monies belonging to the Coal Mines Provident Fund shall be either deposited in the Imperial Bank of India or in such other scheduled banks as may be approved by the Central Government from time to time, or invested in securities mentioned or referred to in clauses (a) to (d) of section 20 of the Indian Trusts Act, 1882 (II of 1882) subject to the condition that the securities in which investments are made are payable both in respect of capital and of interest in Dominion of India.

(2)

The Board shall prepare a classified summary of the Asset of the Fund as on the 31st March in each year or on such other dates as the Central Government may specify in Form 'O' annexed hereto, and shall append it to annual report required to be submitted to the Central Government under paragraph 68.

55.

[Disposal of the Coal Mines Provident Fund.

[Para 55 substituted and deemed always to have been substituted vide G.S.R. 14 dated 22.12.1970.]

(1)

The Coal Mines Provident Fund not including therein Reserve Account and the Administration Account thereof shall not, except with the previous sanction of the Central Government, be expended for any purpose other than the payment of the slims standing to the credit of individual members of the Fund or to their nominees or heirs or legal representatives in accordance with the provision of this Scheme.

(2)

Amount credited to the Reserve Account under sub-paragraph (4) of paragraph 63, may in accordance with such instructions as the Central Government may issue from time to time be expended for any or all of the following purposes :-

(i)

for providing financial assistance to the nominees or heirs or legal representatives of deceased members :

(ii)

for financing any Scheme for the benefit of the dependents of employees killed or disabled in accidents in coal mines:

(iii)

[for making payments to outgoing members and to the nominees or heirs or legal representatives of deceased members where Provident Fund contributions or Family Pension Fund contributions, or both in respect of such members have, either in whole or in part, not been deposited into the Fund by their employers;"]

(iv)

for stabilising the rate of interest allowed to the members under paragraph 61 of this Scheme;

(v)

[for paying late fees and such other charges as may be levied by the Life Insurance Corporation of India in cases where remittance of premia in respect of any policy financed from the Fund under paragraph 65C is delayed for no fault of the concerned member or where any such policy having been paid up or having lapsed for no fault of the concerned member is to be revived;]

[Clause (v) to para 55 inserted vide Notification No. 11011(1)/72-PF (I) (i) dated 8.8.72.]

(vi)

[for making payment to the member or to the nominee or legal heir or representative of deceased member, as the case may be, where the amount payable to the member is either withdrawn by and paid to a person other than rightful claimant or where such amount, when remitted by money-order or by an account payee cheque, is paid to a person other than a rightful claimant.]

[Clause (vi) to para 55 inserted vide G.S.R. 308 dated 15.3.80.]

(3)

Amount credited to Reserve Account under paragraph 32 and any interest earned by investing the amounts in the Reserve Account may in accordance with such instructions as the Central Government may issue from time to time, be expended for the following purposes :-

(i)

for meeting capital expenditure on land, building, machines and such other tangible assets as are used over a period exceeding 5 years ;

(ii)

for meeting any deficit in the Administration Account of the Fund.]

56.

Expenses of Administration.

(1)

Subject to the provisions of the Act and of the Scheme all expenses of administration of the Coal Mines Provident Fund, including the fees and allowances of the trustees [+]

[The words 'and of the members of the Committee' were omitted by S.R.O. 1360 dated 1.6.56.]

and salaries, leave and joining time allowances" travelling and compensatory allowances, gratuities and compassionate allowances pensions, contribution to Provident Fund or other benefit funds for the officers and servants of the Fund, the cost of audit of the accounts, legal expenses and the cost of all stationery and forms required for the purpose of giving effect to this scheme, shall be met from the Administration Account.

(2)

All expenses incurred by the Central Government for and in connection with the establishment of the Fund, whether before or after the date of its establishment, shall be treated as a loan advanced by the Central Government to the Fund and such loan shall be repaid to the Central Government from the Administration Account.

57.

Budget.

(1)

The [Commissioner [@]

[The words 'Committee' and 'it' substituted by S.R.O. 1360 dated 1.6.56.]

] shall place before the Board at a meeting to be held in January each year a budget showing separately the probable receipts from the sale of stamps and the levy of the administrative charge and the expenditure which [he [@]

[The words 'Committee' and 'it' substituted by S.R.O. 1360 dated 1.6.56.]

] proposes to incur during the financial year commencing on the first of April next. The budget as approved by the Board shall be submitted for sanction to the Central Government before the 15th of February each year.

(2)

The Central Government may sanction the budget as submitted or with such alterations therein as it considers desirable.

(3)

[The Commissioner may make budgetary re-appropriation of funds subject to the conditions that the total budget sanctioned under sub-paragraph (2) shall not be exceeded by him and that the re-appropriation made by him is for meeting such expenses of administration as may be met from the Administration Account in pursuance of the provisions of paragraph 56.

Provided that any re-appropriation made under sub-paragraph (3) shall be reported by the Commissioner to the Board at the first meeting held by it after such re-appropriation.]

[Inserted vide Government of India, Ministry of Labour & Employment Notification No.2 (328)/53 PFI dated 23.5.63.]

58.

Form of Accounts.

- The Board shall maintain the accounts of the Fund including the "Administration Account" in such form and manner as may be specified by it with the previous approval of the Central Government.

59.

Audit.

(1)

The accounts of the Fund including the "Administration Account", shall be audited in such manner as the Central Government may direct.

(2)

The cost of the audit as determined by the Central Government shall be paid out of the "Administration Account".

60.

Member's Accounts.

(1)

An account shall be opened in the name of each member in which shall be credited-

(i)

his contribution [to the Coal Mines Provident Fund]

[[] Inserted vide Notification No. 11011 (I)/72-PFI(i) dated 8.8.1972.]

(ii)

the contribution made by his employer, [to the Coal Mines Provident Fund]

[[] Inserted vide Notification No. 11011 (I)/72-PFI (i) dated 8.8.1972.]

and

(iii)

interest, as provided by paragraph 61.

(2)

All items of account shall be calculated to the nearest [rupee treating fifty paise or more as the next higher rupee and ignoring fractions of a rupee less than fifty paise]

[Substituted vide G.S.R No. 1312 dated 29.12.84.]

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(3)

On receipt of the Contribution and emergency cards if any, of a member [in respect of any period of currency commencing before the 1st April, 1953]

[Inserted vide S.R.O. 3306 dated 22.10.1954.]

from his employer at the end of the period of currency of the contribution cards, the commissioner shall ascertain the

nominal value of the contribution stamps affixed on the card or cards of the member and shall credit to the account of the member as at the last day of the period of currency, the employer's contribution and the member's contribution included in such nominal amount.

(4)

[[On receipt of contribution card of a member in respect of a currency period or quarter, as the case may be,]

[Sub-para (4) of para 60 first inserted vide S.R.O. 3306 dated 22.10.54 and then reconstituted vide G.S.R. 1203 dated 20.8.1964.]

the Commissioner or such other Officer subordinate to him as may be authorised by him in this behalf shall ascertain therefrom the total amount of the member's and employer's contributions [to the Coal Mines Provident Fund]

[[] Inserted vide Notification No. 11011 (I)/72-PFI (i) dated 8.8.1972.]

paid for the member and shall credit the amount to the account of the member as at the last day of the period of currency or quarter as the case may be.]

61.

Interest.

(1)

The Commissioner shall credit to the account of each member interest at such rate as may be determined by the Central Government in consultation with the Board in respect of the periods of currency of the cards expiring in each financial year.

(2)

Interest for the period of currency of the card shall be credited with effect from the last day of the period on the opening balance at the credit of the member on the first day thereof;

[Provided that when the amount standing at the credit of the member has become payable, interest shall thereupon be credited under this sub-paragraph for the period upto the end of the month preceding the date of the tender of payment]

[Reconstituted under S.R.O. 424 dated 22.1.58 (published and effective from 1st February 1958.)]

[Provided further that the rate of interest to be allowed on claims for refund for the broken period of currency of cards shall be the rate fixed for the financial year in which [[+]

[Inserted by Government of India, Ministry of Labour Notification No. PF 5(21)/51 dated the 18th January, 1952.]

the claim becomes payable],

(3)

The aggregate amount of interest credited to the accounts of the members shall be debited to "Interest Suspense Account".

(4)

[Interest shall not be credited to the account of a member if he informs in writing to the Commissioner, or, where so authorised by the Commissioner, to any officer subordinate to him, that he does not wish to receive it If, however, the member subsequently asks for interest, it shall be credited to his account with effect from the first day of the period of currency, in which he makes a request therefor.]

[Sub-para (4) added vide G.S.R. 1577 dated 5.10.66.]

62.

Nomination.

(1)

Each member, or if he is a minor his guardian shall make in his declaration in Form 'A' [(to be submitted in duplicate)]

[() Inserted vide G.S.R. 463 dated 24.3.79.]

a nomination conferring the right to receive the amount that may stand to his credit in the Fund in the event of his death before the amount standing to his credit has become payable, or where the amount has become payable, before payment has been made.

(2)

A member, or if he is a minor his guardian, may in his nomination distribute the amount that may stand to his credit in the Fund amongst his nominees at his own discretion.

(3)

If a member has a family at the time of making a nomination, the nomination shall be in favour of one or more persons

belonging to his family. Any nomination made by such member in favour of a person not belonging to his family shall be invalid. .

["Provided that any nomination made by a member before his/her marriage in favour of his/her dependent parents shall be deemed to be invalid from the day on which the member marries; and the member shall make a fresh nomination."]

[Added vide G.S.R. No. 119 dated 8.2.86.]

(4)

If at the time of making a nomination the member has no family, the nomination may be in favour of any person or persons but if the member subsequently acquires a family, such nomination shall forthwith be deemed to be invalid and the member shall make a fresh nomination in favour of one or more persons belonging to his family.

(4A)

[Where the nomination is wholly or partly in favour of a minor, the member shall for the proposes of the said Scheme appoint a major member of his family, as defined in clause (h) of paragraph 2, to be the guardian of the minor nominee(s) in the event of the member predeceasing the nominee and the guardian so appointed.

Provided that where there is no major person in the family, the member may at his discretion appoint any other person to be a guardian of the minor nominee(s).]

[Sub-para (4A) added vide G.S.R. 1061 dated 15.6.1963.]

(5)

A nomination made under sub-paragraph (1) [or the appointment of a guardian made under sub-paragraph (4A)]

[Inserted vide G.S.R. 1061 dated 15.6.63.]

may at any time be modified by a member, or if he is a minor by his guardian, after giving a written notice of his intention of doing so [in Form 'M' Revised; 'M' [or in Form 'MM']

[Substituted vide G.S.R. 97 dated 13.2.88.]

as the case may be] [to be submitted in duplicate]

[[] Inserted vide G.S.R. 463 dated 24.3.1979.]

annexed hereto. If the nominee predeceases the member, the interest of the nominee shall revert to the member who may make a fresh nomination in respect of such interest.

(6)

A nomination or its modification shall take effect to the extent that it is valid on the date on which it is received by the Commissioner.

63.

Circumstances in which accumulations in the Fund are payable to a member.

(1)

A member may withdraw the full amount standing to his credit in the Fund-

(a)

on permanent retirement from service in the Coal Mining Industry at any time after the attainment of the age of 50 years [or]

[Inserted vide G.S.R. 1061 dated 15.6.63.]

(b)

[On being rendered permanently and totally incapacitated for work in the coalfields due to bodily or mental infirmity, notwithstanding the date on which he ceases to be employed.]

[Sub-clause (b) of para 63 (1) reconstituted vide G.S. R. 1061 dated 15.6.1963.]

(c)

[On being transferred to a cadre in a coal mine to which this Scheme does not apply.]

[Clause 'c' inserted vide G.S.R. 531 dated 21.3.70.]

(2)

The Board [or where so authorised by 'the Board, the Commissioner, or where so authorised by the Commissioner, any other officer subordinate to him]

[Inserted vide S.R.O. 366 dated 8.2.1956.]

may permit a member, who has not attained the age of 50 years to withdraw the amount standing to his credit in the Fund []

[The word 'if' omitted vide G.S.R. 1061 dated 15.6.63.]

(a)

[if]

[The word 'if' inserted vide G.S.R. 1061 dated 15.6.63.]

he has migrated from India for permanent settlement abroad or [being a national of a country other than India and having ceased to work in or in connection with a coal mine declares his intention of leaving India for at least a year or]

[Inserted vide S.R.O. 2041 dated 7.9.1955.]

(b)

[after expiry of a period of six months from the date of termination of his service if in: the meanwhile he does not inform the commissioner in writing that he has been re-employed in any coal mine to which the said Scheme or the Scheme published with the notification of the Government of India in the late Ministry of Labour No. SRO 657 dated the 12th March, 1956 or the Scheme published with the notification of the Government of India in the Ministry of Labour and Employment No. SO 32 dated the 11th February, 1958, apply.]

[Clause (b) of para 63(2) reconstituted vide G.S.R. 1061 dated 15.6.1963.]

[Provided that the Commissioner or where so authorised by the Commissioner, any [Regional Commissioner or]

[Inserted vide G.S.R. 767 dated 14.5.1964.]

Assistant Commissioner may, in case of hardship, reduce the period of six months prescribed under this clause to such extent as he may consider necessary, subject to instructions laid down in this regard by the Commissioner with the approval of the Board] or

(c)

[if]

[The word 'if' inserted vide G.S.R. 1061 dated 15.6.1963.]

in the case of a member employed on fixed term contract he does not continue to work in the coalfields after the expiry of his contract :

[Provided, however, that the exercise or discharge of the power so delegated shall be subject to such restrictions, limitations and conditions, if any, as the Board may impose.]

[Inserted vide S.R.O. 366 dated 8.2.1956.]

(2A)

[When a member withdraws any amount under sub-paragraph (2), the following provisions shall apply, namely :-

(i)

seventy five percent of the employer's contribution and interest thereon shall be forfeited to the Fund if the period of his membership of the Fund is less than 3 years; or

(ii)

fifty percent of the employer's contribution and interest thereon shall be forfeited to the Fund if the period of membership is 3 years or more but less than 5 years; or

(iii)

twenty five percent of the employer's contribution and interest thereon shall be forfeited to the Fund if the period of membership is 5 years or more but less than 10 years; or

(iv)

[]

(v)

no forfeiture shall be made if the period of membership is [10 years or more]

[For the figure and words '15 years or more' the figure and words 10 years or more substituted vide G.S.R. No. 258 dated 8.4.89.]

.]

(2B)

[The Commissioner may permit any member or class of members to withdraw at any time after the termination of his or their services the full amount standing to his or their credit as the case may be, and make payment to such member or class of members in accordance with such instructions as may be issued by the Central Government in this behalf from time to time.]

[Sub-para 63(2B) [Originally inserted as para 63 (2A) under S.R.O. 366 dated 8 Feb.1956 and deemed to have been always inserted, this sub-para 63 (2A) was renumbered vide Notification No. PF 2(102)56 dated 30.7.56, as 63 (2B)] reconstituted vide S.R.O. 129 dated 4 Jan. 1957.]

(3)

A member who withdraws under sub-paragraph (2) [or a member withdrawing under sub-paragraph (2B)]

[Inserted vide S.R.O. 366 dated 3.2.56.]

who has not attained the age of fifty years at the time of withdrawal shall be required to join as a new member of the Fund if he obtains employment again in a coal mine and qualifies again for the membership of the Fund.

(4)

All sums forfeited to the Fund under sub-paragraph (1) and (2) shall be credited to the "Reserve Account" of the Fund.]

[Sub-paragraph (2A) inserted vide Government of India, Ministry of Labour notification no. PF 2(102)/56 dated 30.7.56, and the proviso 'provided further that before the withdrawal is allowed (i) the full amount of the employer's contribution and interest thereon shall be forfeited to the Fund if the period of membership is less than 10 years or (ii) half the amount of the employer's contribution and interest thereon shall be forfeited to the Fund, if the period of membership is 10 years or more but less than 25 years' omitted.]

63A.

[Withdrawal before Retirement.

[Inserted vide G.S.R. No. 237 dated 2.4.88.]

- Notwithstanding anything contained in clause (a) of sub-paragraph (1) of paragraph 63 above, the amount standing to the credit of a member up to the end of penultimate year of his service shall be paid to him at least three months in advance of his impending date of retirement.]

64.

Accumulations of a Deceased Member to whom payable.

- On the death of a member before the amount standing to his credit has become payable, or where the amount has become payable, before payment has been made-

(i)

if a nomination made by the member in accordance with paragraph 62 subsists, the amount standing to his credit in the Fund or that part thereof to which the nomination relates, shall become payable to his nominee or nominees in accordance with such nomination ;

(ii)

if no nomination subsists or if the nomination relates only to a part of the amount standing to his credit in the Fund, the whole amount or the part thereof to which the nomination does not relate, as the case may be, shall become payable to the members of his family in equal shares.

Provided that no share shall be payable to

(a)

sons who have attained majority ;

(b)

sons of a deceased son who have attained majority;

(c)

married daughters whose husbands are alive ;

(d)

married daughters of a deceased son whose husbands are alive; if there is any members of the family other than those specified in clauses (a), (b), (c) and (d) :

Provided further that the widow or widows, and the child or children of a deceased son shall receive between them in equal parts only the share which that son would have received if he had survived the member and had not attained the age of majority at the time of the member's death.

(iii)

[In any case to which the provisions of clause (i) and (ii) do not apply the whole amount [that would have been otherwise payable in his case]

[Inserted vide S.R.O. 1208 dated 28th May, 1955.]

shall be payable to the person legally entitled to it];

[Provided that (i) where such payment does not exceed rupees seven hundred and fifty, the Assistant Commissioner or (ii) where it exceeds rupees seven hundred and fifty but does not exceed rupees three thousand, the Regional Commissioner or (iii) where it exceeds rupees three thousand but does not exceed rupees five thousand, the Joint Commissioner or (iv) where it exceeds rupees five thousand the Commissioner, may after giving notices to such person and making such summary enquiry as he thinks fit, make payment of the amount to the person who appears to him to be legally entitled thereto, after getting from such person such security as he considers necessary, and any payment so made shall be a full discharge from all liabilities in respect of the amount so paid]

[Proviso to para 64 (iii) first inserted vide S.R.O. 1208 dated 28.5.1955 and then reconstituted vide G.S.R. 1061 dated 15.6.1963, substituted vide G.S.R. 1140 dated 7.5.69. resubstituted vide O.S.R. 463 dated 24.3.79.]

[Provided further that where the amount exceeds rupees twenty five thousand, no payment shall be made to a person unless he is in possession of a succession certificate issued in his name by a competent court.]

[The words 'rupees ten thousand' substituted by the words 'rupees twenty five thousand' vide G.S.R. No. 258 dated 8.4.89.]

Note :-For the purpose of this paragraph a member's posthumous child, if born alive, shall be treated in the same way as a surviving child born before the member's death.

[65. omitted]

65A.

[Advance from the Fund for the purchase of shares of Consumers' Cooperative Societies and Co-operative Credit Societies.

[Para 65A added vide G.S.R. 1678 dated 29.11.1962 and reconstituted vide Government of India, Ministry of Labour, Notification No. R. 11011(6)/75-PF (I) dated 28.5.76.]

(1)

A member may authorise the Commissioner as may be authorised by him in this behalf, in such manner and in such form as may be prescribed by Commissioner to remit out of the amount standing to his credit in the Fund as his own contribution with interest thereon, to a Consumers' Co-operative Society or a Co-operative Credit Society, of which he intends to become a member for the purchase of shares in such societies, two sums :

(i)

not exceeding, in total, fifty per cent of his own contribution with interest thereon standing to his credit in the Fund as at the end of the last completed period of currency, or

(ii)

a sum of rupees one hundred for the purchase of shares in a Consumers' Co-operative Society and another sum of rupees one hundred for the purchase of shares in a Co-operative Credit Society, whichever of the amount specified in clause (i) or, as the case may be, in clause (ii) is less;

Provided that no such remittance shall be made unless, the Commissioner is satisfied that such Consumers' Co-operative Society or, as the case may be, the Cooperative Credit Society aims at a minimum membership of two hundred and fifty persons.

(2)

The Commissioner, or where so authorised by the Commissioner any officer subordinate to him on being satisfied that the authorisation has been made in the prescribed manner and the sum authorised is within the limits specified in sub-paragraph (1) shall remit the said sum to the Consumers' Co-operative Society or the Co-operative Credit Society concerned and such remittance shall give a full discharge of the liability of Fund towards the member to the extent of the amount so remitted.

(3)

The remittance of any amount under this paragraph to any Consumers' Co-operative Society or Co-operative Credit Society shall be made by crossed account payee cheque only.

(4)

The amount remitted to a Consumers' Co-operative Society or as the case may be, to a Co-operative Credit Society under this paragraph shall be a non-recoverable advance.

(5)

Not more than one advance in respect of a Consumers' Co-operative Society and another advance in respect of a

Co-operative Credit Society shall be allowed to a member under this paragraph.

(6)

Any Consumers' Co-operative Society or Co-operative Credit Society to which an amount is remitted under this paragraph shall intimate to the Commissioner-

(i)

such particulars of the shares allotted to the members on whose behalf advances are made from the Fund as may be called for by the Commissioner ;

(ii)

such details of sale, transfer and other transactions pertaining to the shares allotted to the members out of advances from the Fund taking place subsequent to their initial allotment to the members of the Fund as may be called by the Commissioner.

(7)

In this paragraph the expressions 'Consumers' Co-operative Society' and 'Co-operative Credit Society' mean respectively a Consumers' Co-operative Society or a Co-operative Credit Society registered as such or deemed to be registered under the Co-operative Societies Act, 1912(2) of 1912 or under any other law for the time being in force in any State relating to Co-operative Societies and includes registered or deemed to be registered multipurpose co-operative societies running consumers' stores or providing credit facilities in addition to other function.]

[Para 65 omitted by G.S.R. 1121 dated 13.8.62.]

['65B. Advance from the Fund for the purchase of a dwelling house/flat or for the construction of a dwelling house including the acquisition of a suitable site for the purpose.

[Para 65B substituted vice G.S.R. No. 567 dated 9.6.84.]

(1)

The Commissioner, or where so authorised by the Commissioner, any officer subordinate to him, may, on application from a member in such form as may be prescribed by the Commissioner and subject to the conditions prescribed in this paragraph, sanction from the amount standing to the credit of the member in the Fund, a non-refundable advance-

(a)

For purchasing a dwelling house or a flat including a flat in a building owned jointly with others (out-right or on hire purchase basis) or for constructing dwelling house including the acquisition of a suitable site for the purpose from the Central Government, the State Government, a Cooperative Society, an institution, a trust, a local body or a Housing Finance Corporation (hereinafter referred to as the agency or agencies, as the case may be) ;

OR

(b)

for purchasing a dwelling site for the purpose of construction of a dwelling house or a ready-built house or a flat from any individual provided the said house or flat to be purchased is new and unlived one;

OR

(c)

for the construction of a dwelling house on a site owned by the member or the spouse of the member or jointly by the member and the spouse, or for completing or continuing the construction of a dwelling house already commenced by the member or the spouse, on such site ;

OR

(d)

for making addition or alteration to an existing house owned by the member or the spouse of the member or jointly by the member and the spouse.

Explanation: (1) In this paragraph, the explanation, 'Co-operative Society' means a society registered or deemed to be registered or under the Co-operative Societies Act, 1912 (2 of 1912) or under any other law for the time being in force in any State relating to Co-operative Societies.

Explanation: (2) In this paragraph, the fact' of a new and unlived house or fiat shall be determined with reference to the certificates relating to the member and date of approval of the building plan, the date of commencement and completion of the house or the fiat, and the tax bills and receipts issued by the appropriate authorities, and wherever necessary, by neighbourhood enquires.

(2)

The amount of advance shall not exceed the member's total emoluments for twenty four months or the member's own share of contribution together with 75 % employer's share of contribution with interest thereon standing to his credit on the date of authorisation 'of payment or the actual cost towards the acquisition of the dwelling site together with the cost of construction thereon or the purchase of the dwelling house or fiat or the construction of the dwelling house, whichever is the least.

Explanation: The actual cost towards the acquisition of the dwelling site or the purchase of dwelling house or fiat shall include charges payable towards registration of such site, house or fiat.

(3)

(a)

No advance under this paragraph shall be granted unless-

(i)

the member has completed twelve years' membership of the Fund;

(ii)

the member's own share of contribution with interest thereon standing to his credit in the Fund is not less than two thousand rupees ;

(iii)

the dwelling site or the dwelling house or fiat or the house under construction or addition or alteration is free from encumbrances.

Provided that where a dwelling site or a dwelling house or fiat is mortgaged to any of the agencies referred to in clause (a) of sub-paragraph (1) solely for having obtained funds for the purchase of a dwelling house or a fiat or for the construction of a dwelling house including the acquisition of a suitable site for the purpose, such a dwelling site or a dwelling house or fiat, as the case may be, shall not be deemed to be an encumbered property ;

Provided further that a land acquired on a perpetual lease or on lease for a period of not less than 30 years for constructing a dwelling house or a fiat or a house or a fiat built on such a leased land, shall also not be deemed to be an encumbered property

Provided also that where the site of the dwelling house or flat is held in the name of any agency referred to in clause (a) of sub-paragraph (1) and the allottee is precluded from transferring or otherwise disposing of the house or flat without the prior approval of such agency, the mere fact that the allottee does not have absolute right or ownership of the house or flat and the site is held in the name of the agency, shall not be a bar to the giving of an advance under clause (a) of sub-paragraph (1), if the other conditions mentioned in this paragraph are satisfied.

(b)

No advance shall be granted for purchasing a share in a joint property or for constructing a house on a site owned jointly except on a site owned jointly with the spouse.

(4)

Subject to the limitation prescribed in sub-paragraph (2)-

(a)

Where the advance is for the purchase of a dwelling house or a flat or a dwelling site from an agency referred to in clause (a) of sub-paragraph (1), the payment of advance shall not be made to the member but shall be made direct to the agency in one or more instalments, as may be authorised by the member;

(b)

Where the advance is for the construction of a dwelling house, it shall be sanctioned in two equal instalments, the first on application and the second when the construction reaches plinth level ;

(c)

Where the advance is for the acquisition of a dwelling site for the purpose of construction of a dwelling house thereon from any individual or any agency the amount shall be paid in not less than two equal instalments, the first instalment at the time of acquisition of the dwelling site and the remaining at his request at time of construction of a "dwelling house on such dwelling site ;

(d)

When the advance is for making addition or alterations to an existing house, the advance shall be sanctioned in two equal instalments, first at the time of application and second after commencement of the additions or alterations.

(5)

Where an advance is sanctioned for the construction of a dwelling house, the construction shall commence within six months of the withdrawal of the first instalment and shall be completed within twelve months of the withdrawal of the final instalment. Where the advance is sanctioned for the purchase of a dwelling house or a flat or for the acquisition of a dwelling site, the purchase or acquisition as the case may be, shall be completed within six months of the withdrawal of the amount ;

Provided that this provision shall not be applicable in case of purchase of a dwelling house or flat on hire purchase basis and in cases where a dwelling site is to be acquired or houses are to be constructed by a Co-operative Society on behalf of its members with a view to their allotment to the member's.

(6)

Except in cases specified in sub-paragraph (7), no further advance shall be admissible to a member under this paragraph.

(7)

An additional advance upto six months' total emoluments or the member's own share of contributions with interest thereon in the amount standing to his credit in the Fund, whichever is less, may be granted to members for whom advances had been granted under clause (a) or (b) or (c) of sub-paragraph (1), once and in one instalment only for additions, substantial alterations or improvement & necessary to the dwelling house owned by the member or by the spouse.

Provided that the advance shall be admissible only after a period of five years from the date of completion of the dwelling house.

(7A)

[A further advance equivalent to the amount of difference between the amount of advance admissible to a member on 9th June, 1984 and prior to that date, may be granted to such member who had drawn advance under this paragraph, as it stood before 9.6.1984. at any time during six years immediately preceding the aforementioned date, if, -

(i)

he had availed of the earlier advance for the purchase of a dwelling site and proposes to construct a dwelling house on the land so purchased; or

(ii)

he had availed of the earlier advance for making initial payment towards allotment/purchase of a house/flat from any agency as referred to in clause(a) of sub-paragraph (1), and proposes to avail of an advance for completing the transaction to get the sole ownership of the house/flat so purchased or allotted; or

(iii)

he had availed of the earlier advance for construction of a house but could not complete the construction in time due to lack of funds.]

(8)

The member shall produce the title deed and such other documents as may be required for inspection which shall be returned to the member after grant of advance.

(9)

(a)

If the advance granted under this paragraph exceeds the amount actually spent for the purpose for which it was sanctioned, the excess amount shall be refunded by the member to the Fund in one lumpsum within thirty days of the finalisation of the purchase, or the completion of the construction of, or necessary additions, alterations or improvements to a dwelling house, as the case may be. The amount so refunded shall be credited to the employer's share of contributions in the member's account in the Fund to the extent of advance granted out of the said share and the balance, if any, shall be credited to the member's share of contributions in his account.

(b)

In the event of the member not having been allotted a dwelling site or a dwelling house or a flat, or in the event of the cancellation of an allotment made to the member and in the event of refund of the amount by the agency referred to in clause (a) of sub-paragraph (1) or in the event of the member not being able to acquire the dwelling site or to purchase construct the dwelling house or a flat from any individual or to construct the dwelling house, the member shall be liable to refund to the fund in one lumpsum and in such manner as may be specified by the Commissioner, for where so authorised by the Commissioner any officer subordinate to him the amount of advance remitted under this paragraph to

him or, as the case may be, to the agency referred to in clause(a) of sub-paragraph(1). The amount so refunded shall be credited to the employer's share of contributions in the member's account in the Fund to the extent of advance granted out of the said share and the balance if any, shall be credited to the member's own share of contributions in his account.

(10)

If the Commissioner, or where so authorised by the Commissioner any officer subordinate to him is satisfied that the advance granted under this paragraph has been utilised for a purpose other than that for which it was granted or that the member refused to accept an allotment or to acquire a dwelling site or that the conditions of advances have not been fulfilled or that there is reasonable apprehension that they will not be fulfilled wholly or partly, or that the excess amount will not be refunded in terms of clause(a) of sub-paragraph (9), or that the amount remitted back to the member by any agency referred to in clause(a) of sub-paragraph (1), will not be refunded in terms of clause(b) of sub-paragraph (9), the Commissioner, or where so authorised by the Commissioner, any Officer subordinate to him, shall forthwith take steps to recover the amount due with penal interest thereon at the rate of two percent per annum from the wages of the member in such number of instalments as the Commissioner, or where so authorised by the Commissioner, any officer subordinate to him may determine, for the purpose of such recovery, the Commissioner, or where so authorised by the Commissioner, any officer subordinate to him may direct the employer to deduct such instalment from the wages of the member and on receipt of such direction, the employer shall deduct accordingly. The amount so deducted, shall be remitted by the employer to the Fund within such time and in such manner as may be specified in the direction. The amount so refunded, excluding the penal interest, shall be credited to the employer's share of contributions in the member's account in the Fund to the extent of advance granted out of the said share and the balance, if any, shall be credited to the member's own share of contributions in his account. The amount of penal interest shall, however, be credited to the Interest Suspense Account ;

(11)

Where any advance granted under this paragraph has been misused by the member, no further advance shall be granted to him under this paragraph within a period of three years from the date of grant of the said advance or till the full recovery of the amount of the said advance, with penal interest thereon, whichever is later.]

65C.

[Financing of Members' Life Insurance Policies.

[Para 65C added vide G.S.R. 404 dated 6.3.1965.]

(1)

The Commissioner or where so authorised by the Commissioner, any other officer subordinate to him, may, on an application form a member in such form and in such manner as may be prescribed by the Commissioner, make payment on behalf of the member to the Life Insurance Corporation of India, towards premium due on a policy of Life Insurance taken by the member on his own life or towards the first premium on the proposal of the member in respect of such a policy.

(2)

Any payment under sub-paragraph (1) shall be made out of and debited to the member's own share of contribution including interest thereon standing to his credit in the Fund.

(3)

No payment shall be made under sub-paragraph (1) unless the amount of member's own contribution together with interest thereon standing to the credit of the member at the end of the last completed currency period or quarter, as the case may be, for which posting in the individual ledger account of the member has been completed, is-

(i)

at the time of authorising the first payment, adequate to meet the premium for at least two years or such period after which the proposed or existing policy for which premium is to be paid can be converted into paid-up policy under the terms of the proposed or existing policy, as the case may be, whichever is more; and

(ii)

at the time of any subsequent payment, adequate to meet the amount of premium.

(4)

No payment towards the first premium on a proposal of the member for insuring his own life shall be made under sub-paragraph (1) unless-

(i)

the proposal has been examined and approved by the Commissioner, or such officer subordinate to him as may be authorised by him in this behalf;

(ii)

the proposal is acceptable to the Life Insurance Corporation of India subject to medical fitness of the member ;

(iii)

the member satisfies the Commissioner, or such officer subordinate to him as may be authorised by him in this behalf, that he has produced such evidence of his age to the Life Insurance Corporation of India as may be acceptable to the said Corporation ;

(iv)

a written notice of assignment, in such form, as the Commissioner may prescribe, in favour of the Board, in respect of the proposed policy has been signed by the member and made over to the Life Insurance Corporation of India alongwith the proposal for insurance.

(5)

Payment under sub-paragraph (1) shall not commence unless-

(i)

the member's own share of contribution during the last completed period of currency for which contributions have been posted in his individual ledger" account is equal to or more than the annual premium towards his existing or proposed policy, as the case may be,

(ii)

the terms of the existing or proposed policy, as the case may be, are such-

(a)

as shall allow automatic conversion of the policy into a paid-up policy without having to obtain the member's consent, after it has run for a specified period ;

(b)

as shall require payment of premium not more than once a year;

(c)

as shall allow the member himself to assign the policy in favour of the Board.

(6)

No payment under sub-paragraph (1) towards the premium of an existing policy of a member shall be made unless-

(i)

the policy has been assigned by the member in favour of the Board by an endorsement on the policy and unless such assignment has been registered with the Life Insurance Corporation of India ;

(ii)

the policy is free from all encumbrances and any prior assignment ;

(iii)

the age of the member has been endorsed in the policy as having been admitted by the Life Insurance Corporation of India.

(7)

No payment under sub-paragraph (1) shall be made towards the premium on an educational endowment policy or a marriage endowment policy if that policy is due for payment in whole or part before the member attains fifty years of age.

(8)

[So long as the policy remains assigned to the Board, any bonus accruing on it shall be drawn on behalf of the Board by the Commissioner for being credited to member's own contribution account in the Fund.]

(9)

The terms of the policy which is financed from the Fund shall not be altered nor shall the policy be exchanged for another policy without the prior sanction of the Commissioner or such other officer subordinate to him as may be authorised by him in this regard and a member desirous of altering the terms of his policy financed from the Fund or exchanging the same for a new policy, shall furnish to the Commissioner or such other officer, subordinate to him, as may be authorised by him in this behalf, the details of the intended alteration or of the new policy, as the case may be, in such form as the Commissioner may specify.

(10)

Medical fees charged by the Life Insurance Corporation of India in respect of the proposal of a member for insurance of his life approved by the Commissioner or an officer subordinate to him under clause (i) of sub-paragraph (4) and found acceptable to the Life Insurance Corporation of India after medical examination, but which eventually does not materialise for any reason, what-so-ever, shall be debited to the member's own share of contribution with interest thereon standing to his credit in the Fund.

(11)

Where a member fails to pay into the Fund any amount realised by him by way of bonus as required under sub-paragraph (8), such amount shall be recovered by his employer from the member's emoluments in such instalments as the Commissioner, or such other officer subordinate to him as may be authorised by him in this behalf may determine. The employer shall render such account of the recoveries so made by him as the Commissioner may prescribe and shall deposit the sums so recovered into the Fund in such manner as the Commissioner may specify.

(12)

In the event of a member withdrawing his accumulations in the Fund under paragraph 63 before the maturity of his insurance policy financed partly or wholly out of his accumulations in the Fund, the policy so financed shall be assigned in favour of the member. When the assured sum of a policy financed partly or wholly out of the Fund falls due for payment before orders for payment of the accumulations in the Fund of the member concerned have been passed the policy money shall be realised by the Fund from the Life Insurance Corporation of India and credited in the member's own contribution account in the Fund. Such amount shall on receipt in the Fund be deemed as the member's own contribution to the Fund for currency period in which received and be paid to him or his nominee(s) or his heir(s), as the case may be, in accordance with the provisions contained in this Scheme.

(12A)

[In the event of the accumulations in the Fund of a member being transferred to any other Provident Fund under paragraph 31 C before the maturity of the policy of Insurance taken by such member and financed partly or wholly out of his accumulations in the Fund, the policy so financed shall -

(a)

where the member concerned so requests in writing to the Commissioner or where so authorised by the Commissioner, to any other officer subordinate to him and the authority administering the Provident Fund to which his accumulations in the Fund are transferred, agrees to accept such assignment, be re-assigned in favour of the said authority; and

(b)

where the member concerned does not so request or the authority administering the Provident Fund to which his accumulations in the Fund are transferred does not agree to accept such assignment, the policy shall be re-assigned to such member.

(12B)

On a written request made to the Commissioner or where so authorised by the Commissioner to an officer subordinate to him by a member to the effect that the premium payable to the Life Insurance Corporation of India on the policy of Insurance taken by such member and financed partly or wholly out of the accumulations of the member in the Fund need not, thereafter, be paid from such accumulations and that the policy may be re-assigned to him, the policy shall be re-assigned in favour of the member.]

[Paras (12A) & (12B) inserted vide O.S.R. No. 1387 dated 25.9.1976.]

Provided that in cases where a member makes a request for the re-assignment of his policy to him, the policy shall be re-assigned to him only if he pays back into his account in the Fund, the amounts paid from it, as premium on the policy to the Life Insurance Corporation of India or he gives an undertaking in writing that he shall by himself thereafter, regularly pay to the Life Insurance Corporation of India, the premium on such policy till its maturity.

Provided further that where the policy is re-assigned to the member under this sub-paragraph the policy shall remain under the custody of the Board till the member ceases to be in employment in the Coal Industry or till the policy matures, whichever is earlier.

(13)

Any portion of the first premium on a proposal for insurance paid under sub-paragraph (1), if refunded by the Life Insurance Corporation of India due to nonacceptance of the proposal by the said Corporation and any bonus refunded by the member under sub-paragraph (11) shall be deemed as the member's own contribution for the currency period in which the amount is received in the Fund or is recovered from the member's wages, as the case may be, and shall be

credited in the member's own contribution account on receipt in the Fund.

(14)

In cases where stamp duty on an assignment under clause (iv) of sub-paragraph (4) or clause (i) of sub-paragraph (6) or on a re-assignment under subparagraph (12), [sub-paragraph (12A) or sub-paragraph (12B) has been paid out of the Fund]

[Inserted vide G.S.R. No. 1387 dated 25.9.76.]

, such duty shall be debited to the member's own contribution with interest thereon standing to his credit in the Fund.]

[65D. Omitted.]

[Para 65D omitted vide G.S.R. No. 567 dated 9.6.1984.]

65E.

[Grant of advances in special cases.

[Para 65E added and deemed always to have been added vide G.S.R. 14 dated 22.10.70.]

- Where a coal mine has been locked up or closed down for more than fifteen days and its employees are rendered unemployed without any compensation the Central Government on being satisfied that no compensation to the employees is likely to be paid by the employer within a reasonable time may authorise payment to a member who was employed in such coal mine one or more non-recoverable advances from his Provident Fund account not exceeding his own total contributions including interest thereon upto the end of the currency preceding the date of authorisation of such payment.]

[Provided that in the case of partial closure of a coal mine, where the Central Government is satisfied that it has resulted in genuine hardship to a member who is unemployed or partially employed without receipt of sufficient compensation, it may also, authorise payment to a member of a non-recoverable advance from his Fund-Account of an amount not exceeding 50 percent of his own total contributions including interest thereon standing at his credit in the Fund upto the end of the currency period preceding the date of authorisation of such payment.]

[Proviso to para 65E added vide Notification No. R-10013(9)/72-PF I dated 9.9.72.]

65F.

[Advance from the Fund for meeting the expenses in connection with the marriage of the member, his or her son or daughter or dependent sister.

[Paragraph 66 Finsered vide G.S.R. No. 687 dated 13.5.75. and thereafter the Heading of this paragraph was substituted vide G.S.R. 1159 dated 8.11.1980.]

(1)

The Commissioner or where so authorised by the Commissioner, any other officer subordinate to him, on an application from a member in such form and supported by such documents as the Commissioner may prescribe, sanction from the amount standing to the credit of the member in the Fund, a non-recoverable advance [.....] for the purpose of meeting the expenses [in connection with the marriage of the member, his or her son or dependent sister.]

[Substituted by G.S.R. 1159 dated 8.11.80.]

Provided that the amount of [each]

[Inserted vide G.S.R. No. 363 dated 24.5.86.]

advance shall not be more than 50 percent of the member's own total contribution including interest thereon standing to his credit on the date of authorisation of such advance.

[.....]

[Omitted vide G.S.R. No. 363 dated 24.5.86.]

(2)

No advance under sub-paragraph (1) shall be sanctioned unless the amount of the member's own total contribution with interest thereon standing to his credit in the Fund is rupees five hundred or more on the date of authorisation of such advance.

(3)

Not more than [two]

[Substituted vide G.S.R. No. 363 dated 24.5.86.]

advances shall be sanctioned to a member under this paragraph.

(4)

If the advance granted under this paragraph exceeds the amount actually spent for the purpose, the excess amount

shall be refunded by the member to the Fund within thirty days from the date on which the marriage is performed.

(5)

[The member shall, as soon as may be after the marriage of the member, his or her son or daughter or dependent sister is performed but in any case not later than sixty days from the date the advance is drawn, submit to the officer who sanctioned the advance a declaration in such form and in such manner as may be prescribed by the Commissioner to the effect that the marriage was actually performed and the whole amount of the advance drawn by him or her was spent for the purpose.]

[Sub-paragraph (5) substituted by G.S.R. No. 1159 dated 8.11.1980.]

(6)

In case of misuse of the advance granted under this paragraph, the whole amount of the advance shall be recovered from the member in terms of the provisions contained in sub-paragraph (9) of paragraph 65B.

(7)

Any advance under this paragraph may at the option of the member, be paid-

(i)

by postal money order at the cost of the member; or

(ii)

by account-payee cheque sent through post; or

(iii)

by account-payee cheque at any office of the Fund or the concerned colliery ;

Provided that when payment is made by any mode other than postal money order or account payee cheque sent through post, the officer sanctioning the payment may obtain such evidence of the identity of the payee as he may consider proper.]

65G.

[Advance from the Fund for meeting expenses in connection with post-matriculation education of children.

[Paragraph 65G inserted by G.S.R. 687 dated 31.5.75.]

(1)

The Commissioner or where so authorised by the Commissioner any other officer subordinate to him, may on an application from a member in such form and supported by such documents as the Commissioner may prescribe, sanction from the amount standing to the credit of the member in the Fund, a non-recoverable advance of an amount not exceeding three months' pay in respect of a monthly paid employee and twelve weeks' wages in respect of a weekly-paid employee for the purpose of meeting the expenses in connection with the post-matriculation education of his children ;

Provided that the amount of advance shall not be more than 50 % of the member's own total contributions including interest thereon standing to his credit on the date of authorisation of such advance;

Provided further that for arriving at the quantum of advance the pay or wages drawn in the month or week preceding the month or week in which the application for advance is received from the monthly rated or weekly rated employee, as the case may be, shall be taken as the basis and the actual amount shall be calculated by multiplying the same by three or twelve in cases of monthly-paid or weekly-paid employees respectively.

(2)

No advance under sub-para (1) shall be sanctioned unless the amount of the member's own total contribution with interest thereon standing to his credit in the Fund is Rupees five hundred or more on the date of authorisation of such advance.

(3)

Not more than one advance shall be sanctioned to a member under this paragraph.

(4)

The member shall submit to the officer who sanctioned the advance, a declaration within such time, in such form and in such manner as may be prescribed by the Commissioner to the effect that the advance has been utilised for the purpose for which it was drawn.

(5)

In case of misuse of the advance granted under this paragraph the whole amount of the advance shall be recovered from the member in terms of the provisions contained in sub-paragraph (9) of paragraph 65B.

(6)

Any advance under this paragraph may, at the option of the member be paid-

(i)

by postal money order at the cost of the member; or

(ii)

by account payee cheque sent through post; or

(iii)

by account payee cheque at any office of the Fund or the concerned colliery;

Provided that when payment is made by any mode other than postal money order or account payee cheque sent through post, the officer sanctioning the payment may obtain such evidence of the identity of the payee as he may consider proper]

65H.

[Grant of advance in abnormal conditions.

[Paragraph 65H inserted vide G.S.R. No. 993 dated 24.12.83.]

- The Commissioner or where so authorised by the Commissioner, any other officer subordinate to him, may on an application from a member whose property, movable or immovable has been damaged by a calamity of exceptional nature, such as draught, flood, earthquakes or riots, authorise payment to him from the Provident Fund Account, a non-refundable advance of Rs. 1,000/- (Rupees one thousand) or fifty percent of his own total contribution including interest thereon standing to his credit on the date of such authorisation, whichever is less, to meet the unforeseen expenditure.

Provided that no advance under this paragraph shall be paid unless -

(i)

The State Government has declared that the calamity has affected the general public in the area ;

(ii)

The member produces a certificate from an appropriate authority to the effect that his property (movable or immovable) has been damaged as a result of the calamity.]

66.

Payment of Provident Fund.

(1)

When the amount standing to the credit of a member, or the balance thereof after any deduction under paragraph 63 or 65 becomes payable, it shall be the duty of the Commissioner to make prompt payment as provided in this Scheme []

[The words 'He shall close the account of the member and give notice in writing to the person to whom the amount is payable, specifying the amount and tendering payment thereof,' omitted vide G.S.R. 843 dated 19.5.64.]

.

(2)

If any portion of the amount, which has become payable, is in doubt or dispute the Commissioner shall make prompt payment of that portion of the amount in regard to which there is no dispute or doubt, the balance being adjusted as soon after as may be.

(3)

["If the person to whom any amount is to be paid under this Scheme is a minor for whose estate a guardian under Guardians and Wards Act, 1890 (8 of 1890) has been appointed, the payment shall be made to such a guardian. Where no such guardian has been appointed the payment shall be made to the guardian appointed under sub-paragraph (4A) of paragraph 62, if any. Where no guardian has been appointed either under the Guardians and Wards Act, 1890 (8 of 1890) or under subparagraph (4A) of paragraph 62 of the Scheme, the payment shall be made to the natural guardian and in the absence of a natural guardian to such person as considered to be the proper person representing the minor by the Assistant Commissioner to the extent of amount not exceeding Rs. 5,000/-, by the Regional Commissioner to the extent of amount not exceeding Rs. 15,000/-, by the Joint Commissioner to the extent of amount not exceeding Rs. 20,000/-, and by the Commissioner where the amount exceeds Rs. 20,000/-.

Provided that in the event of there being more than one claimant as a guardian of a minor, the claim of the person entitled to receive such payment on behalf of the minor shall be decided by the Commissioner ;

Provided further that no payment shall be made to such claimant without obtaining from him a bond for indemnifying the Commissioner against the claim of any other person entitled to receive such payment under a decree or order of any Court."]

[Sub-para (3) of paragraph 66 reconstituted vide Govt. of India, Ministry of Labour Notification No. PF 2 (13)/51 dated 5.9.51 and again reconstituted vide G.S.R. 1061 dated 15.6.64 and thereafter reconstructed vide G.S.R. 907 dated 6.9.80.]

(3A)

[If the person to whom any amount is to be paid under this Scheme is a lunatic for whose estate a Manager under the Indian Lunacy Act, 1912 (4 of 1912) has been appointed, the payment shall be made to such Manager. If no such Manager has been appointed the payment shall be made to the natural guardian of the lunatic and in the absence of any such natural guardian, to such person as the [Regional Commissioner or the]

[Sub-paragraph (3A) and (3B) of para 66 added vide G.S.R. 1061 dated 15.6.1963.]

Assistant Commissioner where the amount does not exceed rupees seven hundred fifty or the Commissioner where the amount exceeds rupees seven hundred fifty []

[[] The words 'but does not exceed rupees one thousand or the Chairman of the Board in any other case' omitted vide G.S.R. No. 1140 dated 7.5.1969.]

considers to be the proper person representing the lunatic.

(3B)

The receipt of the person to whom any payment is made under subparagraph (3) and (3A) shall be sufficient discharge of the liability of the Fund in respect of the amount paid to him.]

(4)

If it is brought to the notice of the Commissioner that a posthumous child is to be born to the deceased member, he shall retain the amount which will be due to the child in the event of its being born alive, and distribute the balance. If subsequently no child is born or the child is still born, the amount retained shall be distributed in accordance with the provisions of paragraph 64.

(5)

[Any person who desires to claim payment under this paragraph shall send a written application to the Regional Commissioner, or to any other officer authorised by the Commissioner in this behalf, who shall, after the claim is ready for payment, notify to the claimant in such form as the Commissioner may prescribe, the amount to be paid and the amount to be forfeited, if any.]

[Sub-para (5) of the Paragraph 65 first substituted vide G.S.R. 1121 dated 13.8.1962 then amended vide G.S.R. 841 dated 19.5.1964 again substituted vide Notification No. 1. 11015(70)/71 PF I(1) dated 25.10.71. Again the opening portion of the sub-para and clauses (i) and (ii) thereof substituted vide Notification No. R-11018(3)/73-PF I(i) dated 25.8.73 again substituted vide G.S.R. No. 1118 dated 30.11.85.]

(6)

[Where any application for refund of Provident Fund under sub-paragraph (5) is submitted by the claimant through the employer of the coal mine where the member to whom the claim relates was last employed or where any such application received by the Commissioner or any other Officer under his control directly from the claimant is forwarded to the employer of the coal mine where the concerned outgoing or deceased member was last employed, such employer shall within twenty days of the receipt of such application, send the same duly attested to the Commissioner or to such other Officer under his control as he may authorise in this behalf [+]

[Sub-para (6) and (7) added vide G.S.R. No. 1645 dated 23.10.67.]

[(together with such information and documents as may be specified by the Commissioner).]

[The words 'where the Return in Form 'W' prescribed under paragraph 44A of this Scheme has not been submitted by the employer in respect of the outgoing or deceased member to whom the claim relates. the same shall be sent alongwith the attested application for refund' deleted vide G.S.R. No. 2483 dated 21.10.1969.]

(7)

Every employer shall assist the Commissioner or any other Officer under his control in obtaining such other information as may be required for settlement of claims for refund of Provident Fund.]

66A.

[Mode of remittance of Provident Fund and advances therefrom.

[Paragraph 66A inserted vide G.S.R. No. 1118 dated 30.11.85.]

(1)

All payments on account of advance under paragraphs 65B, 65E, 65F, 65G and 65H as well as payments of provident fund to the outgoing members and/or nominees/heirs of deceased members under paragraph 66, shall be made by deposit to the payee's Savings Bank Account in any Post Office or in any branch of a Nationalised Bank.

Provided that where it is found difficult, or not practicable to open a payee's Savings Bank Account in any Post Office or in any branch of a Nationalised Bank, the

Regional Commissioner or any other officer authorised by the Commissioner in this behalf, may, for reasons to be recorded in writing, make payment in any of the following methods as may be considered appropriate by the sanctioning authority in accordance with the guidelines issued by the Commissioner :-

(i)

by money order at the cost of the payee ;

(ii)

by account payee cheque either sent through registered post or made over to the payee personally; or

(iii)

in cash.

Provided further that where it is decided to make payment otherwise than by deposit in payee's Savings Bank Account in any Post Office, or in any branch of a Nationalised Bank, or by an account payee cheque, sent by registered post, or by money order, the sanctioning authority shall do so, only after getting the identity of the payee certified by the Manager of the Colliery/Office which forwarded the payee's claim.

(2)

All payments to parties other than the members under paragraphs 65B and 65C of the Scheme, shall be made by means of account payee cheques sent by registered post.]

67.

[Provident Fund Pass Books of member's account.

[Paragraph 67 substituted vide G.S.R. No. 513 dated 16.7.1983.]

(1)

The Commissioner or such officer subordinate to him as may be authorised by him in this behalf shall issue for every member a Pass Book of his account in the fund in such form as the Commissioner may prescribe from time to time and send the same to the Coal Mine where he was employed during the period for which last posting is made in the pass book.

Provided that for members for whom Pass Books have not been issued upto the date on which the Coal Mines Provident Fund (Amendment) Scheme, 1983 comes into force and for those who become members thereafter, Pass Books shall be issued immediately after posting of their first contribution for any period after the aforesaid date in the individual ledger card.

(2)

The Pass Book shall show the personal particulars of the member, the opening balance at the beginning of the period, the total amount credited and debited during the period, the total amount of interest credited at the end of the period and the closing balance at the end of the period.

(3)

On receipt of Pass Book for any member for the first time, the employer shall record the receipt in a Register in such form as may be prescribed by the Commissioner and, within three months of the receipt of the Pass Book, arrange to affix thereto a passport size photograph of the member. Each member shall be photographed alongwith a legible number plate showing his name and account number and the photograph affixed in the pass book shall be attested under the signature of the employer or of his authorised representative spreading from the photograph to the paper of the Pass Book on which it is affixed. The date of photographing shall be recorded both in the Pass Book and the register referred to in this sub-paragraph.

Provided that the cost of such Pass Books including the cost of members' photographs to be affixed in such Pass Books shall be met from the Administration Account.

(4)

After photographing of the members as provided under sub-paragraph (3), the employer shall distribute the Pass Books

received by him from the Commissioner or such officer subordinate to him as may be authorised by him in this behalf, among the members concerned within a period of fifteen days from the date of completion of photographing of the members and obtain their acknowledgement in the register referred in sub-paragraph (3).

(5)

Every member shall keep the Pass Book as a permanent record of his account in the Fund and satisfy himself as to the correctness of the account and bring errors and omissions, if any, to the notice of the employer for communication to the issuing officer.

(6)

The Regional Commissioner or the Assistant Commissioner, Incharge of the Regional Office, shall send teams of officials to each coal mine from time to time in order to update the Pass Books already in possession of the members. The periodicity and the manner of updating the pass books shall be laid down from time to time by the issuing officer in consultation with the Commissioner and the employer.

(7)

When a member joins a Coal Mine from another Coal Mine, the employer of the Coal Mine which he joins shall ascertain from the member in writing whether the member had received his Pass Book at the colliery where he was employed previously and record his reply in the register referred to in sub-paragraph (3) indicating therein the same of the coal mine wherefrom he came.

(8)

When a claim for refund of Provident Fund is received by an employer, he shall verify from the register referred to in sub-paragraph (3) whether Pass Book of the member has been issued, where Pass Book is found to have been issued to the member, the claimant shall be asked to return the same to the employer. A pass book so returned to the employer shall be sent alongwith the claim to the concerned Regional Commissioner or Assistant Commissioner, Incharge of a Regional Office.

(9)

Where on receipt of a Pass Book, if it is found that the concerned member is no longer employed in the colliery to which the pass book has been sent, the receiving employer shall transfer the pass book to the coal mine to which the member has been transferred under intimation to the issuing officer and in the event of member's death or retirement, the pass book shall be returned to the issuing officer.

Provided that in both the cases, receipt and transfer of the pass book shall be recorded in the register referred to in sub-paragraph (3).

(10)

The cost of photographs shall be re-imbursed from the Fund to the employer out of Administration Account subject to such ceiling as may be laid down by the Board from time to time and for such re-imbusement, the employer shall be required to submit to the officer who sent the pass books, bills, in such form and supported by such documents as the Commissioner may prescribe from time to time.

(11)

While submitting the returns in Form 'V' or Form 'V' (Revised) as the case may be, every employer shall endorse in the remarks column thereto an abbreviation :-

(i)

'PB' against the names of the members where pass books are already opened;

(ii)

'New' against the names of those who qualified as new members during the currency period to which the return in Form 'V' or Form 'V' (Revised), relates;

(iii)

'T' against those members who have joined on transfer from other coal mines and have dedared under Sub-paragraph (7) that they have not been provided with Pass Books. In their cases, the name and registered number of the coal mine wherefrom they have been transferred shall also be indicated after the abbreviation 'T'.

(12)

Each member shall be got photographed by the employer for the second time after expiry of a period of ten years from the date of his first photographing within three months of such expiry and the second photograph shall be affixed and attested in the manner laid down in sub-paragraph (3). The cost of the photographing for the second time shall be

re-imbursed by the Fund in the manner laid down in sub-paragraph (10).]

68.

[Annual Report and Annual Account of Coal Mines Provident Fund.

[Para 68 substituted Vide G.S.R. No. 414 dated 21.5.1988.]

- The Commissioner shall place a report on the working of Coal Mines Provident Fund Scheme relating to the previous financial year alongwith audited annual accounts at a meeting of the Board to be held before 15th November, each year and the Board shall submit such report with Accounts to the Central Government for placing them on the tables of the Houses by end of December each year.

Provided that if the audit report is received subsequent to 15th October, the audited annual Accounts shall be placed in the next meeting of the Board to be convened within one month of its receipt.]

69.

Issue of Duplicate [Copies of Members' Accounts, Annual Report]

[The words 'Identity Cards' and 'issue duplicate Identity Cards and' appearing in the original Scheme omitted vide Government of India' Ministry of Labour Notification No. PF 2(16)5 dated 8.7.52.]

, etc.

(1)

The Commissioner shall furnish [a copy of duplicate pass book or a copy of annual report]

[Substituted vide G.S.R. No. 513 dated 16.7.83.]

of the Fund to any member on written application on payment of such fees and subject to such conditions as may be specified by Board in this behalf.

(2)

[Where a Pass Book is lost while in the custody of an employer a duplicate Pass Book shall be issued by the Regional Commissioner concerned on payment of such fees by the employer as may be laid down by the Board from time to time.

(3)

Where a Pass Book is lost while in transit or in the office of the Fund, a duplicate Pass Book shall be issued free of cost.

(4)

Worn-out or mutilated Pass Books shall be replaced free of cost.

(5)

The cost of photographs to be affixed in such duplicate Pass Books shall be re-imbursed in the same manner as provided in sub-paragraph (7) of Paragraph 67.]

[Para 69 re-numbered as sub-para (1) thereof and sub-para (2) to (5) inserted vide Notification No. 11011(1)/72 PF I (i) dated 8.8.72.]

69A.

[Obligation to produce Documents before Inspector.

[Inserted by the Government of India, Ministry of Labour Notification No. PF 2(11)/52 dated 24.4.52.]

- Where an Inspector in exercise of the powers conferred on him under clause (b) of sub-section (2) of section 10 of the Act requires any person in charge of a coal mine or its office to produce any document before him, that person shall produce such document before the Inspector.]

69B.

[Transfer of records in case of change of ownership or closure of a coal mine.

[Inserted vide Government of India, Ministry of Labour Notification No. PF 2(II)/52 dated.2.11.55.]

(1)

In the event of a change in the ownership of a coal mine to which this scheme applies, the previous owner shall, within a period of one month from the date of change in ownership, transfer to the new owner all records relating to this scheme and within a fortnight of the transfer of records furnish by registered post or through a messenger a handing and taking over report in Form 'R' annexed hereto, in duplicate, to the Coal Mines Provident Fund Commissioner, duly completed by the new owner who shall take over the records transferred to him under this paragraph and acknowledge the same in the said report.

(2)

In the event of any colliery being closed the owner shall, within a period of one month from the date of closure, forward by registered post or through a messenger, to the Commissioner all records relating to this Scheme and a statement in

such Form as the Commissioner may specify, showing the details of the outstanding dues of the Fund, if any.]
70.

[]

[Paragraph 70 omitted vide G.S.R. 492 dated 1.4.66.]

'A'

(a)

[List of treasuries at which Coal Mines Provident Fund Contribution Stamps are stocked for issue to registered Coal Mines.]

[Inserted vide Government of India, Ministry of Labour Notification No. PF 21 (23)/11 dated 23.6.1952.]

West Bengal

Asansol

Calcutta

Bihar

[@]

[The word 'Manbhum' deleted by Government of India, Ministry of Labour Notification No. PF 21(23)/ II dated 23 June, 1952]

Dhanbad

Hazaribagh

Central Provinces and Berar

Baikunthpur

Bilaspur

Chanda

Chhindwara

Orissa

Sambalpur

Talcher

[For Assam, see paragraph 9II of Appendix 1,

For Rewa and Korea, see paragraph 8B of Appendix III]

(b)

[List of Post Offices at which Coal Mines Provident Fund contribution stamps are stocked for issue to registered Coal Mines.

[Inserted vide Government of India, Ministry of Labour Notification No. PF 21 (23)/11 dated 23.6.1952.]

Bihar

Dhanbad

Jharia

(Schedule 'A' omitted, for J&K see paragraph 11 of Appendix IV.))

[Schedule 'B'

[Schedule 'B' inserted vide S.R.O. 3306 dated, 22nd October 1954.]

List of treasuries, sub-treasuries at which amounts may be deposited for being credited to the Fund.

West Bengal :-Asansol, Calcutta, Bankura, Suri, [Purulia].

Bihar :- []

[Manbhum added vide S.O. 2274 dated 13th September 1960.]

Dhanbad, Hazaribagh, Ranchi, Palamau, [Latehar, Dumka, Deoghar]

[Inserted vide Government of India, Ministry of Labour Notification No. PF 2(16)/51 dated 3.5.1955.]

.

Madhya Pradesh :- Manendragarh, Nagpur, Baikunthpur, Bilaspur, Chanda, Chhindwara.

Orissa :-Sambalpur, Talcher.

Rewa :- Shadhol, Umaria.

Assam :- Shillong, Sibsagar, Margherita, Dibrugarh.]

(Schedule 'B' omitted for J&K see paragraph 11 of Appendix IV)

Form 'A'

The Coal Mines Provident Fund Scheme

Coal Mines Provident Fund

(Declaration by Person Employed in a Coal Mine)

1. Name (in block capital)
2. Sex
3. Caste or Surname
4. Religion
5. Occupation
6. Height
7. Father's Name
8. Husband's Name (for married women)
9. Marital Status(whether bachelor, spinster, married, widow, widower)
10. Date of Birth Day Month year
11. Marks of Identification
12. Permanent Address
Village Thana
District Province or State

I declare that I have/my ward has not previously been a member of the Coal Mines Provident Fund and I hereby direct that the amount at my/my ward's credit in the Coal Mines Provident Fund at the time of my/my ward's death shall be paid to the following person(s) in the manner shown against their names-

Name and address of the nominee or nominees

Nominee's relationship with the member

Age of nominee

Amount or share of accumulation in the Fund to be paid to the nominee(s)

[I hereby direct that in the event of my death during the minority of my above named nominee(s) the person whose particulars are given below shall be deemed to be guardian of the minor nominee(s) for the purpose of the Coal Mines Provident Fund Scheme :]

[Added vide G.S.R. 1061 dated 15.6.63.]

Name and address of the guardian

Age of guardian

Relationship of the guardian with the member

Dated:.....

Signature or left thumb impression of the person employed or his guardian

Certified that above declaration has been signed by/by the guardian of.
employed in my coal mine before me after

he has read the entries the entries have been read over to him by me.

Signature of Manager or other officer.

Designation

Regd. No. of Coal Mine

Name and address of Coal Mine

Dated

N.B. The space for photograph together with the words "space for photograph" omitted vide Government of India, Ministry of Labour notification no. PF 2(16)/52, dated 24th Nov. 1952.

Form 'B'

Coal Mines Provident Fund Scheme

Statement of contributions deposited into the treasury or Imperial Bank of India in respect of the period
----- to -----

Instruction :-

1. Treasury or Bank Challan and declaration forms should accompany this statement.
2. If the declaration form is not sent in any case, reasons should be given in 'Remarks' column.

The Coal Mines Provident Fund Scheme

Name and address of the Coal Mine.....

Regd. No. of Coal Mine.....

Sl. No.

Name of person employed (in block capitals)

Father's name (or Husband's name in the case of married woman)

Amount of Contribution

Account Number*

Remarks

Employer's share

Member's share

Total

Total Amount of Contributions

Add 5% Administrative charges

Signature of the Manager of Coal Mine

Total amount to be deposited

Amount actually deposited

Treasury or Bank in which

deposited

No. and date of Treasury or Bank Challan

*To be filled by employer only if an Account No. has already been allotted to the member.[This form has been omitted for Assam, Talcher, Rewa and Korea and J&K; see paragraph (9) III, I.8 and 8 C and 11 of appendix I, II, III and IV respectively.

Form 'C'

Coal Mines Provident Fund

(Election Under Paragraph 26 of the Coal Mines Provident Fund Scheme)

1. Name (in block capitals)

2. Sex 3. Religion

4. Father's name

5. Husband's name (for married women only)

6. Date of birth

7. Permanent Address

8. Name of Provident Fund of which he is already a member

.....

I declare that all the particulars stated above are true to the best of my knowledge and belief and I hereby elect/do not elect to continue to be a member of the aforesaid Provident Fund.

Signature or left hand thumb impression of person employed

Certified that the above declaration has been signed by.....employed in*

before me and that he is a member of.....

Provident Fund] +recognised under Income Tax Act, 1922+to which the Provident Fund Act, 1925, applies

Signature of Manager or Other Officer of Coal Mine

Regd. No. Coal Mine

* Here give the name of Coal Mine in which employed.

+ Score out the portion not applicable.

Form 'D'

Coal Mines Provident Fund

Contribution Card for employees other than monthly rated employees for the period from to

.....

1. Account No

2. Name (in block capitals)

3. Caste or Surname

4. Sex
5. Date of birth
6. Occupation
7. Father's name
8. Husband's name (for married woman only)
9. Marital Status
10. Permanent address :-
Village Thana
District Province or State
11. Signature or left hand thumb impression of member
12. Signature of person preparing the Card
13. Signature of Manager of Coal Mine
14. Registered No. of Coal Mine
15. Name and address of Coal Mine

WARNINGAny person who removes a stamp from
this card or makes use of a stamp removed from a card is able to
prosecution.

Week1

Week2

Week3

FOLDCARDHEREDONOTTEAR

Week30

Week31

Week32

Week33

Week34

Week35

Week4

Week5

Week6

Week7

Stamp must not be bought except at a Government
treasury

Week8

Week36

Week37

Week38

Week39

Week40

Week41

Week9

Week10

Week11

Week12

Week13

Week14

Week42

Week43

Week44

Stamp must not be bought except at a Government
treasury

Week45

Week46

Week15

Week16

Week17

Week18

Week19

Week20

Week47

Week48

Week49

Week50

Week51

Week52

Week21

Week22

NOTICE TO EMPLOYER Each stamp should be firmly affixed and the date of affixing and employer's registered No. at once stamped with metallic die across the face of stamps.

Week23

SUMMARY OF STAMPS AFFIXED

Number

Denomination of stamps affixed

Nominal value of Stamps affixed

Signature of

employers' Clerk

Checked and found correct

Week24

Week25

Week26

Week27

Week28

Week29

Rs.

As.

Rs.

As.

Total Nominal value of stamps

Signature of the clerk in the office of the
Commissioner.

Account No.....

PARTICULARS OF EMERGENCY CARDS ISSUED

Serial No

Registered No of Coal Mine issuing the emergency
card

Period for which emergency card issued

Remarks

To

PARTICULARS OF EMPLOYMENT

Registered No of Coal Mine

Duration of employment

Remarks

Initials of employer's clerk

From

[Form 'D' (Revised)]

[Form 'D' (Revised) inserted vide S.R.O. 3306 dated 22.10.54.]

Coal Mines Provident Fund

Contribution Card for employees other than monthly rated employees for the period from to

1. Account Number
2. Name (in block capitals)
3. Caste or Surname
4. Sex 5. Date of birth
6. Occupation
7. Father's name
8. Husband's name (for married woman only)
9. Marital status
10. Permanent Address :- Village Thana
Dist Province or State
11. Signature or left hand thumb impression of member
12. Signature of person preparing the Card
13. Signature of Manager of Coal Mine
14. Registered No. of Coal Mine
15. Name and Address of Coal Mine

Week

Wages earned. (Pies to be taken as one anna)

Contri-butions.

Under Charge (+) Over Charge (-)

Week.

Wages earned. (Pies to be taken as one anna)

Contri-butions

Under Charge (+) Over Charge (-)

Week

Wages earned. Pies to be taken as one anna)

Contr-ibutions

Under Charge (+) Over Charge (-)

Week.

Wages earned. (Pies to be taken as one anna)

Contr-ibutions

Under Charge (+) Over Charge (-)

Summary of Contributions.

Period

Contri-butions

UnderCharge(+) OverCharge(-)

Rs.

As.

Rs.

As.

Rs.

As.

Rs.

As.

Rs.
As.
Rs.
As.
Rs.
As.
Rs.
As.
Rs.
As.
Rs.
As.
Rs.
As.
Rs.
As.
From
To
Rs.
As.
Rs.
As.
1st
14th
27th
40th
1st week
13th Week
2nd
15th
28th
41st
14th Week
26th Week
3rd
16th
29th
42nd
27th week
39th Week
4th
17th
30th
43rd
40th Week
52nd53rd Week
5th
18th
31st
44th
6th

19th
32nd
45th
Rs.
As.
7th
20th
33rd
46th
8th
21st
34th
47th
Total contributions
Add on account of Under Charge
9th
22nd
35th
48th
Deduct on Account of Over Charge
10th
23rd
36th
49th
Net amount of Contributions*
11th
24th
37th
50th
*To agree with the
amount shown is statement 'I' for credit to the member's Fund
Account.
Signature of Employer's Clerk
Checked and found correct.
Signature of Clerk in C.M.F. Office.
12th
25th
38th
51th
13th
26th
39th
52th
53rd
Total
Particulars of Employment
Registered No. of Coal Mine
Duration of Employment
Remarks
Initials of employer's Clerk
From

The Coal Mines Provident Fund Scheme

To

[Form 'D(V)']

[Form 'D(V)' inserted vide G.S.R. 1063 dated 6.6.63.]

Contribution card for employees other than monthly rated employees for the period
from.....to.....

1. Account No
2. Name (in block capitals)
3. Father's/husband's name
4. Signature or left thumb impression of the member
5. Signature of person preparing the card
6. Signature of Manager of Coal Mine
7. Registered No. of coal mine
8. Name and address of coal mine

We-ek

Total emotu-ments

earned

Contributions

Under Charge (+)

over charge (-)

We-ek

Total emotu-ments

earned

Contributions

Under charge (+)

over charge (-)

We-ek

Total emotu-ments

earned

Contributions

Under charge (+)

over charge (-)

We-ek

Total emotu-ments

earned

Contributions

Under charge (+)

over charge (-)

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

Mem-bers share

Empl-oyers shares

16th
29th
42nd
4th
17th
30th
43rd
5th
18th
31th
44th
6th
19th
32nd
45th
7th
20th
33rd
46th
8th
21st
34th
47th
9th
22nd
35th
48th
10th
23rd
36th
49th
11th
24th
37th
50th
12th
25th
38th
51st
13th
26th
39th
52nd
53rd
Summary of Contribution
Period
Contributions
Under Charge (+) Over Charge (-)
Member's share
Employer's share
Member's share

Employer's

From

To

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

1stweek

13thweek

14thweek

26thweek

27thweek

39thweek

40thweek

52nd/ 53rdweek

Rate of voluntary contribution.....per cent.

Member's Share

Employer's Share

Rs.

P.

Rs.

P.

Compulsory contributions brought forward from Form

'D(Revised)'

Contribution in this card

Add on account of under charges

Deduct on account of over charges

Net amount of contribution*

* To agree with the amount shown in statement 'I(V)' for credit to the Members' Fund Account.

Signature of Employer's clerk

Checked and found correct.

.....

Signature of clerk in C.M.P.F. Office

Form "E"

Coal Mines Provident Fund

Contribution Card for monthly rated employees for the period from to

1. Account No

2. Name (in block capitals)

3. Caste or surname

4. Sex 5. Date of birth

6. Occupation

7. Father's name

8. Husband's name

(for married women only)

9. Marital status

10. Permanent address :- Village Thana

District Province or State

11. Signature or left hand thumb impression of member
FOLD CARD HERE DO NOT TEAR
Account No
12. Signature of person preparing the card
13. Signature of Manager of Coal Mine
14. Registered No. of Coal Mine
15. Name and Address of Coal Mine
Particulars of Employment
Registered No. of Coal Mine
Period of employment
Remarks
Initials of Employer's
From
To
WARNING
Any person Who removes a stamp from this card or
makes use of a stamp removed from a card is liable to prosecution.
Month1
Month2
Month3
Month4
Month5
Month6
Month7
Stamps must not be bought except at a Government
treasury
Month8
Month9
Month10
Month11
Month12
FOLD CARD HERE DO NOT TEAR
NOTICE TO EMPLOYER
Each stamp should be firmly affixed and the date of affixing
and employer's registered No. at once stamped with metallic die
across the face of stamp.
Summary of stamps affixed
Number of stamps
Denomination of stamps
Nominal value
Signature of
employer's clerk
Checked
and found correct
Clerk of the Office of the Commissioner
Rs.
As.
Rs.
As.
Total nominal value of Stamps affixed
Particulars of emergency card issued

The Coal Mines Provident Fund Scheme

Employer's Registered No.

Period for which issued

Remarks

From

To

[Form 'E' (Revised)]

[Form 'E' (Revised)' inserted vide S.R.O. No. 3306 dated 22.10.1954.]

Coal Mines Provident Fund

Contribution Card for monthly rated employees for the period from to

1. Account No

2. Name (in block capitals)

3. Caste or Surname 4. Sex

5. Date of birth 6. Occupation

7. Father's name

8. Husband's name (for married women only)

9. Marital Status

10. Permanent Address :-

Village Thana

District Province or State

11. Signature or left hand thumb impression of member

FOLD CARD HERE DO NOT TEAR

Account No

12. Signature of person preparing the card

13. Signature of Manager of Coal Mine

14. Registered No. of Coal Mine

15. Name and address of Coal Mine

Particulars of Employment

Registered No. of Coal Mine

Period of Employment

Remarks

Initials of Employer's Clerk

From

To

Month

Wages earned (pies to be taken as one anna)

Contribution

Under charge (+) Over Charge (-)

Month

Wages earned (pies to be taken as one anna)

Contribution

Under charge (+) Over Charge (-)

Rs.

As.

Rs.

As.

Rs.

As.

Rs.

As.

Rs.

As.
Rs.
As.
B.F.
1st
7th
2nd
8th
3rd
9th
4th
10th
5th
11th
6th
12th
Total C.O.
Total
Fold Card Here Do Not Tear
Rs.
As.
Total contributions
.....
Add on account of under charge
.....
Deduct on account of over charge
.....
+Net amount of contribution
.....
+ To agree with the amount in statement 'I' for credit to Member's Fund Account.
Signature of Employer's Clerk
Checked and found correct.
Signature of Clerk in C.M.P.F. Office
[Form 'E(V)']
[Form 'E(V)' inserted vide G.S.R. 1063 dated 6.6.63.]
Coal Mines Provident Fund
Contribution card for monthly rated employees for the period from to.....
1. Account No
2. Name (in block capitals)
3. Father's/husband's name
4. Signature or left thumb impression of the member
5. Signature of person preparing the card
6. Signature of Manager of Coal Mine
7. Registered No of Coal Mine
8. Name and address of mine
Month
Total emoluments earned
Contribution
Under Charge (+)Over Charge (-)
Member's Contribution
Employer's Contribution

Member's Contribution

Employer's Contribution

Rs.

P

Rs.

P

Rs.

P

Rs.

P

Rs.

P

1st

2nd

3rd

4th

5th

6th

7th

8th

9th

10th

11th

12th

Total

Rate of Voluntary Contribution

percent

Member's Contribution

Employer's Contribution

Rs.

P.

Rs.

P.

Compulsory contribution brought forward from 'E(Revised)'

Contribution in this card

Add on account of undercharge

Deduct on account of overcharge

Net amount of contribution*

*To agree with the amount shown in statement 'I' for credit to Member's Fund Account.

Signature of Employer's Clerk

Checked and found correct.

Signature of Clerk in C M P, F, Office

Form 'F'

Coal Mines Provident Fund

Emergency Contribution Card for the period from to

1. Account Number

2. Name (in block capitals)

3. Caste or Surname 4. Sex

5. Occupation

6. Father's name

7. Husband's name (for married women only)

The Coal Mines Provident Fund Scheme

8. Marital Status
9. Permanent Address :- Village Thana
District Province or State
10. Signature or left hand thumb impression of member
11. Signature of person preparing the Card
12. Signature of Manager of Coal Mine
13. Registered No. of Coal Mine
14. Name and Address of Coal Mine
15. Space for Stamps -
16. Total nominal value of stamp affixed
17. Signature of employer's clerk
18. Checked and found correct
Clerk of the Office of the Commissioner

[x x x x x x]

[Form 'G' omitted vide Government of India, Ministry of Labour Notification No. PF 2 (16)/52 dated 24.11.52.]

Form 'H'

Coal Mines Provident Fund

Return of persons employed who qualified for membership of the Coal Mines Provident Fund during the quarter.....to.....

(To be sent to the Commissioner in duplicate with Form 'A')

Name and Address of Coal Mine

Regd. No. of Coal Mine

Sl. No.

Name of employee (in block capitals)

Father's name(or Husband's name in case of married women)

Category of employee's work

Sex

A/c. No. (not to be filled by employer)

[Date on Which the person was employed]

[New column inserted vide S.R.O. 2564 dated 31.7.57.]

Remarks

Date.....

Signature of Manager of Coal Mine

[Form 'H' (Revised)]

[New Form H (Revised) inserted vide S.O. 2620 dated 26.11.61.]

Coal Mines Provident Fund

Return of persons employed who qualified for membership of the Coal Mines Provident Fund during the month of.....19

(To be sent to the Commissioner in duplicate with Form 'A')

Name & Address of Coal Mine

Regd. No of Coal Mine

Sl. No.

Name of employee (in block capitals)

Father's (or Husband's name in case of married women)

Category of employee's work

Sex

A/c. No. (not to be filled by employer)

Date of employment

Remarks

The Coal Mines Provident Fund Scheme

Date

Signature of Manager of Coal Mine

Form 'HH'

Coal Mines Provident Fund

A return of members qualified for membership of Coal Mines Provident Fund transferred out from the colliery, came on transfer, or left service or superannuated or died

Name of the Coal Mine

For Quarter..... 19...

Regd. No. of the Coal Mine... ..

to.....19...

Part-A Qualified for Membership of the Fund

Sl. No.

Name of employees (in block capitals)

Father's name (or husband's name in case of married women

Category of employees

Sex

Date on which person was employed

Account No. (not to be filled by employer)

1

2

3

4

5

6

7

Part - B Members Transferred to Other Colliery During the Period

Sl. No.

Name

Father's or husband's name

CMPF Account No.

Colliery to which transferred

Remarks

1

2

3

4

5

6

Form 'HH'

Part - C Details of Person Who Joined Colliery on Transfer from other Colliery

Sl. No.

Name

Father's or husband's name

CMPF Account No.

Name of Colly Where from transferred

Remarks

1

2

3

4

5

6

Part - D Details of Persons whose Service Terminated Due To Resignation/medically Unfit/death/any Other Reason

Sl.No.

Name of member

Father's or Husband name

CMPF A/c. No.

Date from which service terminated

Reason for termination of service

Last known address of member or his next kin in
event of death

Remarks

1

2

3

4

5

6

7

8

Part - E Details of Persons who are Due to Retire Within Next Six Months Due to Superannuation

S.No.

Name of member

Father's name

CMPF A/c. No.

Due Date of superannuation

Remarks

1

2

3

4

5

6

Signature of Manager of Coal Mine or Officer Incharge of Unit

Form 'I'

Coal Mines Provident Fund

Return of Contribution Cards sent to the Commissioner on completion of contribution year

19..... to 19

(To be sent in duplicate)

Name and Address of Coal Mine

Regd. No. of Coal Mine

S.No.

Account No.

Name of Members (in block capitals

Number of emergency cards sent

Total contribution

Remarks

Space for use in Commissioner's office

Total Amount of Contribution

Total number of cards sent

Dated.....

The Coal Mines Provident Fund Scheme

Signature of Manager of Coal Mine

[Form 'I' (Revised)]

[Form I (Revised) Outer and inner inserted vide SRO 3306 dated 22 Oct. 1954.]

Form 'I' (Revised) Outer

Coal Mines Provident Fund

Return of Contribution Cards sent to the Commissioner on completion of Contribution year.....to.....19

(To be sent in duplicate)

Name and Address of Coal Mine.....

Regd. No. of Coal Mine.....

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of married women)

Total contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Total Amount of Contribution

* The columns with the heading P deleted vide GSR No. 1312 dated 29.12.34.

Form I (Revised)

Form 'I' (Revised) Inner

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of married women)

Total contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Total Amount of Contribution

*The columns with the heading P deleted vide GSR No. 1312 dated 29.12.84

Outer

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of married women)

Total contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Total Amount of Contribution

Total number of cards sent.....

Details of Payment

Nos. and dates of challans/cheques/Bank

Drafts/Pay-in-slips

Account

Name of Treasury/Bank in which deposited

Rs.

P.

Dated.....19...

Signature of Manager of Coal Mine

[Form 'I(V)' Outer]

[Form 'I(V)' Outer and Inner inserted vide GSR 1063 dated 6-6-1963]

Coal Mines Provident Fund

Return of contribution cards for Voluntary Contributors sent to the Commissioner on completion of contribution

Year to

(To be sent in duplicate)

Name and Address of Coal Mine

Registered No. of Coal Mine

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of
married women)

Member's Contribution

Employer's Contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Rs.

P.

Total Amount of Contribution

Form 'I(V)' Inner

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of
married women)

Member's Contribution

Employer's Contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Rs.

P.

Total Amount of Contribution

Outer

S.No.

Account No.

Name of Members (in block capitals

Father's or Husband's name (in the case of
married women)

Member's Contribution

Employer's Contribution

Remarks

Space for use in Commissioner's office

Rs.

P.

Rs.

P.

Total Amount of Contribution

Total number of cards for voluntary contributors sent

.....

Total compulsory contribution brought forward from Form-I
(Revised)

Rs.

.....

Total contribution as per this Form-I(V)

Rs.

.....

Total Contributions

Rs.

.....

[Details of Payment]

[Details of payments are to be shown only in Form I (V) outer and not in Form-I (Revised)' outer.]

Nos. and dates of

Challans/Cheques/Bank/Drafts/Pay-in-slips

Amount

Name of Treasury/Bank in which Deposited

Rs.

P.

Date.....

Signature of Manager of Coal Mine

Form 'J'

Coal Mines Provident Fund

Challan of Contribution Cards* sent to.....

Instructions - This Form should be prepared in triplicate or duplicate according as the cards are sent to the new employer or the Commissioner. In case the cards are sent to the new employer the extra copy should be sent to the Commissioner. One copy will be returned by the recipient duly acknowledged.

S.No.

Account No.

Name of member (in block capitals)

Contribution card sent(S) Not sent (N) +

Emergency card's (Number sent) NIL, 1,2,3 etc.

Remarks

1

2

3

4

5

6

**No. of Contribution Cards

No. of Emergency Cards

Total No. of Cards Sent

The Coal Mines Provident Fund Scheme

Signature of Manager Name & address of the Coal Mine Regd. No. of Coal Mine

Dated

Form 'K'

Coal Mines Provident Fund

Challan of Contribution Cards* sent to.....

Instructions - This Form should be sent in duplicate. The receipt will return one copy duly acknowledged.

S.No.

Account No.

Name of member (in block capitals)

Contribution card sent(S) Not sent (N) +

Emergency card's (Number sent) NIL, 1,2,3 etc.

Remarks

**No. of Contribution Cards

No. of Emergency Cards.....

Total No. of Cards sent.....

Dated.....

Coal Mines Provident Fund Commissioner

*The words "and Identity Cards" original columns "Identity Cards sent(S) not sent(N)"

Omitted vide Government of India, Ministry of Labour Notification No. P. F. 2(16)/52 dated 24 Nov. 1952.

**The words "No. of Identity cards"

Form 'L'

Coal Mines Provident Fund

[(Requisition for Contribution Cards)]

[The words 'and Identity cards']

The following persons, who have joined this Coal Mine, are understood to be members of the Coal Mines Provident Fund and to have been working in your coal mine/not to have worked in any coal mine during.....or.....

It is requested that their Contribution Cards, if any [?]

[The words 'and the Identity Cards (in the case of those who have not already surrendered them as mentioned below)'] may kindly be sent to us : -

S.No.

Member's name (in block capitals)

Father's name (or Husband's name incase of married woman)

Account No. (as[?]

[The word 'As in he Identity Card or']

stated by the member)

[Probable date of leaving the local mines] [[Column 'whether I.C. surrendered'

Omitted vide Govt. of India, Ministry of Labour Notification No. PF 2(16)/52 dated 24.11.52.]]

Regd. No. of Coal Mine.....

Dated.....

Signature of Manager or Other Officer Name & Address of Coal Mine

To

.....
Form 'M'

Coal Mines Provident Fund

I..... hereby cancel the nomination made by me/my guardian on.....as regards the disposal, in the event of my/my ward's death of the amount standing to my/my ward's credit in the Coal Mines Provident Fund and direct that the amount at my/my ward's credit in Account No..... of Coal Mines Provident Fund at the time of my/my ward's death shall be paid to the following person(s) in the manner shown against their names :-

The Coal Mines Provident Fund Scheme

Name & address of the nominee or nominees

Nominee's relationship with the member

Age of nominee

Amount or share of accumulation in the Fund to be paid to the nominee

1

2

3

4

Date.....

Signature or left hand thumb impression of member or his guardian

Certified that the above declaration has been signed by (1) employed in (2) the guardian of employed in before me.

Regd. No of Coal Mine.....

Signature of Manager

[Form 'MM']

[Form 'MM' inserted vide GSR 1061 dated 15.6.1963.]

Coal Mines Provident Fund

I hereby (cancel the original appointment of guardian made by me in favour of Shri/Smt..... and)* direct that in the event of my death during the minority of my nominee the person whose particulars are given below shall be deemed to be the guardian of my above named nominee for the purposes of the Coal Mines Provident Fund Scheme :-

Name & address of the guardian

Age of guardian

Relationship of the guardian with the member

Date.....

Signature/L.T.I. of the member

Account No.....

Certified that the above declaration has been signed by employed in before me :

Regd. No of Coal Mine.....

Signature of Manager

[Form 'M'(Revised)]

[Form-M (Revised) inserted vide G.S.R. No. 97 dated 13.2.88.]

Coal Mines Provident Fund

@ I hereby cancel the nomination made by me as regards the disposal, in the event of my death, of the amount standing to my credit in the Coal Mines Provident Fund and direct that the amount at my credit in Account No.....of the Coal Mines Provident Fund at the time of my death shall be paid to the following person(s) in the manner shown against their names :-

Name & address of the nominee or nominees

Nominee's relationship with the member

Age of nominee

Amount or share of accumulation in the Fund to be paid to the nominee

1

2

3

4

* Ihereby (cancel the original appointment of guardian made by me in favour of Shri/Smt.....

The Coal Mines Provident Fund Scheme

and) direct that in the event of my death during the minority of my nominee.....

the person whose particulars are given below shall be deemed to be the guardian of my above named nominee for the purposes of the Coal Mines Provident Fund Scheme :-

Name & address of the guardian

Age of guardian

Relationship of the guardian with the member

Date

Signature/L.T.I. of the member

Account No.....

Certified that the above declaration has been signed by employed in colliery name and Regd. No. of Coal Mine

Date

Signature of Manager

* Delete when this form is used for appointing a guardian for the first time.

@ Delete whichever not applicable.

[Form 'N']

[Form-N omitted for J&K-See paragraph II of appendix IV.]

Coal Mines Provident Fund

(Indent for Purchase of Contribution Stamps)

To

The Treasury Officer,

Please supply for the use of the undermentioned Coal Mine the following contribution stamps for which the bearer will pay Cash/by Cheque No dated drawn on

Denomination of the Stamp

Number of stamps required

Nominal value of stamps

Monthly rated employees

One Rupee and four annas

Two Rupees

Three Rupees

Four Rupees

Six Rupees

Eight Rupees

Ten Rupees

Twelve Rupees

Fourteen Rupees

Sixteen Rupees

Eighteen Rupees

Twenty Rupees

Twenty four Rupees

Thirty Rupees

Other Employees

Four Annas

Six Annas

Eight Annas

Twelve Annas

One Rupee

One Rupee & Four Annas

One Rupee & Eight Annas

Total Nominal Value of Stamps

Add 5 % Administrative Charge

Total amount payable for the purchase of stamps

Regd. No. of Coal Mine

Name & Address of Coal Mine

Signature of Manager of Coal Mine

Form 'O'

Coal Mines Provident Fund

Classified summary of the assets of the Coal Mines Provident Fund on the

Class of assets

Book value as per(a) below

Market value as per(b) below

Remarks as per(c) below

Rs.

Rs.

Rs.

1.

Govt. of India Securities

2.

Indian Provincial Govt. Securities

3.

Indian Municipal, Port & Improvement Trust Securities
including Debentures

4.

Debentures of Indian Railways

5.

Guaranteed and Preference Shares of Indian Railways

6.

Annuities of Indian Railways

7.

Ordinary Shares of Railways in India

8.

Other Debentures of Concerns in India

9.

Other Guaranteed and Preference Shares of Concerns in India

10.

Other Ordinary Shares of Concerns in India

11.

Cash on Deposit in Banks

12.

Cash in hand and on Current Account in Banks

13.

Other Assets (to be specified)

The summary shall show-

(a)

the value for which credit is taken in the accounts for each of the above mentioned classes of assets,

(b)

the market value of such of the above mentioned classes of assets as has been ascertained from published quotations,

(c)

how the value of such of the above mentioned classes of assets as has not been ascertained from published quotations has been arrived at.

[For Assam see further Forms-III, IV and V annexed to Appendix-I].

[Form 'P']

The Coal Mines Provident Fund Scheme

[Inserted vide S.R.O. 3306 dated 22nd Oct. 1954]

Coal Mines Provident Fund

Monthly abstract of deposits towards the Coal Mines Provident Fund for the month of.....19.....

(To be submitted to the Coal Mines Provident Fund Commissioner in duplicate by the 15th of each month by Registered post or through a messenger alongwith the original challan/Bank receipt/cheque/draft).

1. Total wages earned by members of C.M.P.F.2. Provident Fund Contribution (Employer's & Employee's shares)3. Add on account of undercharge (both shares) for the month of

(i)(ii)(iii)(iv)4. Deduct on account of over charge for the month of.....(i)(ii) | { |

Rs. P.

| Total u/cTotal o/c (minus) | { |

| -

| Rs.

| P.

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| -

|

|

| }

| }

5. Net Total (2+3+4) | ... | ... | ... |

6. Administrative Charges** | ... | ... | ... |

7. Total in figures (5+6) | ... | ... | ... |

8. Total in words (5+6) Rupees.....

9. *(i) Deposited under Treasury challan No.....dated.....in.....Treasury (original challan attached).

*(ii) Deposited in the Imperial Bank of India, Dhanbad, on.....for credit to the Coal Mines Provident Fund Account No. 1 (Receipted 'pay in slip' attached.)

*(iii) Remitted vide crossed Account payee cheque/crossed Account payee draft No.....dated.

The Coal Mines Provident Fund Scheme

on the Imperial Bank of India, Dhanbad, in favour of Coal Mines Provident Fund Account No. 1 (cheque or draft attached).

Dated.....19

Manager/Agent

.....Colliery

*Delete portions not applicable CMPF Regd.

No.....Zone.....

(For use of the Coal Mines Provident Inspector only)

Received from Coal Mines Provident Fund Commissioner on (date)..... Checked with the records of the Colliery on (date)..... Discrepancies detected have been included in my Inspection report

No.....dated.....

Under charges detected have been noted in the connected contribution cards.

Inspector C.M.P.F.Junior Labour Inspector (C)

Dated..... 19

@ Inserted vide S.R.O. 3306 dated 22nd Oct. 1954

** The words & figures '5% of net total at Serial No. 5' deleted vide S.R.O. 1852 dated 20 August, 1955

[Form P (Revised)]

[Form P (Revised) inserted vide G.S.R. 1063 dated 6.6.63.]

Coal Mines Provident Fund

Monthly abstract of deposits towards the Coal Mines Provident Fund for the month of19.....

(To be submitted to the Coal Mines Provident Fund Commissioner in duplicate, by the 15th of each month by Registered post or through a messenger along with, the original challan/Bank receipt/cheque/draft.)

1. Total emoluments earned by member of Coal Mines Provident Fund :- Rs.....2. Contributions for the month.....3.

Add on account of under charges

i).....ii).....iii).....| {}

Compulsory Contribution

Rs.

| {}

| -

| i).....ii).....iii).....

| }

| {}

| -

| Voluntary Contribution

| -

| Rs.

| }

| Total Under ChargeTotal| {}

| -

| | {}

| -

| Compulsory contribution (both shares)

| Voluntary contribution by member

| -

| Rs.

| Rs.

| -

|

|

| -

|

|
|-
|
|
|-
|
|
|-
|
|
|}
|}
|}
4. Deduct on a account of over charges-
i).....ii).....iii).....| {
Compulsory Contribution
Rs.
{
i).....ii).....iii).....
}
{
-
Voluntary Contribution
-
Rs.
}
Total Over ChargeNet Contribution
}
4. Deduct on a account of over charges-
5. Administrative charges (2.4% on net compulsory
contributions)
6. Total amount of contribution and administrative charges
(6A
Amount of Bank Collection Charges
(6B
Total amount of remittance)
7.
*(i)
Deposited Rs.....(Under Coal Mines
Provident Fund Cash Receipt No.....
dated.....19.....in.....Treasury
(Original Challan attached.).
*(ii)
Deposited Rs. ?.....in the State Bank
of India, Dhanbad on..... for credit to Coal
Mines Provident Fund Account No. I (Receipted Pay-in slip
attached).
*(iii)
Remitted Rs. ?.....vide Crossed
Account Payee Cheque/Crossed Account Payee draft

No.....dated ?.....19.....

(On the ?.....) in

favour of coal Mines Provident Fund Account No. I (cheque or draft attached).

*Delete portion not applicable

Manager/Agent Colliery

G.M.P.F. Regd. No.....

Zone

(For use of the Coal Mines Provident Fund Inspector only)

Received front Coal Mines Provident Fund Commissioner on (dated..... Checked with records of the colliery on (date) Discrepancies detected have been included in my Inspection report No.....dated Under charges detected have been noted in the connected contribution cards.

Dated..... 19

Inspector Coal Mines Provident Fund

2. Serial Nos. 6&6B inserted vide G. S. R. 1726 dated 11-9-68.

3. The words under Treasury Challan No-Substituted vide G. S. R. 1726 dated 11-9-68.

4. The words On the State Bank of India Dhanbad' substituted vide G. S. R. 1726

Forms P & P (Revised) omitted for JK-See paragraph 11 Of Appendix IV.

The column with the heading-P deleted by G.S.R. No. 1312 dated 29.12.84.

[Form 'PP']

[Form-PP inserted vide G.S.R. 97 dated 13.2.1988.]

Coal Mines Provident Fund

Monthly abstract of deposits towards the Coal Mines Provident Fund for the month of.....19.....

(To be submitted to the Coal Mines Provident Fund Commissioner in triplicate by the 30th of each month by registered post or through a messenger alongwith the original Bank receipt/cheque/draft).

1. Total emoluments earned by members of Coal Mines Provident Fund Rs.

2. Cont. for the month.....

Compulsory P.F. Contribution (both shares)

Voluntary contribution by members (P.F.)

Family Pension contribution (both shares)

3. Add on account of under charges

Month

Compl. Cont. (PF)Rs.

Voluntary cont. (P.F)Rs.

F.P. Cont.Rs.

Total under charges Total over charges

4. Deduct on account of over charges

Month

Compl. Cont. (PF)

Voluntary cont. (P.F)

F.P. Cont.

Net contribution

5. Administrative charge 3% on net compulsory contribution on account of P.F. & F.P.

6. Total amount of contribution & administrative charges Rs.

7. Amount of Bank collection charges Rs.

8. Total amount of remittance Rs.

(i) Deposited Rs. under coal Mines Provident Fund Cash receipt No.....dated.....

*(ii) Deposited No. in the State Bank of India, Dhanbad on for credit to coal Mines provident Fund Account No. 1 (Receipted Pay-in-slip attached).

*(iii) Remitted Rs..... vide crossed account payee cheque/crossed account payee draft No.

The Coal Mines Provident Fund Scheme

.....Date.....on thein favour of Coal Mines Provident Fund Account No. 1 (cheque or draft attached.)

Dated.....19

Manager.....Colliery CMPF Regd. No.....Zone

*Delete portion not applicable.

(For use of Coal Mines Provident Fund Inspectors only).

Received from Coal Mines Provident Fund Commissioner on (date)..... checked with the records of the colliery on (date).....Discrepancies detected have been included in my Inspection Report No.....dated.....Under charges detected have been noted in the connected contribution cards.

Dated.....19

Inspector Coal Mines Provident Fund

[Form 'Q']

[Form 'Q' inserted vide S.R.O. 3306 dated 22nd Oct., 1954]

Coal Mines Provident Fund

(Declaration to be completed by persons joining any Coal Mine to which the Coal Mines Provident Fund Scheme applies).

I (in block capitals) son of/daughter of/wife of* hereby declare that I was previously employed as.....in. Colliery.....(address of the coal mine) and that am/am not* a member of the Coal Mines Provident Fund.

[In the aforesaid coal mine I was making voluntary contribution at the rate ofper cent, @]

[Added vide G.S.R. 1063 dated 6.6.1963.]

Account No. of the employee if any.....

Signature/thumb impression of the employee

Certified that the contents of this declaration have been explained to the employee who has signed/thumb impressed it in my presence.

Manager/Agent Colliery.....

C.M.P.F Regd. No.....

Dated.....19.

*Delete portions not applicable.

Delete if the member was not a voluntary contributor.

[Form 'R']

[Form 'R' inserted vide Government of India, Ministry of Labour Notification No. PF 2(11)/52, dated 2nd Nov., 1955.]

Coal Mines Provident Fund

(Handing and taking over report to be rendered to Coal Mines Provident Fund Commissioner in the event of a change in the ownership of a coal mine).

1. Name and address of Coal Mine.....

2. Registered No. of Coal Mine.....

3. Name and address of the previous owner(s).....

4. Name and address of the new owner(s).....

5. Date on which ownership changed.....

6. I have transferred the following records to.....on.....and a sum of Rs.....(Name of new owner) (date)

.....is due to be paid to the Coal Mines Provident Fund on account of provident fund contribution and administrative charge for the period from.....to.....in respect of employees mentioned overleaf :-

(i)

.....

(ii)

.....

(iii)

.....

(iv)

.....
Date.....

.....
(Signature of the previous owner or his authorised agent or his manager)

7. I have received the records mentioned at 6 above on

(date)

.....
(Signature of the new owner or his authorised agent or his manager)

Date.....

* Delete if nothing is due to be paid.

Statement of Provident Fund contribution due for the period from.....to.

S.No.

Account Number

Name of Member

Father's Husband's name

Amount of provident fund contribution (both
shares)

Remarks

1

2

3

4

5

6

Total

Add Adm. charges

Grand Total

*Separate statement shall be prepared for each currency period.

For use of the Coal Mines Provident Fund Inspectors

Received from the Coal Mines Provident Fund Commissioner on (date)..... Checked with the records of the
colliery on (date).....Discrepancies detected have been included in my inspection report

No.....dated..... Under charges detected have been noted in the connected contribution cards.

Inspector C. M. P. F.

Date.....

.....
Junior Labour Inspector (Central)

Abstract Attendance Register for Eligibility to become member of the Coal Mines Provident Fund

[Form 'S']

[New form 'S' added vide S.O. 2620 dated 28 November 61.]

(see paragraph 38-A of the CM P.F Scheme)

Name of Employee Reference to declaration in form Q

Father's/Husband's name (3) Qualified for membership of the

Designation C.M P F. in the month of

Ticket/other identification No (3) Serial No of Form 'H' (Revised)

Category of employment Underground/surface (2) where name shown 19

Date of appointment 19(3) Date of leaving' service..... 19.

Year 19.....

Year 19.....

Allowance for

Allowance for

Verified Contribution started from.....19..(2)Under
charges have been reported to Commissioner.C.M.P.F
InspectorDated....19...

Month

Actual Attendance (1)

Leave

Forced idleness/days of lay off

Illegal lock out

Compulsory attendance in court

Maternity leave

Temporary disablement

Closed holidays

Total attendance

Actual attendance (1)

Leave

Forced idleness/days of lay off

Illegal lock out

Compulsory attendance in court

Maternity leave

Temporary disablement

Closed holidays

Total attendance

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

JanuaryFebruaryMarchAprilMayJuneJulyAugustSeptemberOctoberNovemberDecember

Total attendances

January

19 ... to June

19 ... August

19 ? to January

19 ? to January

19 ... to June

19 ...

February

19 ... to July

19 ... September

19 ? to February

19 ? to February

19 ... to July

19 ...

March

19 ... to August

19 ... October

19 ? to March

19 ? to March

19 ... to August

19 ...

April

19 ... to September

19 ... November

19 ? to April

19 ? to April

19 ... to September

19 ...

May

19 ... to October

19 ... December

19 ? to May

19 ? to May

19 ... to October

19 ...

June

19 ... to November

19 ...

19 ? to June

19 ... to November

19 ...

July

19 ... to December

19 ...

19 ? to July

19 ... to December

19 ...

Instruction

(1)

In the case of employees other than monthly paid employees, attendance put in during the wage-periods ending in a calendar month shall be deemed to be the attendance for that month.

(2)

Delete portion not applicable.

(3)

To be filled up when the worker qualifies for membership of the Fund or leaves service, as the case may be.

(4)

The register would be closed when the employee qualifies for membership of the Funds or leaves service and no entry should be made thereafter.

(5)

The Coal Mines Provident Fund Scheme

FORMS omitted for J & K - see paragraph II of appendix IV.

[Form 'T']

[Form 'T' Inserted vide G.S.R. 1203 dated 20.8.64.]

Coal Mines Provident Fund

Contribution Card for employees other than monthly rated employees for the quarter ending..... Currency period from..... to.....

1. Account No
2. Name (in block capitals)
3. Father's/husband's name
4. Signature or left thumb impression of member
5. Signature of person preparing the Card
6. Signature of Manager of Coal Mine
7. Registered No. of Coal Mine
8. Name of the Coal Mine

Week

Total emoluments earned
contribution

Under Charge (+) Over charge (-)

Refund of Advance

Member's share

Employer's share

Member's share

Employer's share

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rate of Voluntary Contribution.....percent

Summary

Member's share

Employer's share

Rs.

P.

Rs.

P.

Contribution in this card

(+) Undercharges

Refund of advance

Total

(-) Overcharge

Net Contribution

Checked

Found correct/observation noted.

The Coal Mines Provident Fund Scheme

Signature of Clerk in CMPF Office

[Form "T" (Revised)]

[Form 'T' (Revised) substituted vide notification no. 11011 (1)/72-PF-(i) dated 8.8.72.]

Coal Mines Provident Fund

Contribution card for employees other than monthly rated employees for the currency period
from..... to.....

Account No..... Rate of Voluntary Contributions.....

Name of member (in block capitals)

Father's/Husband's Name

.....Signature/Thumb impression of the member

.....Signature of the person preparing the card

.....Signature of employer or his authorised official

Name of Coal Mine

Regd. No

Form 'T' (Revised) Contd.

Week

Total emoluments*

Contribution

Under Charge (+) Over Charge (-)

Refund of advance

Employer's share

Member's share

Employer's share

Member's share

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

1st QUARTER

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

13.

Total

2nd QUARTER

14.
15.
16.
17.
18.
19.
20.
21.
22.
23.
24.
25.
26.

Total

*Rounded off to the nearest rupee.

Currency period ending

?.....Name.....

A/c No.

.....Regd.

No. of Colliery

?.....Serial

No. Form 'V' (Revised) where contributions shown.

3rd QUARTER

27.
28.
29.
30.
31.
32.
33.
34.
35.
36.
37.
38.
39.

Total

4th QUARTER

40.
41.
42.
43.
44.
45.
46.
47.
48.
49.
50.

51.
52.
Total
Net contribution during the currency period.
Member's share.....
Employer's share.....
Date.....
Signature of the authorised official of the Coal Mine
Form 'T' (Revised) Contd.
Summary
1st Quarter
2nd Quarter
3rd Quarter
4th Quarter
Total
Member's contribution(plus) Undercharges on Member's
contribution(plus) Refund of Advance
Total
(-) Overcharges on member's share Net member's share
Employer's contribution(plus) Undercharges on employer's
contribution
Total
(-) Overcharges on employer's share
Net employer's share
Checked.
Found correct/observation noted.
Signature of Clerk in C.M.P.F. Office
[Form "U"]
[Form 'U' inserted vide G.S.R. 1203 dated 20-8-64]
Coal Mines Provident Fund
Contribution card for employees other than monthly rated employees for the quarter ending-Currency Period
from.....to.....
1. Account No
2. Name (in block capitals)
3. Father's/husband's name
4. Signature or left thumb impression of the member
5. Signature of person preparing the Card
6. Signature of Manager of Coal Mine
7. Registered No. of Coal Mine
8. Name of the Coal Mine
Week
Total emoluments*
Contribution
Under Charge (+) Over Charge (-)
Refund of advance
Member's share
Employer's share
Member's share
Employer's share
Rs.
P.

The Coal Mines Provident Fund Scheme

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rate of Voluntary Contribution percent.

Summary

Member's share

Employer's share

Rs.

P.

Rs.

P.

Contribution in this card

(+) Undercharges

Refund of advance

Total

(-) Overcharge

Net Contribution

Checked/Found

correct/observation noted.

Signature of Clerk in CMPF Office

[Form 'U' (Revised)]

[Form 'U' (Revised) substituted vide Notification No. 11011(1)/72-PF I (I) dated 8.8.73.]

Coal Mines Provident Fund

Contribution Card for monthly-rated employees for the currency period from to

Account No Rate of Voluntary Contribution.....

Name (in block capitals)

Father's/Husband's name

Name of Coal Mine Regd. No.

.....Signature

of person preparing the card

.....Signature/Thumb

impression of the member

.....Signature

of employer or his authorised official with office seal

Summary

Member's share

Employer's share

Rs.

P.

Rs.

P.

Contribution in this card

(plus) Undercharges

The Coal Mines Provident Fund Scheme

(plus) Refund of advance

Total

(-) Overcharge

Net Contribution

Currency period ending

Name A/c No.

Regd. No. of Colliery

Net contribution during the currency period -

Member's Share Employer's share

Serial	No.	of	Form	V/V(Revised)	where	contribution	shown
--------	-----	----	------	--------------	-------	--------------	-------

.....

Date.

Signature of the authorised official of the coal mine

* The columns with the heading P deleted vide GSR No. 1312 dated 29.12.84.

Form 'U' (Revised) Contd.

Month

Total emoluments*

Contribution

Under Charge (+) Over Charge (-)

Refund of advance

Member's share

Employer's share

Member's share

Employer's share

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

Total

* Rounded off the nearest rupee.

Checked

The Coal Mines Provident Fund Scheme

Found correct/observation noted.

Signature of Clerk in C.M.P.F. Office

[Form 'V' (Revised)]

[Form 'V' (Revised) inserted vide notification No. 11011 (i)/72-PFI(i) dated 8.8.73]

Coal Mines Provident Fund And Coal Mines Family Pension Fund

[Return of contribution card in Form T (Revised), U (Revised), X & Y]

Name of Coal Mine.....Currency period : From.....to.....

Regd. No of Coal Mine.....

S.No.

CMPF A/c. No.

Name of member (in block capitals)

Father's or Husband's name (in the case of
married woman)

Provident Fund Contribution

Family Pension Contribution

No. of months for which contributed during the
year

Remarks

Space for use in CMPF office

Member's Share

Employer's Share

Member's Share

Employer's Share

1

2

3

4

5

6

7

8

9

10

11

Total amount of contribution

*In the case of those who have joined Coal Mines Family Pension Scheme suffix 'PEN' is to be added after the account number.

Form 'V' (Revised) Contd.

S.No.

CMPF A/c. No.

Name of member (in block capitals)

Fathre's or Husband's name (in the case of
married woman)

Provident Fund Contribution

Family Pension Contribution

No. of months for which contributed during the
year

Remarks

Space for use in CMPF office

Member's Share

Employer's Share

Member's Share

Employer's Share

1

2

3

4

5

6

7

8

9

10

11

Total amount of contribution

Total member's contribution

Rs.....

Total employer's contribution

Rs.....

Total contribution

Rs.....

Details of payment

Nos. and dates of Cheques/Bank
drafts/Pay in slips:

Amount _____

Name of Bank in which deposited.

Rs.

P.

Dated.....19

(Signature of Manager of Coal Mine)

2. In columns 5, 6, 7 & 8 sub-heading 'Rs' added vide GSR No. 1312 dated 8.12.84

[Form 'VV' (Outer)]

[Form 'VV' inserted vide GSR No. 97 dated 13-3-88.]

Coal Mines Provident Fund & Coal Mines Family Pension Fund

Coal Mine.....

Currency Period From.....to.....

Regd. No. of Coal Mine.....

S.No.

*P.F. A/c. No.

Name of member (in block capitals)

Father's or Husband's name (in the case of
married woman)

Total emoluments earned during the year

Provident Fund Contribution

Family Pension Contribution

No. of months for which contributed during the
year

Name of colliery where from member has come on
transfer

Space for use in CMPF office

Member's Share

Employer's Share

The Coal Mines Provident Fund Scheme

Member's Share

Employer's Share

1

2

3

4

5

6

7

8

9

10

11

12

Total :

*In case of those who have joined Coal Mines Family Pension Scheme suffix (PEN) is to be added after the account number.

**Column 11 to be filled for members joining the colliery during this currency period on transfer.

Form 'VV' (Inner)

S.No.

CMPF A/c. No.

Name of member (in block capitals)

Father's or Husband's name (in the case of married woman)

Total emoluments earned during the year

Provident Fund Contribution

Family Pension Contribution

No. of months for which contributed during the year

Name of colliery where from member has come on transfer

Space for use in CMPF office

Member's Share

Employer's Share

Member's Share

Employer's Share

1

2

3

4

5

6

7

8

9

10

11

12

Total :-

Total member's contribution

Rs.....

The Coal Mines Provident Fund Scheme

Total Employer's contribution

Rs.....

Total Contribution

Rs.....

*In case of those who have joined Coal Mines Family Pension Scheme suffix 'PEN' is to be added.

**Column 11 to be filled for member joining this Colliery during this currency period on transfer.

Reconciliation Statement

A

B

Contribution as per 'VV' Statement

Deposit as per 'PP' statement

1. As per this 'VV' statement

2. Amount involved in contribution cards for this currency period sent earlier with refund claims.*

3. 'VV' statement yet to be submitted.

4. Amount to be transferred from Provided Fund to Family Pension Fund and vice-versa if any (+) or (-)

P.F Contribution

F.P. Contribution

Total

Month

Cont.

F.P. Cont.

Adm Charges

Total

April

May

June

July

August

Sept.

October

Net Total :

5. Contribution as per Part-A

6. Difference ? short (-) / Excess (+) deposit

November

Dec.

Jan.

Feb.

March

Total :

Date :

* Append List of members for whom refund claims were sent.

Signature of Colliery Manager

Signature of Colliery Manager

[Form 'W']

[Form-W inserted vide G.S.R. 1203 dated 20-8-64]

Coal Mines Provident Fund

Return of members leaving service during the month of.....

Name & address of coal mine.....Regd. No. of Coal Mine.....

S.No.

The Coal Mines Provident Fund Scheme

Account Number.

Name of member (in block capitals)

Father's or Husband's name (in case of married woman)

Date of termination of service/death*

Reason for termination of service*

Last known address of the member

As at the time of leaving service

Date of appointment in the coal mine where from qualified for CMPF membership

Where refund claim has been forwarded to CMPF office

Remarks £

* In the case of persons leaving service without intimation to employers, the date from which the employees are struck off strength is to be shown.

** In this column any case of the following reasons is to be shown :-

"Retirement", "Permanent in capacity", "migration", "expiry of fixed term contract", "retrenchment", "Dismissal", "resignation", "left service without intimation", "death".

In the case of retirement on account of permanent incapacity to work in coal mines a copy of the medical certificate should be enclosed.

£ In the case of migration the nationality of the member should be stated here.

In case the date of termination of service and the date of death are different, the two dates should be mentioned here.

Form 'W' (Revised)

Coal Mines Provident Fund

Return of numbers a ceasing to be in service during the quarter ending 19...

Name & address of Coal Mine

Regd. No. Coal Mine

S.No.

Account Number.

Name of member (in block capitals)

Father's or Husband's name (in the case of married woman)

Last known address of the member

Date of ceasing to be in service

Remarks

1

2

3

4

5

6

7

Signature of Manager or other Authorised Official of the Coal Mine

Date.....

[Form 'X']

[Form 'X' 'Y' inserted vide notification No. 11011(1)/72-PFI(i) dated 8-8-73.]

Coal Mines Provident Fund

&

Coal Mines Family Pension Fund

(For those who have joined Coal Mines Family Pension Scheme)

Contribution Card for employees other than monthly-rated employees for the currency period from

The Coal Mines Provident Fund Scheme

..... to

*CMPF

Account No. Rate of Voluntary contribution%

Name of member (in block capitals)

Father's/Husband's name

.....Signature/Thamb

impressionof the member

.....Signature

of person preparingthe card

.....Signature

of employer or hisauthorised official

Name of Coal Mine.....

Regd. No.....

* After the Account Number suffix 'Pen' to be added.

Form 'X'

Week

Total emoluments*

Provident Fund Contribution

Family, Pension contribution

Refund of advance

Member's share

Employer's share

Member's share

Employer's share

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

1st QUARTER

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

13.

Total

2nd QUARTER

14.
15.
16.
17.
18.
19.
20.
21.
22.
23.
24.
25.
26.

Total

*Rounded off to the nearest rupee.

Currency period ending

?.....Name

?.....

A/c No

?.....Regd.

No. of Colliery ?.....Serial

No. of Form-V (Revised) where contribution shown

.....

3rd QUARTER

27.
28.
29.
30.
31.
32.
33.
34.
35.
36.
37.
38.
39.

Total

4th QUARTER

40.
41.
42.
43.
44.
45.
46.
47.
48.
49.
50.

51.
52.
Total
Net contribution during the currency period.
Provident Fund contribution
Pension contribution
Member's share.....
Employer's share.....
Signature of the authorised official of the coal mine
Date.....
Form 'X' (Contd.)
Under Charges (+)
Over Charges (-)
Week No.
Provident Fund contribution
Family Pension Contribution
Member's Share
Employer's Share
Member's Share
Employer's Share
Rs.
Rs.
Rs.
Rs.
Total 1st Quarter
Total 2nd Quarter
Total 3rd Quarter
Total 4th Quarter
Form 'X' (Contd.)
Summary (Provident Fund Contribution)
Summary (Pension Contribution)
1st Quarter
2nd Quarter
3rd Quarter
4th Quarter
Total
1st Quarter
2nd Quarter
3rd Quarter
4th Quarter
Total
Member's Contribution
(+) Under Charge on member's Contribution
(+)Refund of advances
TOTAL
(-) Over charge on Member's contribution
Net member's share
Employer's contribution
(+) Under charge on Employer's share
TOTAL
(-) Over charges on Employer's contribution

The Coal Mines Provident Fund Scheme

Net Employer's share

Total No. of months for which contributed.....

(Total No. of weeks for which contribution is to be divided by 4 to arrive at the number of months)

Checked.

Found correct/observation noted

Signature of Clerk in CMPF Office

Form 'Y'

Coal Mines Provident Fund & Coal Mines Family Pension Fund

(For those who have joined Coal Mines Family Pension Scheme)

Contribution Card for monthly-rated employees for the currency from.....
to

*CMPF

A/c No. Rate of voluntary contribution%

Name (in block capitals)

Father's/Husband's name

Name of Coal Mine Regd. No.

?.....Signature

of person preparing the card

?.....Signature/thumb

impression of the member

?.....Signature

of employer or his authorised official with office seal

Provident Fund Contribution

Family Pension Contribution

Member's share

Employer's share

Member's share

Employer's share

Rs.

P.

Rs.

P.

Rs.

P.

Rs.

P.

* After the account number suffix 'Pen' is to be added.....

Currency period ending

Name..... A/c..... No.....

Regd. No. of Colliery.....

Net contribution during the currency period.....

Member's Share

Employer's Share

Provident Fund contribution :

Rs.....

Rs.....

Family Pension contribution :

Rs.....

Rs.....

Serial No. of Form 'V' (Revised) where contribution shown.....

Signature of the authorised official of the coal mine

The Coal Mines Provident Fund Scheme

Date.....

Form 'Y' Contd.

Months

Total Emoluments

Provident Fund Contribution

Family Pension Contribution

Refund of Advances

Under Charge (+)

Over charges (-)

Provident Fund Contribution

Family Pension contribution

Member's share

Employer's share

Member's share

Employer's share

Member's share

Employer's share

Member's share

Employer's share

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

Total

**Round off to the nearest rupee.

No. of months for which contributed.....

Checked

Found correct/observation noted

(vide para 8 of Coal Mines Family Pension Scheme)

Signature of Clerk in CMPF Office

* The columns with the Heading 'P' deleted vide G.S.R No. 1312 dated 18.12.84.

Form 'Y' (Contd.)

Summary

Contribution in this card

(Plus)

Undercharges

(Plus)

Refund of Advances

Total

(-) Overcharges

Net contribution

Form 'YY'

Provident Fund Ledger for being maintained by collieries

Colliery.....Regd. No.....Currency period.

S.No.

Account No.

Name of Member

Father's Husband's name

TOTAL EMOLUMENTS AND MEMBER'S & EMPLOYER'S
CONTRIBUTION

April

May

June

July

August

September

October

November

December

January

February

March

Total

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Rs.

Total emoluments :

1st Week2nd Week3rd Week4th Week.

Total emolument

P.F.C. (compulsory)

UC+/OC(PF Compulsory)

PFC (Voluntary)

UC+/OC (-) (VC)

F.P.c.

UC+OC-(FPC)

Total emolument

PFC (Comp.)

UC+/OC (-)(PF-Comp.)

PFC (Voluntary)

UC+/OC(VC)

FPC

UC+/OC(FPC)

(Perforated copy to be given to the member at the end of currency period)

Form 'YY' Contd.

ANNUAL CONTRIBUTION

Rate of Voluntary contribution if any

No. of months for which contributed during the year

Remarks about transfer, cessation of

employment and submission of contribution card for broken period

Provident Fund Contribution

F.P. Contribution(+) UC(-) OC

Compulsory(+) UC(-) OC

Voluntary(+) UC(-) OC

Rs.

Rs.

Rs.

TOTAL

[Form 'YY' Contd.]

[Form 'YY' inserted vide GSR 97 dated 13-2-88.]

For all Members

AprilRs.

MayRs.

JuneRs.

JulyRs.

AugRs.

Sept.Rs.

Oct. Rs.

Nov.Rs.

Dec.Rs.

Jan.Rs.

Feb.Rs.

MarchRs.

TotalRs.

Total emoluments

PFC (Compulsory)

+ UC (PF Compulsory)

-OC (PF Compulsory)

Net P. F. (Comp.)

V.C.

+U. C., (VC)

-O. C., (VC)

Net V. C.

F.P.C.

+UC (FPC)

-OC (FPC)

Net FPC

Related AI tags, queries and research notes

Translation